

Criminal Law, Investigation and Procedure Victoria
Investigation
Identification
Visual, aural and other forms of sensory identification
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[ID.2000] Overview

Identification is at the base of every successful prosecution and is an essential step in every criminal investigation. Failure by an investigator to prove the identity of the person charged as being the person who committed the alleged offence will mean that the prosecution fails. With the development of DNA analysis the means of proving identification are becoming more sophisticated. The most common form of identification, apart from an admission by the accused they are the person alleged to be the offender, remains visual identification of the physical characteristics of the offender with the accused. This discussion focuses on visual, aural and other forms of sensory identification, and the rules governing the obtaining of identification evidence and its admission into evidence upon the hearing of criminal charges.¹

Identification parades

[ID.2020] Powers to conduct identification parades

Under Victorian law there is no statutory power to either request or compel a suspect to participate in the conduct of an identification parade. The position under the *Crimes Act 1914 (Cth)* is quite different. There the common law is codified in ss 3ZM–3ZP, but the statutory power, like the

common law, does not authorise compelling a suspect to participate in an identification parade. The Commonwealth Code is not dealt with in this discussion.²

[ID.2040] Identification parades under common law

The common law applies to Victoria and the police may request, but not compel, a suspect to undergo an identification parade. As discussed at [ID.2300], the *Evidence Act 2008* prioritises identification parade identification evidence and places an obligation on an investigator to consider whether it is reasonable to request the alleged offender to participate in a parade. A suspect may also request that the police provide them with the opportunity to participate in an identification parade. A suspect is under no obligation to participate in an identification parade and has a right to refuse to participate.³ However, the right to refuse to participate in an identification parade does not carry with it a right to be immune from other legitimate forms of identification. It is open for police, after a suspect has refused to participate in an identification parade, to seek to have him or her identified by other legitimate means, including by what is sometimes called a “video identification parade”.⁴

What constitutes other legitimate means will necessarily depend on the circumstances of the particular case, but as a matter of law other legitimate means can include opportunities for direct identification of the suspect without his or her knowledge. *R v Haidley*⁵ involved the identification by a witness, brought by police to the holding yard forming part of the watchhouse, observing the suspect (who had already been charged) through a barred door or window among a group of approximately ten male prisoners. The evidence of identification was admitted.

Some significance was attached to the fact that the accused was not brought to the yard to be identified, but rather the witness was brought to a place where the accused was required to be detained. The fact that the accused was put at a disadvantage because the identification of him was made without his knowledge did not render the evidence inadmissible. The disadvantages he suffered were that he could not give instructions concerning police and others present in the yard at the time. Therefore he could not impugn the probative value or highlight the prejudicial value of the evidence arising from such factors as age, height and appearance of the other persons in the yard. He had no direct means of knowing whether any unfair methods were adopted, or any unfair suggestions were made to the witness, by police. These matters were only relevant to the weight to be attached to the evidence by the jury and did not go to the question of its admissibility.

See also [ID.2180] – “Identification parade evidence”.

[ID.2060] Chief Commissioner's Instructions – identification parades

The *Victoria Police Manual – Procedures and Guidelines* contains specific instructions for police in relation to identification. Under the heading “Verifying the identity of a suspect – Identification

parades”, guidelines are set for police when requesting and conducting an identification parade.⁶ It is important to note that the Chief Commissioner's Instructions are just that, they are not the law although they are clearly intended to reflect the law in its practical application as far as possible.⁷ However, they do provide a sound basis for testing whether proper investigation procedures have been applied in a particular case.

The instructions indicate any method used to obtain evidence of identification must be fair and that direct means of identification, such as identification parades, are generally preferred to indirect means of identification, such as from photographs.

General instructions for the conduct of an identification parade include:

- the request to a suspect to participate in a parade must be recorded;
- the parade should be conducted in a location with suitable viewing conditions and security;
- participants must be of the same general appearance as the suspect;
- generally there should be only one suspect in a parade and a minimum of eight other persons;
- two suspects may be placed in a parade if the suspects are of similar appearance, but a minimum of 12 other persons should participate in these parades;
- police must not participate in the parade unless they are a suspect;
- names and addresses of participants must not be recorded; and
- the parade should be conducted by a Sub-officer or above.

The information required to be given to suspects (set out in Form 296) includes:

- the right to have a legal representative, friend or relative present;
- that they may stand wherever they wish in the parade and may change position after each witness has viewed the parade;
- that they may object to persons chosen or arrangements made;
- unless they or someone else objects a photograph will be taken of the parade; and
- at the conclusion they will be asked if they are satisfied with the arrangements made.

Form 296 also covers information to be given to third parties present as observers, and the requirements for recording the conduct of the parade including any conversation with the witness(es). Police officers who are investigating the case are not to take part in the conduct of the parade and if present they must be in the view of the suspect.⁸ There is no requirement for the conduct of the parade to be recorded on video. If a witness makes an identification, the police officer conducting the parade must record the manner and words used to identify the participant on Form 296. This form must be attached to a copy of the brief regardless of whether an identification was made.⁹

A suspect under 18 years must be accompanied by a parent, guardian or independent third person. Mentally or intellectually impaired witnesses should be accompanied by an adult. Provision is made for conducting identification parades in prison with the consent of the prison governor.¹⁰

A witness viewing the parade may ask to hear persons in the parade speak, may view persons from any angle they wish, and request to see the participants moving.

Whilst the instructions provide a sound basis for the police to plan and implement an identification parade they do not provide an immunity from a challenge to any evidence obtained. It may be, for example, that although the instructions permit circumstances where two suspects may be placed in a parade this might not be acceptable to the court. It is always open to challenge an identification parade if the accused instructs that it was unfair because of the make up of the parade.

Photographs

[ID.2080] Powers to photograph

The use of photographs of suspects for the purpose of identifying an offender is a necessary and justifiable step in the course of an efficient criminal investigation by police. There is nevertheless danger of unfair prejudice to the accused.¹¹ See also [ID.2320] – Identification by pictures – s 115 of the Evidence Act 2008.

[ID.2100] Common law powers to photograph suspects

It is generally permissible for police to take a photograph of a suspect without their consent. The taking of a photograph is not of itself an assault. If, however, the process of taking the photographs amounted to an assault then it may be that the evidence of the photograph and any identification flowing from it could be excluded in exercise of the discretion to exclude improperly or illegally obtained evidence. There may be some support for this proposition in the analogy that where a person was forced to take part in an identification parade then almost certainly any related evidence flowing from the identification parade would be excluded in exercise of the discretion.¹²

*R v Ireland*¹³ demonstrates the common law position of a detained person vis-à-vis photographing. After being charged with murder the accused was awakened by a police officer and told that he had to have his hand photographed. He was taken to a room and this was done. The photographs showed scratches and marks on his hand that tended to indicate that he used the knife to commit the murder. Barwick CJ said:¹⁴

[T]he question is not whether a police officer may take a photograph for the purpose of recording matter which he bona fide thinks may be of assistance at the trial. I would not

doubt that he can. The question is whether he can compel a person to submit himself to photography for some purpose other than the identification of that person, that is to say, to establish who he is or to establish his identity with a person known to have committed the crime then under investigation ... But, in my opinion, neither at common law nor under that statute has a police officer power to require a person to submit himself to photography for any purpose other than identification.

Barwick CJ held the photographs of the marks and scratches to the hands ought to have been excluded in the proper exercise of discretion.

Given that a police officer may, at common law, compel a person to submit him or herself to photography for the purpose of identification then presumably reasonable force may be used to effect the compulsion. In those circumstances it would require something exceptional or oppressive to justify the exercise of the discretion not to admit the evidence of identification obtained by way of a compelled photograph on the basis of unlawful or unfair acts.

Provision is made for physical examination of a suspect's body under the forensic procedures set out in ss 464R–464ZK of the *Crimes Act 1958*. There is provision within those powers for the examinations to be recorded by video.¹⁵

The fact that a person is in custody does not provide them with immunity from being photographed. Whilst a police officer may use coercive power to photograph a person in custody for the purpose of identification, coercion cannot be used to photograph him or her for the purpose of obtaining other evidence.¹⁶ A person may of course consent to being photographed for non-identification purposes, but it would be necessary to establish that the consent was voluntary if challenged. It is unlawful, in the absence of clear statutory authority or consent of the accused, to detain a person for the purpose of investigation.¹⁷

Whilst it is necessary, as a general proposition, that the responsible police officer must make a decision in each case whether to take the photograph of an arrested person, there may be circumstances where it is legitimate for senior police to require every person arrested to be photographed. In *R v McPhail*¹⁸ rioting spectators at a motorcycle race surrounded a temporary police station for many hours. At a subsequent trial it was held that there was nothing oppressive in requiring every person arrested to be photographed between two police officers. This procedure was adopted because of the large number of people being arrested and the need to record the officers responsible for the arrest as well as the identity of the person arrested.

[ID.2120] Statutory powers to photograph

There are various Victorian statutory and regulatory powers requiring a person to submit to photography. These powers are not granted to obtain photographs of a person for the purpose of photo identification, but are primarily designed to record the identity of prisoners or offenders undergoing sentence by way of community service orders. They are, however, available to be used for the purpose of photo identification in the course of an investigation by police. These powers do not allow the photographing of a person for some purpose other than identification, such as recording of marks or scratches on the body. Those powers are contained in the forensic procedures set out in ss 464R–464ZK of the *Crimes Act 1958*. There is provision within those powers for the examinations to be recorded by video: see [ID.3460]. There is no general statutory power authorising Victoria Police to compel suspects to be photographed, but as noted there is power at common law: see [ID.2100] “Common law powers to photograph suspects”.

All prisoners must be photographed under s 28 of the *Corrections Act 1986* as soon as possible after a prisoner's reception into a prison. Further photographs of a prisoner may be taken, for the purpose of identifying prisoners and compiling records, at any time after a prisoner's reception into a prison. A prison officer may give to a prisoner all necessary directions to enable the taking of accurate photographs.

All offenders attending a Community Corrections Centre as part of their sentence must be photographed by a community corrections' officer as soon as possible after reception into the community corrections centre. Further photographs of an offender may be taken, for the purpose of identifying prisoners and compiling records, at any time after their reception into a community corrections centre. A community corrections officer may give to an offender all necessary directions to enable the taking of accurate photographs.¹⁹ Corresponding obligations are imposed on an offender to attend and do all things necessary to have his or her photograph taken for inclusion in the records of the community corrections centre.²⁰

Police may photograph a person detained in a police gaol at any time at or after their reception into the police gaol for the purposes of identification or the compilation of records concerning the person.²¹ The police officer may give the person all necessary directions to enable the taking of accurate photographs. This is additional to the common law power to photograph a suspect for the purpose of identification.²²

Police may access and use “personal and confidential information”, including photographs, obtained under “Corrections legislation”, about a person who has been or is an offender or prisoner as permitted by statute.²³

[ID.2140] Chief Commissioner's Instructions – photographs, videos and photofits

The *Victoria Police Manual – Procedures and Guidelines* contain specific instructions for police in relation to identification. Photographs are dealt with under the headings “Identifying a suspect when there is no specific person suspected of the crime” and “Verifying the identity of a suspect – Other methods”. It is important to note that the Police Commissioner's Instructions are just that they are not the law although they are clearly intended to reflect the law in its practical application as far as possible.²⁴ However, they do provide a sound basis for testing whether proper investigation procedures have been applied in a particular case.

The instructions indicate that direct means of identification, such as identification parades, are generally the preferred means of identification.²⁵ The instructions indicate that a witness may be asked to examine a photograph of a suspect placed among other photographs where:

- the suspect has refused to participate in an identification parade;
- the police officer merely has a suspicion about the identity of an offender; or
- it is not practicable to hold an identification parade or use other direct identification methods.²⁶

Witnesses must not be shown photographs for identification purposes if a suspect is available and an identification parade or another means of direct identification is practicable. Where no specific person is suspected of the crime, police may use a general collection of photographs (photo books). Where there is more than one identity witness, police are encouraged to consider showing only one witness the photographs so that other identity witnesses may be used to view directly any suspect identified.²⁷

Specific instructions are given for the construction and use of photograph folders. Folders must include a photograph of only one suspect and 11 other persons. The photographs must be either all colour or all black and white. The photographs should be of the same type (for example passport), same profile (for example head and shoulder), depict persons of about the same age and appearance as the suspect, and have all backgrounds removed. The photographs in the folder must be numbered and this number must be used in witness statements regarding identification. There is no requirement for video recording the process of viewing the photographs by a witness.²⁸

Specific instructions are also given for the use of video identification, often referred to as a video identification parade. In the absence of exceptional circumstances video identification is only to be used after a person has been given the opportunity to participate in an identification parade. Video identification involves recording an image of the suspect and other persons and then playing this back to a witness. The video recording should contain the suspect and at least 11 other persons of the same general appearance, and in similar surroundings. The sequences should be in random order and separately numbered with an electronic number. The viewing by a witness should be conducted fairly, permitting the witness to pause or replay the tape. Only one witness should view the tape at a time. A video identification parade is probably picture identification under [s 115 of](#)

the *Evidence Act 2008*.²⁹ There is no requirement for video recording the viewing of the video by a witness, but both the witness and the police officer should make a written statement of the viewing.³⁰

Other methods of identification – such as placing a witness outside a place attended by the suspect, in a public place amongst a group of people, at a place where a suspect is in custody or in transit, provided the suspect is not made to go somewhere or do something, so their identity may be tested – are also covered by the Chief Commissioner's Instructions.³¹

The Criminal Identification Unit may construct a likeness (photofit) of the offender, but the facilities are generally only available for serious or persistent offenders. The likeness is produced from a witness's description if the witness had a good view of the offender's facial features such as eyes, mouth, nose, chin, and hair. The likeness is computer generated.³² Specific instructions are also provided for police descriptions of suspects. These instructions cover appearance categories, accent and inappropriate ethnic descriptions.

[ID.2160] Developing technology – digital photographs, CCTV, computer matching

Advances in computer and surveillance technology provide additional avenues for investigating police. New technology may enable investigators to access images of an accused without the need to photograph the accused, although in the circumstances of a particular case it may remain a priority for reasons of proof. Not all evidence available from the use of these technologies will be “identification evidence” as defined in the Dictionary to the *Evidence Act 2008*. Evidence by way of a photofit or from computer-based comparison of images using digital technology generally will not involve a *person* asserting *the accused was or resembles* a person present at or near the place where the offence, or a related event took place. A photofit is a description in visual form of the offender, not the accused. A digital match by a computer does not, of itself, involve a person asserting identification or resemblance. Such evidence may well be admitted, but is not identification evidence unless it satisfies the definition in the Act.

The technology for creating a photofit likeness is steadily advancing and computer-based systems are now a common part of the tool kit available to police such as the E-fit system employed by police in the United Kingdom. The Victoria Police FACE (Facial Automated Composition and Editing) Image program was developed in the 1980s and is able to be constantly upgraded by adding new facial characteristics. FACE Image technology is able to be linked with Adobe Photoshop software thus enabling a witness to further enhance the image they have constructed with the trained police officer, known as a Police-Artist. The technology is not as significant perhaps as a comparison between the circumstances under which the identifying witness made the crime scene observations, any description given by the identifying witness, the image generated and any comments made by the witness about the final image or during the process of reaching a

final image. Whilst the process of making the image has the potential to suggest the witness was uncertain or less certain than is purported, generally this detail is not recorded by investigators.³³

Similarly, the use of CCTV images is a growing area of interest to law enforcement agencies.³⁴ Victoria Police have developed iFACE, a program which enables computer-based comparisons between images and also assists with the creation of photo-boards to be shown to a witness. Whilst a photo-board still involves an element of selection by a trained police officer, the officer is provided with a range of images selected using a computer program from which to determine the final composition of the photo-board. In the future a photo-board may be presented to a witness on a computer or tablet, rather than in a manila folder. The practice of enabling a witness to leaf through a larger collection of photographs in a folder is becoming a thing of the past. The modern process involves a witness looking at images displayed on a computer monitor and, no doubt as access to technology improves, will be done in the field using iPads and other tablet devices. The witness is able to enlarge a particular image for a closer inspection. The actions of the witness, in the form of clicks on an image or other movements within the computer program, can be recorded and are potentially available as evidence. If a witness considers a particular image is similar to the alleged offender they are seeking to identify, it is possible to use the software to extract a range of images based on the digital mapping of the face in the image of interest. Using this facility, investigators may assist a witness reach a firmer, or even positive, identification of a suspect.

Digital cameras with facial recognition technology are available on the Attendance Register of major Victorian police stations.³⁵ The camera will assist the development of the police photograph database and enable on the spot checks of a suspect against the database for identification purposes if an identity issue arises.

CCTV image of an offence is direct evidence of the offence. A person watching the CCTV screen observing the offence take place can give evidence of what they observed, can refresh their memory from the CCTV footage and the footage is admissible as direct evidence of the event.³⁶ Additionally computer technology can be used to match or “identify” images from a crime scene with other CCTV or digital images available to the investigator. This computer identification technology involves a form of opinion evidence based on specialised knowledge (expert evidence) and related issues. Where evidence relies on a computer match, potentially evidence as to the operation, effectiveness and limits of the computer program used for the matching process will be required. Another use involves a process of isolating image frames from the CCTV footage, enhancing, zooming and manipulating the isolated image or images, and then superimposing the image (either as a negative or positive image or in combination) on another image available for comparison. A witness might point out to a jury particular features appearing, or not appearing, in the various images. Finally, the witness might provide an expert opinion of the probability the person depicted in the sequence of images was the accused.³⁷ Another use will involve a witness making an identification based directly on viewing the CCTV image, either after a computer-

based match or without such a match. This could involve direct identification from CCTV footage or subsequent identification or recognition from a video identification parade or photo-board. Evidence from a video identification parade or photo-board of this kind would be subject to the existing procedural and evidentiary requirements.³⁸

See also discussion of evaluation of identification parade and photo-board procedures by psychological scientists at [\[ID.2500\]](#).

Identification evidence and the [Evidence Act 2008](#)

[ID.2180] Overview

The *Evidence Act 2008* (Chapter 2.18 of this service) is the Victorian enactment of the Uniform Evidence Act.³⁹ Chapter 3 of the Act deals with questions of admissibility and Pt 3.9 deals specifically with identification evidence. The [Evidence Act 2008](#) identification evidence provisions largely reflect the common law. Nevertheless, there are some significant differences and in some instances cases decided under the common law would be decided differently under the Act. There are some types of identification evidence that fall outside the definitions of “identification evidence”, “visual identification evidence” and “picture identification evidence” contained in the Act. Other provisions of the [Evidence Act 2008](#), such as those dealing with hearsay, opinion and discretionary and mandatory exclusion, will apply to such evidence and guidance may still be found in some common law based decisions. This discussion is based on the [Evidence Act 2008](#) but reference is made to common law cases and principles in the text and in footnotes where relevant. Care must be exercised when considering decisions from other States and Territories as some have not adopted the Uniform Evidence Act (UEA).

It is now beyond question that evidence of identification is relevant and therefore prima facie admissible:⁴⁰

In my opinion an identification made out of court by a person qualified to make it is admissible in evidence, subject to qualifications later to be mentioned. This is because an identification out of court, being earlier in time and made under circumstances which involve a selection in the absence of any compulsion, is more likely to be reliable than an identification made in court.

While this broad statement carries the full authority of the High Court, a number of more recent High Court decisions demonstrate both the complexity of identification evidence and a divergence in approach by different justices of the High Court to aspects of identification evidence. These cases are discussed below.⁴¹

Identification evidence is liable to exclusion where:

- the evidence is not relevant, as will be the case if the witness is in no better position to say the person depicted in an image of the offence, or a related act, taking place is the accused than the jury is able to do by observing the image and the accused in court;⁴²
- the probative value of the evidence is outweighed by its prejudicial effect;⁴³
- the use of the evidence would result in an unfair trial for the accused;⁴⁴ or
- the evidence was obtained by unlawful or improper conduct and its exclusion is required upon the balancing of competing public policies – that is, the need to bring to account those who commit criminal offences, the need to protect individuals from improper or illegal conduct of investigators, and the requirement that the courts should not give their imprimatur to the improper or illegal conduct of those whose task it is to enforce the law.⁴⁵ When considering the exclusion of evidence on the basis that it was illegally or improperly obtained, the court must take into the matters set out in s 138(3)(a)–(h) of the *Evidence Act 2008*.

[ID.2190] Definitions – Evidence Act 2008

The *Evidence Act 2008* defines the keys terms “identification evidence”, “visual identification evidence” and “picture identification evidence”.

“Identification evidence”, defined in the Dictionary, means evidence that is an assertion by a person that the defendant was or resembles, visually, aurally or otherwise, a person at or near the place where the alleged offence, or an act connected to that offence, was done. The assertion must be relevant in time as well as place and be based wholly or partly on what the person saw, heard or otherwise perceived at that time and place or be a report, whether oral or in writing, of such an assertion.⁴⁶ It does not include evidence of identification of a person other than the defendant nor of an object.

As noted, the definition of “identification evidence” includes evidence that is a report (whether oral or in writing) of an assertion by a person that the defendant was or resembles a person at or near the place of the offence or connected act. A person who observes the alleged victim identify the accused as their attacker from a Facebook photograph can give evidence of their observations of the identification, including that it was an immediate and confident identification.⁴⁷ Previously there was a conflict in the authorities on whether an observer to the making of the earlier identification may give evidence of it, where the person who made an out-of-court identification was unable to recall at the trial making the out-of-court identification or could not identify the accused in court. The objection to admitting evidence of the out-of-court identification by an observer of it was that identification is an act of the mind, hence only the identifier can testify to the identification.⁴⁸ The evidence of the observer of the out-of-court identification sought to be admitted to prove the

identification is hearsay pursuant to [s 59 of the Evidence Act 2008](#).⁴⁹ It is not admissible unless it comes within an exception to the hearsay rule. The availability of the person who made the out-of-court identification for cross-examination is clearly a relevant factor.⁵⁰ The position of the identifying witness is different. Their evidence of their earlier identification is evidence of their own state of mind. A lack of memory of the earlier identification by the identification witness is a very different proposition from a retraction of the earlier identification by the identification witness. The identifying witness's evidence that they signed or otherwise marked a photograph or photo-board when they made the identification is relevant evidence. It may be led from the witness or put to an unfavourable witness where appropriate.⁵¹

The *Evidence Act 2008* defines “visual identification evidence”⁵² and “picture identification evidence”.⁵³ Notably visual identification evidence does not include wholly aurally based identification or picture identification evidence and picture identification evidence is limited to identification from “examining pictures kept for the use of police officers”. It may be argued the phrase “kept for use of police officers” should be given broad meaning and that it covers CCTV footage, and stills taken from CCTV footage, related to a particular investigation and not just the collection of images kept for the purpose of compiling photo-boards etc. However, in *R v Hennessy*⁵⁴ O’Keefe J suggested the reference to “kept for use of police officers” in [s 115\(1\)](#) was concerned largely with what are colloquially known as “mug shots” and held it was not directed to security camera photographs. It follows that identification from a television broadcast or from a photograph in a newspaper report will not be from “examining pictures kept for the use of police officers”. The limitation on admissibility imposed by [s 115\(2\)](#), if the pictures “suggest that they are pictures of persons in police custody”, does not apply to other forms of non-police custody.⁵⁵ The requirements and limitations of [s 115](#) will not apply to such evidence. However, depending on the facts, the requirements and limitations of [s 114](#) may apply to such evidence. Identification of the accused from such material will be identification evidence as defined by the Dictionary to the Act only if the person making the identification is a person who was present at or near the place where the offence was committed or connected act was done and bases their assertion as to identity on something seen, heard or otherwise perceived at that place and time.

[ID.2200] Positive identification or similarity

The words used by a witness when purporting to make an identification must be words of positive identification:⁵⁶

If words which are reasonably capable of being understood as consistent with an absence of positive identification are used without further explanation or elucidation, there is no question of impugning the language of the witness in denying the independent efficacy of the words as positive identification. All that is involved in such a denial is the application of

the fundamental principle that proof of guilt must be beyond reasonable doubt ... Under our system of administering criminal justice, a person is not to be convicted of serious crime on the sole basis of a verbal ambiguity.

The phrase “This looks like the person” are not words of positive identification. It should be noted that in *Pitkin v The Queen*⁵⁷ the Crown case rested solely on a witness's identification from photographs shown to her by police. However, the mere use of words that are not words of positive identification is not necessarily conclusive of the matter.⁵⁸ There may be other admissible evidence that could be used by a jury to conclude the witness was making a positive identification or from other sources to support the identification even though the witnesses evidence is only evidence of similarity.⁵⁹ In *R v Theos*⁶⁰ a witness stated that the person in a security photograph “looks like” the accused who was known to him, but also made a positive identification of the accused from the photograph in court. The witness was not a witness to the commission of the robbery but gave evidence of being present when the initial discussions were held about the possibility of committing the crime. The witness also stated that a sawn-off shotgun “looks the same” as one he had seen being cut down by the accused. On appeal the Crown conceded that this latter identification of the shotgun could not be regarded as positive identification,⁶¹ but no such concession was made with respect to the earlier identification of the accused from the security photograph. The evidence was held to be admissible even though it was evidence that the offender “looks like” the accused, but the Court of Appeal ordered a re-trial because the trial judge's directions were inadequate.⁶² Smith AJA concluded that both the out-of-court and in-court identifications were lacking in probative value and fundamentally flawed because the witnesses knew who the police suspected before examining the security photographs. Further he found the witnesses were shown photographs which purported to include only the accused or the accused and another person who appeared different in clothing and physical features from the accused.⁶³ Where an issue before tribunal of fact is whether a witness has made a positive identification it is necessary for the tribunal to determine that issue before it can determine what use can be made of the evidence. It may be the tribunal can be satisfied of guilt based on that evidence alone if satisfied the evidence is evidence of positive identification, but if not so satisfied may be able to use the evidence as part of the circumstantial evidence when determining whether the prosecution have proved guilt beyond reasonable doubt.⁶⁴ A jury must be directed accordingly.

See also discussion of the evaluation of identification parade and photo-board procedures by psychological scientists at [\[ID.2500\]](#).

[ID.2220] Identification and recognition

A distinction is drawn in some of the cases between “true identification cases” and “recognition cases”. Identification evidence is where the witness does not know or recognise the suspect they

observe at the crime scene but when later given the opportunity to observe the suspect (in an identification parade, photograph or sometimes in the dock) and compare that observation with their memory of the person they observed at the crime scene they identify the suspect as the person at the crime scene. The issues at court in relation to identification evidence relate to both the circumstances of the initial observation at the crime scene and the subsequent identification by way of identification parade, photographs etc. Recognition evidence is where the accused is previously known to the identifying witness and at court the issue is generally limited to the circumstances under which the recognition at the crime scene was made.⁶⁵ However, recognition evidence is not necessarily identification evidence as defined in the *Evidence Act 2008*. It will be identification evidence where the witness observes the offender during the commission of the offence or related act and recognises that person as a person known to the witness. It is not identification evidence if a person who did not observe the offence or related act, when subsequently shown CCTV or other picture images of the offence taking place, recognises the offender as depicted in the picture as a person known to the witness. Both forms of evidence may be admissible but the requirements for admission are significantly different. Whilst identification evidence as defined in the Dictionary will generally be subject to ss 114 and 115 of the *Evidence Act 2008*, recognition evidence made from CCTV or pictures after the event may be original or primary evidence or it may be hearsay under s 59. If the witness examines the photos or CCTV footage in court and gives evidence they recognise the defendant as the offender that is direct evidence of recognition of the defendant as the offender, albeit on the facts it may be inadmissible as opinion evidence.⁶⁶ If the witness's evidence is of an earlier out-of-court recognition that the defendant, a person known to the witness, was the person in the crime scene picture it is hearsay and can only be admitted if it satisfies one of the exceptions to the hearsay rule, such as ss 60 and 66 of the *Evidence Act 2008*.⁶⁷

The distinction between identification evidence and recognition evidence can become blurred on the facts. An example is *R v Theos*⁶⁸ referred to earlier and decided prior to the Uniform Evidence Act. On one analysis the witness, who was not at the crime scene, is recognising the accused from the security photograph as the person known to him and whom he had observed cut down the shotgun. On another analysis he is identifying the person in the photograph as a person who looks like the accused, a person known to him. An examination of the relevant evidence in *R v Theos* (1996) 89 A Crim R 486 indicates that the witness relied upon clothing, stance (bow legged), build, height and the shotgun to say that one of the two men in the security photos was the man, Theos, known to him (the witness identified both men in his evidence). He does not identify Theos by his facial appearance, even though some of the photos had the gunman facing the camera, because both men were hooded. Under the *Evidence Act 2008* a careful analysis of the nature of the evidence is critical to questions of admissibility. The distinction between identification and recognition may assist the analysis of these matters but it is the detailed nature of the evidence itself in the circumstances of the case that determines its strength and weakness, how it can be effectively tested, whether it is admissible and what directions, if any, are required to ensure the

jury are alive to any dangers lurking in evidence of this kind.⁶⁹ Generally, recognition evidence may be considered more reliable than identification evidence but it does not follow that recognition evidence cannot be mistaken.⁷⁰ The requirement for a direction to the jury and the nature of it will be determined on the facts of each case including the familiarity of the witness with the accused they purport to identify.⁷¹

[ID.2240] Circumstantial identification evidence

A distinction is also drawn in some of the cases between “direct visual identification” and “circumstantial identification evidence”. The latter form of evidence is:⁷²

[E]vidence that asserts that the general appearance or some characteristic or propensity of the accused is similar to that of the person who committed the crime. It may be evidence of age, race, stature, colour or voice or of a distinctive mark or gait. It differs from positive-identification evidence in that the witness does not claim to recognise the accused as the person who committed the crime or was present in circumstances from which it can be inferred that the accused committed the crime.

Significantly “circumstantial identification evidence” as defined by McHugh J in this quote from *Festa v The Queen*⁷³ is not identification evidence as defined in the *Evidence Act 2008* and the Uniform Evidence Act did not apply to this Queensland case. It is not evidence by a person the accused was, or resembles a person present at or near the place where the offence or a related act was committed.

It has been said that when circumstantial identification evidence has no element of positive identification it usually has none of the potential unreliability of positive identification evidence. Subject to the Jury Directions Act 2015, a trial judge is not automatically called upon to give a direction to the jury concerning the dangers of circumstantial identification evidence but the circumstances of a particular case may require an appropriate warning to be given.⁷⁴ The *Jury Directions Act 2015* definition of “general directions” includes directions concerning the drawing of conclusions and the distinction between direct and circumstantial evidence.⁷⁵ However, a trial judge is required to explain only so much of the law as is necessary for the jury to determine the issues in the trial.⁷⁶

It should be noted that in *Festa v The Queen* Kirby J made strong dissenting remarks opposing the introduction of sub-categories of “direct visual identification” and “circumstantial identification evidence” and considered that such over-sophistication was likely to mislead lawyers and jurors and:⁷⁷

[L]ay traps for the conduct of trials. Past authority has not drawn such distinctions. We should not add them now. It is identification evidence, as such, that experience shows carries risks of great prejudice and of erroneous or inadequate directions to juries resulting in miscarriages of justice.

Nevertheless, the distinction has been applied in subsequent cases and is now generally accepted. Where police and civilian witnesses could give evidence the accused wore similar clothing several hours prior to the crime in the vicinity of the crime and had similar mannerisms to a person depicted on security video near the scene of the crime at a point in time close to when the crime was committed, the evidence could be led. It was not led as evidence of positive identification but as circumstantial evidence bearing upon whether the accused was present and had the opportunity to commit the crime. However, a direction was still required as to how the jury might use the evidence and presumably such direction would have highlighted the specific weakness in the evidence as required by the *Jury Directions Act 2015* and as previously required by *Domican v The Queen*.⁷⁸

[ID.2260] Accused admits presence – identification of accused person’s actions and conduct

In some cases an accused person puts themselves at the scene of the alleged crime at the relevant time either in a record of interview, through cross-examination of witnesses or when giving evidence. There is no issue of identification of the accused as a person at the scene of the alleged crime in these circumstances. However, the prosecution may nevertheless rely on photograph or other identification evidence to enable a witness to identify the accused as the person who engaged in particular alleged conduct – for example possessed a weapon, said specific things or engaged in specific conduct. Such evidence commonly arises where there are multiple co-accused alleged to be involved in a gang attack. Views differ whether this evidence should be considered identification evidence and consequently whether an appropriate direction to the jury on the dangers of such evidence is required. In *Dhanhoa v The Queen*⁷⁹ the prosecution alleged a joint criminal enterprise. The accused gave evidence that he was at the flat of the victim, with his three co-accused, immediately prior to the attack but had left shortly before the assault took place. The victim put all four men at the flat at the time of the assault, had identified the accused from a photo-board and said he thought the person in the photo-board was the person who grabbed him by the throat at the outset of the assault. He managed to get out of the unit but the attack continued on the street. On one view, if the truth of a witness’s assertion he or she saw the accused at a particular place at a particular time is not in issue, the reliability of the evidence of identification is not disputed and so a *Domican*⁸⁰ type direction was not necessary and would in fact cause confusion in the minds of the jury.⁸¹ On another view identification was not an issue at all and no direction can be required.⁸² On another view the issue is the identification of the accused as the perpetrator of the relevant acts or omissions, and a cautionary direction is required.⁸³ The

view taken of what is the proper analysis of the facts in each case will influence whether it is an issue of identification and clearly this is a matter upon which different minds may reach different conclusion on the same facts.

Under the *Jury Directions Act 2015*, the issue is probably simplified by the requirements of ss 12, 14, 16 and 35. The definition of “identification evidence” in s 35 includes the phrase “saw, heard or perceived”. The definition of “perceived” includes to “come to realize or understand” and “interpret or regard (someone or something) in a particular way”.⁸⁴ Arguably this extends the definition “identification evidence” to identifying the person by what they did, or said, on the relevant occasion. Thus, in the absence of good reasons for not doing so, a trial judge will give an identification direction if requested to do so under s 12 or, in the absence of a request, if there are substantial and compelling reasons under s 16.

It might be argued that the focus on these distinctions does not assist the trial judge, counsel or the jury and the real focus should be whether the facts of a particular case require the judge to give an identification direction. As an example where a witness gives evidence he was at the beach on a dark night with no artificial lighting and momentarily saw, through the other people milling around, a male raise a knife and that he subsequently identified the accused from a photo-board as the person who raised the knife, an identification direction would be given. If the accused gave evidence he was on the beach at the relevant time but denied he had a knife would that negate the need for the direction? Could it in fact increase the need for an appropriate direction to the jury as a consequence of the accused’s evidence? In contrast a sexual assault took place in the residence of the accused during a social event, there was no issue he was present, it was not suggested to witnesses who knew him that he was not present and there was evidence he was introduced as “Adam” (a name he was known by) to the complainant. At trial no attempt was made to have the complainant identify him other than by her evidence she was sexually assaulted by Adam. The issue at trial was the reliability of these witnesses because some had had a subsequent falling out with the accused and because witnesses’ recollection of events, including whether the accused entered and left the house at the relevant times, was faulty because of alcohol and marijuana consumption. Held: the accused’s presence at or about the time of the offence was not in issue, there was no dispute about his identification and no jury direction was required.⁸⁵ In a trial situation the final determination of whether identification is an issue and the need for an appropriate direction will often be a matter to be determined after the close of the evidence and possibly after closing addresses by counsel.⁸⁶ As noted above, the *Jury Directions Act 2015* has probably simplified the issue significantly.

[ID.2280] Description of offender

A description of an offender is not identification evidence as defined in the Dictionary to the *Evidence Act 2008* as it does not involve an assertion by a person that the defendant was or

resembles a person at or near the place where the offence or a related act took place at the relevant time. A photofit or FACE image is a visual description of the offender and will not be identification evidence unless the witness giving the description were to go further and say the image they constructed is of the defendant. Given the nature and purpose of a photofit this would be very unusual. Based on similar reasoning, a description of an offender is not identification evidence pursuant to the *Jury Directions Act 2015*, s 35.

[ID.2300] Visual identification evidence and identification parade evidence – s 114 of the Evidence Act 2008

Visual identification evidence is identification evidence based wholly or partly on what a person saw but does not include picture identification evidence.⁸⁷ Such evidence adduced by the prosecution is not admissible unless:

- an identification parade including the defendant was conducted before the identification was made;⁸⁸ or it was not reasonable to hold such a parade;⁸⁹ or the defendant refused to take part in a parade;⁹⁰ and
- the identification of the defendant relied upon was made without the identifying witness being intentionally influenced to identify the defendant.

The requirement the identifying witness not be intentionally influenced applies to all visual identification evidence, not just identification parade evidence, and is not limited to intentional influence by investigators.⁹¹ In *Fowkes v The King* [2023] VSCA 160⁹² the Court of Appeal considered whether an identifying witness was intentionally influenced if the particular influence applied did not have a causative effect because the witness would have identified the accused irrespective of the influence applied. The Court found:⁹³

As to that, we consider that the proper interpretation of s 114(2) dictates that, although the exercise of the influence need not have been the sole, or even predominant, factor in having the relevant effect, it is evident that it must have a material effect. Thus, to influence someone is to have a material effect on that person. By its terms, s 114(2) requires it to be demonstrated that the identification was made without the person making the identification ‘having been intentionally influenced’ to identify the accused. Expressed in the passive voice, that requirement is directed to the state of mind of the person who made the identification. Thus, the identification evidence is not excluded if the intentional influence, sought to be exerted over the witness, did not have a material effect on the identification by the witness of the accused.

In *Fowkes* [2023] VSCA 160 the Court also considered the requirement the influence must be intentional. It concluded the intention was clearly required to be that of the person exerting influence which meant “*the person exercising the influence must do or say something that*

was intended to have a material effect on the person making the identification of the accused person."⁹⁴

There is no discretion involved where evidence does not satisfy the requirements of [s 114\(2\)](#). The evidence is not admissible unless it satisfies the requirements. The onus rests on the prosecution to establish, on the balance of probabilities, the identification witness was not intentionally influenced.⁹⁵ The prosecution must establish either there was no intentional influence exerted or that any influence sought to be exerted did not have any material effect on the witness' identification of the accused.⁹⁶

When determining whether it was reasonable to hold an identification parade the court must consider the matters set out in [s 114\(3\)–\(6\)](#) of the *Evidence Act 2008*.

Whilst direct identification is the preferred form of identification, and an identification parade is the preferred form of direct visual identification,⁹⁷ it is by no means the required form of identification. This flows from the suspect's right to refuse to participate in an identification parade and from the qualification that it must be reasonable to hold such a parade.⁹⁸ Whilst [s 114\(3\)](#) specifies matters the court must take into account it expressly does not limit consideration to those matters. Consequently a pragmatic consideration of delays, and the process of accumulating evidence during an investigation remain matters the court can consider.

The mere absence of an identification parade does not of itself make the evidence inadmissible; its absence may affect the weight of the identification evidence, but it cannot make it irrelevant.⁹⁹

There may be circumstances where it would be positively unfair to conduct an identification parade and in these circumstances [s 114\(4\)](#) applies. Examples of such unfairness could include situations where the offender had a significant and very unusual physical characteristic or where witnesses had been shown photographs of the accused as part of an early stage in the investigation.¹⁰⁰ There are also advantages of photo-boards, such as the ability to manipulate images to achieve a closer resemblance with the accused in the filler photographs than could be achieved in a parade.¹⁰¹ A court is precluded by [s 114\(6\)](#) from considering the availability of pictures or photographs when determining whether it was reasonable to hold a parade. It follows the inability to source suitable persons for a parade may point to unfairness to the defendant for the parade to be conducted, and thus the application of [s 114\(4\)](#), but that assessment cannot be based on a comparison with the ability to source suitable filler photographs for a photo-board.

Prior to the Uniform Evidence Act, courts had expressed strong criticism of police for failing to arrange an identification parade. Mason J, although finding that there had been no miscarriage of justice, commented in *Alexander v The Queen*:¹⁰²

[H]owever, the conduct of the police in failing to arrange an identification parade when it could have done so deserves strong censure.

The failure to hold an identification parade may mean that the weight to be given to the identification evidence, if not excluded by s 115, is so slight that the trial judge is obliged to reject it because its probative value is outweighed by its prejudicial effect.¹⁰³

The value of a properly conducted identification parade, apart from its reliability as a method of identification, is that the accused is necessarily present. The accused is thus able to highlight any unfairness or weakness in the process and in the manner of identification by the witnesses.¹⁰⁴ However, it does not follow that a conviction must be quashed where the identification is made other than by way of identification parade at a time when the accused has been charged or is definitely suspected. This is so even if there is no impediment to the holding of an identification parade as the test pursuant to s 114(2) is whether, in all the circumstances, it was reasonable to hold an identification parade.¹⁰⁵

“Identification parade” is not defined in the *Evidence Act 2008* and, outside the Chief Commissioner’s instructions contained in the *Victoria Police Manual*, it is not defined in Victorian Law.¹⁰⁶ Identification from an informal identification parade has been admitted into evidence where an accused person was placed in a hotel. The accused was considered to have blended in reasonably well with the other persons in the bar and the identification process was held to have been fairly conducted. Significantly, the accused person consented to the identification parade being conducted in the manner it was, and requested and was allowed to remove the glasses he habitually wore. In reaching the conclusion that the evidence was properly admitted King CJ sounded a word of caution:¹⁰⁷

Such alternative forms of identification should not be resorted to, however except for substantial and defensible reasons. The reasons advanced in the present case were accepted by the trial judge as justifying the course adopted in the circumstances and I am prepared to uphold the learned judge's view. The decision should not be regarded by police officers, however, as a precedent justifying dispensing with the formal identification parade simply because of the impracticability of arranging such a parade at the time when the suspect is interviewed.

Identification arising from an informal identification parade held on a railway platform, with the accused's consent, was not admitted into evidence. Insufficient records were kept of the conduct of the parade. There was no photographic or video record of what occurred at the platform and a lack of proper note-taking at the time. The police did not try to arrange an appropriate parade. Consequently, the accused was not in a position to test the reliability of the identification evidence and therefore to admit the evidence would result in unfairness and prejudice to the accused.¹⁰⁸

Where an accused person does not consent to participate in an identification parade then the police may seek to obtain identification evidence, including direct identification evidence, by other means. However, it is doubtful that the evidence will be admitted into evidence where police use impermissible or unlawful means to obtain it. This is not because the evidence is inadmissible per se – it is in fact *prima facie* admissible. It is because where police use impermissible or unlawful means this will weigh heavily in favour of the exercise of the judge's discretion to exclude the evidence.¹⁰⁹ It is impermissible for police to compel a person in detention to do things outside the ordinary activities of his detention for the purpose of attempting to have a witness identify the person.¹¹⁰ “Ordinary activities of detention” are activities which are inherent or incidental to the detention such as being taken to court, being in an exercise yard or a cell, obtaining medical attention and activities of this kind.¹¹¹ It was held that taking a person into a room, requiring him to sit at a table and surrounding him with other people before bringing a witness into the room was not within the ordinary activities of detention.¹¹² It is also impermissible to delay taking a defendant before a magistrate so as to conduct an identification exercise or other investigation against their will.¹¹³

The refusal of the defendant to take part in an identification parade may be proved by the Crown not as indicating guilt but to explain why a more satisfactory method of identification was not used.¹¹⁴

The defendant's behaviour during an identification parade, designed to prevent a successful identification, is admissible and it is open to the jury to draw an inference of guilt from this evidence.¹¹⁵ However where the defendant was not consenting to the identification parade this evidence was not admitted. In *R v Shannon*¹¹⁶ the accused was in custody charged with an unrelated offence and was not told there was to be an identification attempt. The accused may not have known he was also under suspicion with respect to the robbery in relation to which the informal identification parade was being conducted. When he saw the witness making observations he put his head down. He could well have supposed the witness was a witness, unknown to him, in relation to the offence with which he was already charged. If the accused's reactions were dictated by a consciousness of guilt in relation to the crime with which he had been charged and not with respect to the subject crime, any influence they had upon the witness would be highly

unfair to him.¹¹⁷ Where evidence of the defendant's efforts to avoid attempts by police to obtain identification evidence by other means, for example identification from a crowd at a racetrack, limitations may be placed on the evidence put before the jury. In some circumstances attempts by the suspect to avoid the identification process cannot be used as evidence of a consciousness of guilt.¹¹⁸

Given that he was not subject to arrest and had been advised that he could not be compelled to take part in an identification parade, his vehement attempts to avoid the process could not be used by the jury as determinative of consciousness of guilt. Its reception would be to add little to the fact of disinclination and as such would have “little weight but [would be] likely to be gravely prejudicial to the accused”.

Therefore evidence was led of the alternative process attempted by the police and the accused's disinclination but not of anything in the accused's reaction which might have implied a consciousness of guilt.¹¹⁹

The refusal to take part in an identification parade tends to support the admission of other evidence of identification including in-court (dock) identification.¹²⁰ Increasingly police use a “video identification parade” where a person refuses to take part in an identification parade but this is probably picture identification not visual identification pursuant to the *Evidence Act 2008* definitions:¹²¹ see [ID.2080] and [ID.2180]. Evidence of the steps taken by police in constructing the video to ensure the video identification parade procedure was as fair as reasonably possible may be admissible in anticipation of the defence raising issues about its reliability or fairness.¹²² Similarly where the process of showing the video identification parade to a witness is video recorded this evidence of how the viewing of the video identification parade was conducted may also be admissible.¹²³

Where the witness has been shown a photograph of the accused before an attempt at direct identification from a group is made then this would be improper or unfair.¹²⁴ In *Alexander v The Queen* Gibb CJ stated that it would also be unfair even if the witness was shown a number of photographs, including that of the accused, before an identification parade was held.¹²⁵ However, it has been held that this did not apply where there was no alternative course open to the police due to the refusal of the accused to participate in an identification parade. In *R v Clune* the witness was not shown a single photograph, but rather was asked to select from a group of photographs that included the accused. Subsequently the witness waited outside the court to see if she could identify the accused when the police escorted him across the street. There was other evidence implicating the accused, including his reaction when he saw the witness on the street as he was escorted from court and his possession of the stolen goods.¹²⁶

Whilst s 114(2)(a) is intended to deter holding an identification parade after an identification has been made it would not necessarily be unfair for the police to have the witness subsequently attempt to identify the offender from a group at an identification parade. In all cases where there has been earlier identification from a photograph this fact could affect the probative value of a later identification at an identification parade.¹²⁷ If at the time a witness is shown the photographs the police do not know who to arrest and charge then it will be more difficult for the accused to persuade the trial judge to exclude the evidence of identification from the photographs. Conversely if the police knew at that time that the accused was the person to arrest and charge, and it was reasonable to hold an identification parade, then the Crown will face exclusion of the evidence pursuant to s 114(2)(b). Whilst s 114 is not qualified by a requirement the defendant be in the custody of the investigating police, as is the case with s 115, clearly an identification parade is generally not possible if the defendant is not in custody of police. The thrust of s 114 is to render inadmissible visual identification evidence by means other than an identification parade if it was reasonable to conduct the parade. Any steps by police to use other forms of visual identification by artificially delaying the arrest of the defendant, known to be the person to arrest and charge, are perhaps unlikely to satisfy the test that it was not reasonable to hold a parade. Nevertheless, the test of whether it was reasonable to hold a parade must be determined on the facts of each case and the court must have regard to the matters in s 114(3). Situations where the identifying witness is familiar with the defendant, there is other strong evidence implicating the defendant or it is logistically difficult to arrange or conduct a parade will impact on the question of whether it was reasonable to hold a parade.¹²⁸

See also [1A.5.220] “Identification parades under common law”.

In-court (dock) visual identification evidence

Dock identification evidence is visual identification evidence and, subject to s 114, prima facie admissible. It is of little probative value when made by a witness who has no prior knowledge of the accused. This is because the circumstances in which it is made at trial effectively “conspire to compel the witness to identify the accused in the dock”.¹²⁹ Dock identification is inherently unreliable and no conviction could rest on dock identification standing alone.¹³⁰

Where a person who has made an “out-of-court” identification, but cannot or will not make an “in-court” identification then the evidence of a person who witnessed the “out-of-court” identification is admissible, subject to satisfying an exception to the hearsay rule.¹³¹

It has been said that a witness who has identified an accused person out-of-court should always be asked at the trial whether they can identify the accused in court. The rationale offered in support of this proposition is that it gives an honest witness the opportunity to reconsider the matter. It is also said that it prevents the jury from wrongly inferring that the witness is unable to identify the

person in the dock as the offender.¹³² Against this it must be recognised such dock identification is likely to be prejudicial to the accused as the jury may accept such evidence as the witness again identifying the accused when in reality they are at best confirming an earlier identification with a choice of one with which to do so. In a case involving multiple accused it may assist the jury to understand which of the accused is said by the witness to have done which particular acts.¹³³

It is always open to object to the admission of dock identification, although there is certainly no absolute rule requiring rejection of such evidence,¹³⁴ and where it has been admitted without objection the defendant may apply for a discharge of the jury. It is for the trial judge to determine whether such prejudice has arisen as to justify the discharge of the jury. Where there is abundant direct or circumstantial evidence implicating the accused, other than the dock identification evidence, then it is unlikely the discharge of the jury would be justified.¹³⁵

The dangers associated with dock identification evidence may also attach to identification evidence comprising identification made within the precincts of the court. The necessity of the trial judge to highlight the weaknesses associated with dock identification applies also to identification made within the precincts of the court.¹³⁶

[ID.2320] Identification by pictures – s 115 of the Evidence Act 2008

Part 3.9 of the *Evidence Act 2008* deals with the admissibility of identification evidence and s 115 specifically deals with exclusion of picture identification evidence. The definition of “picture identification evidence” in s 115(1) limits it to identification made wholly or partly by the identifying witness “examining pictures kept for the use of police officers”. What is referred to as a video identification parade, subject to the particular facts, is probably picture identification evidence under the definition.¹³⁷ Such evidence is not admissible:

- where the pictures examined suggest they are pictures of persons in police custody;¹³⁸ or
- if the pictures are examined while the defendant was in custody of a police officer investigating the alleged offence:
 - where the picture of the defendant examined was made before the defendant was taken into that police officers custody,¹³⁹ unless the defendant’s appearance changed significantly between the alleged offence and the time they were in the investigating officer’s custody or it was not reasonably practical to take a photo of the defendant after they were taken into custody;¹⁴⁰ or
 - unless the defendant refused to take part in an identification parade or the defendant’s appearance changed significantly between the alleged offence and the time they were in the investigating officer’s custody or it was not reasonably practical to hold an identification parade including the defendant.¹⁴¹

The effect of [s 115\(1\)](#), consistent with earlier common law, is to prioritise visual identification evidence by way of an identification parade over picture identification evidence whilst the defendant is in an investigating police officer's custody. Nevertheless, the Appeal Courts have firmly rejected any suggestion the photo-board (digiboard) process is inherently inferior to an identification parade. Despite suggestion of some past authority, it has been said courts should not attempt to discourage the use of photo-boards for identification by requiring judges to warn juries about the dangers of the photo-board process compared to a parade or suggest to juries the photo-board process is inherently flawed, or by suggesting judges should be more ready to exclude photo-board evidence than other forms of identification evidence, including parade evidence.¹⁴² Nothing in [ss 116](#) or [165 of the Evidence Act 2008](#) requires a trial judge to warn a jury about the dangers of photo-board evidence compared to a parade.

The [Evidence Act 2008](#) has significant ramifications potentially for the common police practice of using photos from when a person is taken into custody or charged for identification purposes. Identification from such photos will not be admitted if the pictures examined suggest they are pictures of persons in police custody.¹⁴³ The [Evidence Act](#) is blind on the distinction between civilians and police officers when it comes to the person who is making an identification. The same requirements apply to a police witness of identification as apply to a civilian witness of identification.¹⁴⁴ It might be said a police officer who goes to the police photo database and recognises an alleged offender must know they are photos of persons in police custody. However, if it does not appear from something in the nature of photos themselves, without considering the context in which they were examined, they are of persons in police custody then [s 115\(2\)](#) will not apply to exclude them.¹⁴⁵ It is the appearance given by the pictures, not the actual custodial status of the person depicted, that is the focus if the issue of admissibility dealt with by [s 115\(2\)](#).¹⁴⁶ Indeed, unlike [s 115\(3\) and \(5\)](#), the requirements of [s 115\(2\)](#) apply regardless of whether the accused is in custody at the time the pictures are examined.¹⁴⁷ It appears even if one photo in a photo-board suggests the person is in police custody the photo-board must be excluded.

The qualification regarding being “in the custody of a police officer of the police force investigating the commission of the offence with which the defendant has been charged” is potentially significant. The qualification means [s 115](#) exclusion will not apply where the accused is on bail¹⁴⁸ or in prison.¹⁴⁹ The [Corrections Act 1986](#) will often determine whether a person is in the custody of the Chief Commissioner of Police or in prison.¹⁵⁰

It is unclear whether the qualification would extend to the situation where the accused was in the custody of a police officer investigating an unrelated offence at the time of the picture identification. It may be argued the better interpretation of first part of the phrase is “in the custody of *any police officer of the police force* investigating” the related offence with which the defendant

has been charged. Alternatively, it may be argued it means in the custody of *a police officer associated with investigating the related offence* rather than in the custody of *any* police officer from the relevant police force. The phrase “*that* police custody” in [s 115\(3\)\(b\)](#) may suggest the correct interpretation requires the defendant to be in custody of a police officer investigating the related offence. Subject to which interpretation is applied, the determination of whether the defendant was in police custody may depend on whether the officer investigating the relevant offence had sufficient evidence to justify arresting and charging the defendant with the relevant offence and knew the defendant was in custody of other police in relation to other matters.¹⁵¹ An approach consistent with the definition of “in custody” contained in [s 464\(1\) of the Crimes Act 1958](#) would be preferable. The *Evidence Act 2008* does not contain a definition of “custody” or “in custody”. Whilst the definition in [s 464\(1\) of the Crimes Act 1958](#) is limited to the purposes of Pt III Div 1 Subdiv (30A) of the *Crimes Act 1958*, there is an argument the concept of “in custody” should be given a consistent meaning in the context of the conduct of a criminal investigation.

Identification evidence that falls outside the definitions of picture identification evidence may be visual identification evidence even though it involves photographs or CCTV images etc. For example identification of the defendant as the offender depicted committing the offence made by a security officer monitoring a bank of live CCTV monitors is visual identification evidence but not picture identification evidence. Where identification evidence is neither picture identification evidence nor visual identification evidence,¹⁵² such as identification evidence from CCTV, television, Facebook or newspaper images not kept for use of police officers, it is admissible as relevant evidence.¹⁵³

Corroboration of photographic evidence is not required as a rule of law, albeit on the facts in a particular case it may be important.¹⁵⁴ A conviction will not inevitably be set aside, as a rule of law, where the only evidence of identification is that of a stranger from a photograph, albeit on the facts in a particular case that may be the outcome.¹⁵⁵

The fundamental objection to identification from photographs is that the identification is made in the absence of the accused. The accused has no means of knowing whether there was any unfairness in the identification process or weakness in the manner in which the witness made the identification. The weakness in the identification may arise from the words used by the witness to make the purported identification.¹⁵⁶ In addition there may be dangers associated with the “rogues gallery effect” where the jury may assume that a person whose photograph is in the possession of the police must have a police record.¹⁵⁷

There is no rigid requirement preventing police from using photographs for the purpose of identification once they have a particular suspect in mind. Certainly, [s 115 of the Evidence Act 2008](#) restricts the circumstances where picture identification evidence adduced by the prosecutor

will be admissible if conducted once the defendant is in custody of a police officer of the police force investigating the related offence but it does not prevent the use of photographs in the course of an investigation. It may be that the circumstances of a particular case would make the use of photographs for the purpose of identification unfairly prejudicial, but subject to ss 115 and 137 there is no rigid rule of law preventing the admission of identification evidence obtained in this fashion.¹⁵⁸ Nevertheless, if police use photographs at a time when they regard the accused as a definite suspect but the accused is not in the custody of a police officer investigating the related offence, and where there is no reason for not conducting an identification parade, this may be an indicator of unfair prejudice and give rise to the exclusion the evidence.¹⁵⁹ Where the defendant was not in the custody of a police officer investigating the related offence at the time pictures were examined, subject to ss 115(2) and 137, the pictures are admissible. Where the accused is in the custody of a police officer investigating the related offence, s 115(3)–(6) apply, and if adduced by the prosecutor the picture identification evidence is not admissible unless those requirements are satisfied.

Well-recognised circumstances in which it is likely that a trial judge would admit evidence of identification from photographs obtained at a time when the police knew that the accused was the person to arrest and charge, but was not in custody of a police officer of the police force investigating the related offence, include where:

- it is inappropriate for the police to alert the accused that he or she is under suspicion;
- the accused refuses to participate in an identification parade;
- the unusual physical appearance of the accused makes it impractical to hold an identification parade;
- the physical appearance of the accused has changed materially from the time when the offence is alleged to have occurred;
- the accused cannot be located within a reasonable time;
- the witness is unwilling or unable to participate in an identification parade;
- other factors make the conduct of an identification parade impracticable.¹⁶⁰

This common law approach is consistent with the requirements of the *Evidence Act 2008* but s 137 of the *Evidence Act 2008* requires evidence to be excluded once the danger of unfair prejudice outweighs its probative value. It should be noted the common law will only apply where the defendant was not in custody of a police officer of the police force investigating the related offence when the pictures were examined.

If an appellate court concluded the trial judge was in error to find the defendant was in custody of a police officer investigating the related offence, s 115 would have been applied when it was not applicable.¹⁶¹ Where s 115 applies an appellate court could conclude:

- it was not open for a trial judge to find it was not reasonably practicable to make a picture of the defendant,¹⁶² not reasonable to conduct an identification parade;¹⁶³

- the trial judge was wrong to conclude defendant refused to take part in an identification parade,¹⁶⁴ the defendant's appearance had changed significantly¹⁶⁵ or the pictures did not suggest the persons where in police custody.¹⁶⁶

Whilst s 115 might provide some specific grounds of an appeal on the facts of a particular case, the enactment of the *Evidence Act 2008* does not appear to change the ultimate test to be applied on appeal. On an appeal from a conviction based on identification from photographs when an identification parade could have been conducted the question is whether on the whole evidence, and its treatment at the trial, it would be so unsafe and unsatisfactory to allow the conviction to stand that to do so would be a miscarriage of justice.¹⁶⁷

The use of a selection of photographs that do not suggest they are pictures of person in police custody¹⁶⁸ but are not good for the purposes of comparison is not of itself a sufficient ground for excluding the evidence. Prior to the *Evidence Act 2008* this was held to be so even though the photograph of the accused was the only passport photograph (the others being mug shots) and the only photograph of a person with a moustache. The police were held to have had no choice but to adopt this course and the evidence was admitted. It might be argued that if a feature such as a beard is an identifying factor in the mind of the identifying witness, such evidence should not be admitted as a general rule. To show the witness a group of photos where the accused is the only person with a beard would be little better than showing the witness only a photo of the accused. In Victoria, subject to s 115 of the *Evidence Act 2008*, it is a matter of discretion and other admissible evidence in a particular case may result in such identification from photographs being admitted.¹⁶⁹ However, s 115(2) makes picture identification evidence adduced by the prosecution inadmissible if the pictures examined suggest that they are pictures of persons in police custody. Further s 115(9) provides that s 115 applies in addition to s 114 and thus s 114(2) applies and picture identification evidence, like visual identification evidence, is inadmissible unless the identification is made without the identifying witness being intentionally influenced to identify the accused. It is unlikely the moustache scenario will be held admissible under the *Evidence Act 2008*.

Evidence of identification from security photographs (taken during the course of a crime) by persons familiar with the person they purported to identify is admissible.¹⁷⁰ This is so even where the face of the person in the photograph is obscured and the identification is made relying on familiarity with the clothing worn and stance of the offender in the photograph.¹⁷¹ Prior to the *Evidence Act 2008* even a suggestion to the witness by the investigating police that the person in the photograph may be the person known to the witness would not necessarily render the identification evidence inadmissible.¹⁷² It must be doubted whether this is the case under the *Evidence Act 2008*. Under s 114(2) visual identification evidence adduced by the prosecutor is not admissible unless the identification is made without the identifying witness being intentionally influenced to identify the accused and s 115(9) provides that s 115 applies in addition to s 114.

See also [\[ID.2080\]](#).

[ID.2340] Photofit evidence

A photofit is not identification evidence as defined in the Dictionary to the *Evidence Act 2008* as it is a visual description of the offender, not an assertion about the defendant. At common law a photofit or FACE (Facial Automated Composition and Editing) Image was admissible on the basis that it was to be treated the same as a photograph or by virtue of the rule that permits proof of prior identification.¹⁷³

The true position is in our view that the photograph, the sketch and the photofit are in a class of evidence of their own to which neither the rule against hearsay nor the rule against the admission of an earlier consistent statement applies.¹⁷⁴

Cross on Evidence added a word of caution:¹⁷⁵

A photograph of a suspect taken during a robbery is not hearsay, and a photofit picture is in the same position: it is not a “statement” to which the hearsay rule or the rule against prior consistent statements applies. This reasoning is not so strong in principle that it will inevitably be applied in Australia. For one thing, there are hearsay dangers in relation to a photofit picture which do not exist in relation to a photograph.

The position of photofit evidence pursuant to the *Evidence Act 2008* is that the evidence of the witness is original evidence of that witness’s state of mind, analogous to out-of-court identification from a photograph. This includes the selection of component features during the compilation of the final image, if recorded, and the assertion, if any, as to the resemblance between the photofit image and the offender or, in an unusual case, the defendant.¹⁷⁶ As noted, a photofit image is not “identification evidence” as defined by the *Evidence Act 2008*. It will depend on what the witness says about the final photofit image – it is only if the witness asserts the photofit image is or resembles the defendant, a person present or near the place of the offence or a related event that it is identification evidence. If the witness is merely asserting some of the features in the photofit or the final photofit image resembled the offender (rather than the defendant), as is most likely given a photofit will be created generally at an early point in an investigation, it is not identification evidence as defined.¹⁷⁷ It is open for jurors to compare the photofit image with the defendant and assess for themselves whether it resembles the defendant.¹⁷⁸ Logically once a photofit image is before the jury the jurors may, and almost certainly will, compare the image to the defendant before them regardless of whether the witness has asserted a degree of resemblance to the defendant.

Where a document recording a witness's observations, such as a description or features, at the time of the making of the photofit is to be adduced as evidence it is a previous representation, likely to be adduced to prove the existence of a fact the witness intended to assert by the representation, and is therefore first-hand hearsay.¹⁷⁹ It cannot be admitted unless it comes within an exception to the hearsay rule. Potentially the document may be admitted as an exception to the hearsay rule pursuant to s 66 or s 66A of the *Evidence Act 2008*. To be admissible, at the hands of the witness or a person who saw, heard or otherwise perceived the witness make the representations, it must be established the representations were made at a time when the asserted fact was fresh in the memory of the person making the representation. It is also necessary the person who made the previous representation has been or is to be called to give evidence. Thus it is possible a written document will be admitted setting out what the witness who created the photofit said about the description of the offender either as part of that witness's evidence or as part of the assisting police officer's evidence.¹⁸⁰ To be fresh in a witness's memory is a matter of fact and the central issue will be a question of the time between the occurrence of the fact and the time of making the representation about it – this is likely to be measured in terms of hours, days or even months but not years.¹⁸¹

A photograph of a police officer wearing clothes selected by a complainant as similar to those worn by her attacker, and with the photofit of the offender's face (composed by the complainant) superimposed on the body of the police officer has been admitted into evidence.¹⁸² The photofit had previously been published in a newspaper and four witnesses, including the accused's de facto wife, had immediately "recognised" it as a likeness of the accused. The evidence of these four witnesses was said to be admissible on the basis that if the photofit was admissible then oral evidence from a witness that a photofit is a likeness of the accused, was also admissible. This evidence was in effect the opinion evidence of four witnesses that the complainant's recollection of the offender, as expressed in the photofit, merely resembled the accused. The evidence of the four witnesses on this point was not admitted into evidence on the basis it was tenuous in the extreme and it would be unfair to the accused to admit it.¹⁸³ Pursuant to the *Evidence Act 2008* such evidence would not satisfy the lay opinion exception under s 78.

Where a witness has instructed police on the construction of a photofit likeness there is no reason why the witness should not subsequently be shown the accused in an identification parade or in a photograph display.¹⁸⁴ A photofit is another form of description given by a witness. The giving of a description has no bearing on the value of a subsequent identification parade or photograph identification other than the usual process of highlighting differences and inconsistencies between the description and appearance of the accused.¹⁸⁵ It might be argued that it would be inappropriate to refresh a witness's memory, either from the photofit or by taking them to their earlier verbal description, prior to an identification parade or photobook viewing. In this regard s 114(2) of the *Evidence Act 2008* renders visual identification evidence inadmissible if the identifying

witness has been intentionally influenced to identify the defendant. Depending on the particular circumstances, refreshing the witness's memory from a photofit they created might be said to be intentionally influencing the witness.

Clearly photographic and photofit evidence of identification will be excluded where its admission would be unfairly prejudicial to the accused or where public policy considerations require it to be excluded in the exercise of judicial discretion.¹⁸⁶ See [\[ID.2520\]](#).

[ID.2360] Voice identification – overview

The definition of “identification evidence” in the Dictionary to the *Evidence Act 2008* covers assertions the defendant visually, aurally or otherwise resembled, a person near the crime scene or related event. Voice identification is therefore covered by the requirements of [ss 116](#) and [165\(1\)\(b\)](#) of the Act. If the identification is partly aural and partly visual then [s 114](#) also applies.

Voice identification can either be by way of a witness's memory of a voice at the crime scene or can be by way of voice comparison. By far the most common form of evidence is where a witness attests that the voice of the offender they heard at the crime scene is that of the accused. Identification by way of voice comparison would generally involve the use of expert evidence to compare recordings of voices made at different times with a voice recorded at the crime. The use of telephone recording devices and other listening devices are subject to statutory control.¹⁸⁷ The Chief Commissioner's Instructions do not provide detailed instructions on the conduct of voice identification but refer police officers to the Crime Courses Unit.¹⁸⁸

Voice identification evidence, like visual identification evidence, is liable to exclusion at the discretion of the trial judge, see discussion at [\[ID.2520\]](#). Voice identification evidence, like visual identification evidence, will often require clear, strong and authoritative directions from the trial judge, see discussion at [\[ID.2540\]](#).

[ID.2380] Voice identification from memory

Voice identification from memory, like visual identification, falls into two categories – evidence of recognition where the witness of identification has exposure to the suspect's voice prior to hearing it at the crime scene (or on a recording made at the time of the crime) and evidence of identification where the identification witness has not been previously exposed to the suspect's voice but is able to hear the voice on a later occasion, such as a record of interview, and identifies the voice of the accused as the voice heard at the crime scene. Recognition or identification may involve a combination of voice and visual observation of the suspect.¹⁸⁹ See discussion at [\[ID.2180\]](#) as to recognition and identification evidence.

In Victoria the common law held voice identification by witnesses relying on their memory was admissible subject to the trial judge's discretion to exclude the evidence if it is prejudicial or unfair to the accused, or on public policy grounds. There was no requirement, as there once was in New South Wales, that evidence the voice of the accused was that of the offender could only be admitted where the witness was very familiar with the voice before hearing it at the crime scene, or where the voice heard at the crime scene was very distinctive and these distinctive features have been noted by the witness.¹⁹⁰ The Victorian Supreme Court rejected this approach and held these are matters that go to the weight of the evidence, not its admissibility per se.¹⁹¹

Nothing in the *Evidence Act 2008* changes the position and the conflict between the Victorian and New South Wales approaches to this question was resolved by the *Evidence Act 1995 (NSW)*.¹⁹² Pursuant to the *Evidence Act 2008* for the purpose of the exclusionary rules matters of credibility and reliability of the witness are not to be taken into account when assessing the probative value of the evidence¹⁹³ – see [ID.2520].

At common law the rules relating to visual identification were applied to aural identification with appropriate modification.¹⁹⁴ The *Evidence Act 2008* adopts this approach. The safeguards applicable to visual identification evidence are applicable to aural identification. The requirements of the *Jury Directions Act 2015* as to the trial judge's directions to the jury on identification evidence, and the discretion to exclude evidence if its probative value is outweighed by either its prejudicial value or other unfairness, apply to aural evidence.¹⁹⁵

It is the concept of a jury being “irrationally impressed” by certain identification evidence which is a proper discretionary basis for excluding some of that evidence where the means adopted are conducive to drawing false or unreliable and thus misleading conclusions.¹⁹⁶

The general principle in relation to identification evidence is that:¹⁹⁷

The police must produce evidence of an intermediate procedure through which an observer can be proved to have made a connection between his or her observations and the accused person in a fair and acceptable way. Although methods so far devised are imperfect, those which have best survived the concerns of the courts are identification by parade (or line-up), and identification by showing witnesses a selection of photographs (or photo-board).

This principle is equally applicable to voice identification evidence. It might be argued that the procedures applicable to identification parades and photo identification from photo-boards should be applied, with appropriate modification, to voice identification. In particular a witness ought be asked to identify the accused's voice in a process in which comparison is made with a number of

other voices. Typically witnesses are asked to look at a photo-board comprised of 12 photos and identification parades typically involve at least eight subjects. It is appropriate that witnesses be asked to listen a similar number of voices. Some support for this proposition is to be found in *R v Callaghan*,¹⁹⁸ where the Court of Appeal approved of the process whereby each identification witness was asked to listen to a tape comprised of the voices of 10 persons. Although it was not specifically stated by the court, it is clear the voices were separated on the tape and identified by reference to a number in the order in which they appeared on the tape. It is not clear from that case whether each of the 10 voices spoke the same words or phrases and whether they were words and phrases spoken during the course of the armed robbery. The circumstances in which an alleged voice identification is made are certainly matters for proper examination.

It has been said that the human ear provides a better means of identifying voices than any presently known machines and that the human ear interprets and integrates “sound stimuli in ways that are not capable of display or analysis by machine”.¹⁹⁹ It is clear that voice identification evidence should not be regarded as a field of evidence in which only expert evidence is admissible, although evidence given of the comparison of voices and not from memory may require expert evidence. Indeed friends or relatives may have the best chance of identifying a person's voice.²⁰⁰ See also discussion of voice comparison based on repeated listening to recordings at [ID.2400] “Voice identification by voice comparison”.

Testing voice identification evidence will involve matters particular to the identification in question. There are a number of factors that are logically relevant to the cogency and therefore admissibility of such evidence:

- the witness's familiarity with the voice;
- the distinctiveness of the voice;
- the clarity with which the voice was heard on the relevant occasions;
- the time which elapsed between the occasions when the voice was heard; and
- the quality of any recording that might be involved.

It has been observed that there are relatively few means of distinguishing voices. A non-exhaustive list included:²⁰¹

[I]ntonation, accentuation, the quality and duration of segmented sounds (ie vowels and consonants), speed, expressed or apparent emotions, and dialect and “sociallect” (ie pronunciation). The choice of words and syntax may be another means of identifying a person but strictly they do not enable his voice to be characterised.

Whilst this list may appear more apt to expert evidence, a friend, relative, or person with prolonged familiarity with the voice may be able to recognise the voice without being able to analyse their reasons for doing so.

As with visual identification from a person's physical features the words used by the witness to make the "identification" based upon the sound of a voice must properly be characterised as words of identification. Thus evidence that the voice "sounds like" are not words of positive identification.²⁰² However, it does not always follow that the evidence a voice "sounds like" the accused, or that the accused's voice sounds like a voice heard during the commission of the offence, will be excluded from evidence.²⁰³ In the circumstances of a particular case "evidence falling short of positive identification may nevertheless be of significance, having regard to the whole of the evidence".²⁰⁴

A combination of direct and circumstantial evidence will often be relied upon in support of the prosecution's contention that the voice recorded on a listening device is that of the accused. Commonly evidence from video surveillance of persons entering and leaving the premises where the listening device is installed, records in personal address books, self-identification or identification by other speakers recorded on the listening device, etc is relied upon by the prosecution. In appropriate cases a circumstantial evidence direction will be required. The distinction between direct and circumstantial evidence, and the different uses to be made of such evidence, must be made clear to the jury.²⁰⁵

[ID.2400] Voice identification by voice comparison

The other means of voice identification is by comparing voices where the listener has no previous knowledge of the voice. This is opinion evidence subject to the general exclusion contained in the opinion rule in [s 76 of the Evidence Act 2008](#). See discussion of opinion evidence at [\[ID.2500\]](#). "Opinion" is not defined in the Act but has been defined in general law of evidence as an inference drawn from observed and communicable data.²⁰⁶ Where an opinion is based on what a person saw, heard or otherwise perceived, and evidence of their opinion is necessary to obtain an adequate understanding of the person's perception of the event, the evidence is prima facie admissible subject to the exclusionary rules.²⁰⁷ Generally such evidence will not involve expert opinion on the comparison of the voices. To be admissible it must be relevant and if the person giving evidence of the identification by means of comparison is in no better position to make the comparison than the jury then the evidence should not be admitted.²⁰⁸ There are circumstances where a jury may make such a comparison between a recorded voice and the voice of the accused in court. This may occur without there being any evidence suggesting that such a comparison is contented for by the prosecution or the defence. The jury may, if the circumstances permit, compare a voice speaking in English with a voice speaking in a foreign language with which the jury is not familiar. The jury may also compare the voice of the accused heard whilst they gave evidence with a voice speaking in a foreign language recorded on a telephone intercept.²⁰⁹

Given that the human ear is said to be the best instrument for identifying human voices then the safeguards applying to voice identification from memory ought logically to apply to voice identification by way of comparison where no memory is involved. In *Bulejck v The Queen*²¹⁰ the High Court dealt with a situation where, after the close of the evidence, the jury called for, and had played to them, the “in-court” recording of the accused's unsworn statement to the jury. The High Court accepted that the jury did this to compare the voice on the “in court” recording with the voice on tapes alleged to have been made by undercover police of meetings with the accused. The court was divided in its reasons for quashing the conviction and ordering a retrial. Toohey and Gaudron JJ held that the jury were entitled to listen to the tape recording of the unsworn evidence as the sound of the accused's voice was real evidence and non-testimonial.²¹¹ They held, however, that the directions to the jury were inadequate in that the trial judge did not alert the jury to the difficulty in making such a comparison and provide a strong warning to the jury as to the dangers inherent in making such a comparison.²¹² McHugh and Gummow JJ proceeded on the basis that the jury were using the “in-court” recording as “real evidence”, and that as such it could only be permitted to be relied upon after it had been admitted into evidence. This necessarily required the defence test the evidence, call evidence in rebuttal, and address the jury on the significance of the evidence. In the circumstances this would require the prosecution to seek leave to re-open its case.²¹³ It is implicit in what was said by McHugh and Gummow JJ that proper directions would have to be given to the jury along the lines stated by Toohey and Gaudron JJ.

Voice comparison is involved where an interpreter, who has been required to interpret and translate large numbers of telephone intercepts or listening device recordings, gives evidence that the voice in certain recorded conversations is the same voice he or she heard in other recorded conversations. Subject to the adequacy of the basis of the comparison such evidence is admissible. It is not necessary that the person making the comparison is an expert in voice comparison, although this may be the basis of a valid objection in the circumstances of a particular case. The jury may of course make their own assessment, assisted by the evidence of the interpreter, if the recordings are played to them.²¹⁴ The question is whether there is material of sufficient quality and quantity available to the jury for them to make their own comparison. That question should properly be a question for the trial judge and it follows that if the matter is left to the jury a sufficient warning of the difficulties and dangers involved should be given.²¹⁵

In the absence of formal qualifications derived from a specialised course of training or study, evidence of voice comparison has been admitted on the basis that the interpreter was properly considered an “ad hoc” expert. It is necessary to consider the circumstances of each case to determine whether a classification as an “ad hoc” expert is sufficient to justify the admission of the opinion evidence sought to be led. Voice identification by way of comparison based on ad hoc expertise is rarely done by way of blind comparison but generally this will go to weight,

not admissibility.²¹⁶ Even when the comparison involved voices speaking in different languages it has been admitted as ad hoc expert evidence.²¹⁷ The circumstances relating to the quality of the recordings being compared and the manner in which the request to undertake the comparison exercise is made are certainly relevant to the weight to be given to the ad hoc expert opinion, and in appropriate cases may provide the basis upon which a court would not admit the opinion into evidence. Generally the making of the request to undertake the comparison will not have been recorded in any form. The danger the request to the ad hoc expert to compare the recorded voices may inevitably suggest that the voices are of the same person or persons could render the opinion highly prejudicial.

Critics maintain a rigorous approach to expert evidence has been subverted by the expansion in use and scope of these “ad hoc” experts and point to the absence of formal evaluation of the techniques used and abilities asserted. They argue courts should not encourage the speculative opinion of police investigators and others:²¹⁸

Let alone treat them as expert evidence, in criminal proceedings. Attention must be focused on specialised knowledge (and indicia of reliability) because attention to the requirements of [s 79\(1\)](#) provides means of enabling expert opinions to be evaluated. Inattention to specialised knowledge, and therefore evidence of ability and performance, means the evaluation of expert opinions depends on impressions of demeanour, credibility, (apparent) impartiality and (untested) experience

Recourse to ad hoc experts represents an inappropriate relaxation of important rules (and protections) for reasons of convenience and expediency to the state. ... it is incredibly difficult to contest the incriminating opinions of police officers and others when they can simply acknowledge that they have not studied the technique, do not know about relevant literatures, have never been tested, but nonetheless sincerely believe the accused is the person in the voice recording or incriminating image.

Assessing the evidence of an expert witness necessarily begins with the report of the evidence to be adduced. An “Expert witness code of conduct” is contained in Rule 44 and [Form 44A of the Supreme Court \(General Civil Procedure\) Rules 2005 \(Vic\)](#) and includes, at clause 3 of Form 44A, the requirements for an expert’s report. The 2014 Supreme Court Practice Note No 2, “Expert Evidence in Criminal Trials”, now provides similar requirements for expert evidence, including the content of expert and forensic reports. These requirements provide a sound basis for beginning an evaluation of whether the evidence will meet the requirements for admission as opinion based on specialist knowledge. Invariably where the prosecution seek to rely upon an “ad hoc” expert the only form of report is a witnesses statement setting out the evidence proposed to be relied upon. The absence of a report complying with the requirements of the Supreme Court Practice Note No 2 may serve as a significant warning as to the insufficiency and potential unfairness of the proposed

evidence. More, not less, rigor should apply in a criminal proceeding to that which applies in civil proceedings. Practice Note No 2 extends requirements related to pre-hearing discussion of expert evidence, consecutive or concurrent evidence, service, access and other important matters. The High Court has emphasised the importance that the opinion is presented in a form that enables the question, of how the opinion applies to the fact in issue, to be answered:²¹⁹

...it remains useful to record that it is ordinarily the case, as Heydon JA said in *Makita*, that the expert's evidence must explain how the field of "specialised knowledge" in which the witness is expert by reason of "training, study or experience", and on which the opinion is "wholly or substantially based", applies to the facts assumed or observed so as to produce the opinion propounded.

In practice the evidence of an ad hoc expert often would not meet these requirements. In *Honeysett* (2014) 311 ALR 320; (2014) 88 ALJR 786; [2014] HCA 29, an identification case based on anatomical comparison, the High Court concluded the evidence was not based on specialist knowledge. It held the question whether repeated listening to an indistinct tape recording or viewing of a film, by an "ad hoc" expert, could form the basis of specialised knowledge did not arise for determination as the Crown conceded the witness in question was not an ad hoc expert.²²⁰

Weeks after the High Court's decision in *Honeysett* (2014) 311 ALR 320; (2014) 88 ALJR 786; [2014] HCA 29 the Victorian Court of Appeal handed down its reasons in *Kheir v The Queen* [2014] VSCA 200.²²¹ The Court of Appeal noted the distinction between expert evidence admitted to interpret or explain the content of conversations the jury would otherwise find unintelligible or incomprehensible, such as a transcript prepared by repeatedly listening to a poor quality recording,²²² and evidence of voice comparison based on repeated listening to recordings.²²³ The Court referred to *R v Harris (No 3)* [1990] VR 310²²⁴ and observed that voice recognition is not regarded in Victoria as a field of expertise about which only experts may give evidence.²²⁵ The Court of Appeal expressed reservations about the reasoning in *Leung's* (1999) 47 NSWLR 405; [1999] NSWCCA287; (2003) 139 A Crim R 281; [2003] NSWCCA 290 case that "an ad hoc expert" may fall within the exception created by s 79 of the *Evidence Act 2008* and the related reasoning in regard to s 78.²²⁶ Rather the court in *Kheir* [2014] VSCA 200 considered the evidence, based on repeated listening to telephone intercept recordings and comparing the voices to those on the records of interview with the accused, was opinion evidence that came within s 78 of the *Evidence Act 2008*. The opinion of the witness was based on what they heard about a matter and the evidence of the opinion was necessary to obtain an adequate understanding of the person's perception of the matter. Not all evidence, including identity evidence, will have a factual basis which is capable of clear explanation and s 78 provides for the opinions necessary to give

understanding of the witness's perception to be admitted.²²⁷ The court in *Kheir* [2014] VSCA 200 observed:²²⁸

The present case was not one in which an expert was asked to give an opinion on facts provided to him for that purpose. It is difficult to see how a scenario such as this one can be meaningfully distinguished from one of long-held personal familiarity with an individual's voice, such as might arise out of a friendship or a long-term neighbourly acquaintance. It is not, we think, correct to say that repeated exposure to the voice of a friend or neighbour makes a person an "expert" in that voice.

...

If, however, the giving of identification evidence were to be regarded as an expression of opinion, we doubt that such evidence would need to satisfy the requirements of s 79, rather than the exception in s 78.

Nevertheless, the court proceeded on the assumption s 79 governed the admissibility of the voice identification in issue. It held the fact the "no comment" record of interview was not tendered did not mean the factual basis for the expert evidence had not been proven as required by s 79. The witness gave evidence of the factual basis for his opinion, the comparison between the telephone intercept recordings and the record of interview, to the jury. The record of interview was played to the jury but was not tendered as the accused objected to its tender as irrelevant as it contained no admissions.²²⁹

In *Kheir* [2014] VSCA 200 significant circumstantial evidence pointed to the identity of the voice on intercepts being the appellant's.²³⁰ Arguably this additional circumstantial evidence, if accepted by the jury, must have played a significant role in its evaluation of the informant's opinion the voice of the appellant in his recorded police interview was the same voice as the male on the telephone intercepts. The informant spent approximately 4 weeks, in 8 hour shifts listening to over 1000 intercepted calls. Although not discussed by the Court of Appeal in this context, the informant's opinion combined with the other circumstantial evidence tends to reinforce the Courts view that the voice comparison of the informant was not evidence based on specialised knowledge but a perception the voices belonged to the same male person in the same way a person could compare the voice of a friend to the voice on a telephone intercept. One should expect expert evidence to stand or fall on its own, either the jury accepts the expert opinion or it does not. On the other hand a witness's perception may be reinforced by other circumstantial evidence. Whilst it may be difficult to isolate the factors that enable a person to say that is the voice of my friend their opinion is a necessary part of their evidence in order to understand what they perceived. Similarly, the informant having listened to approximately 1000 intercepted calls perceives the voice to be the

voice on the recorded interview and the jury are assisted in assessing his evidence of this perception by placing it in the context of the other circumstantial evidence pointing to the same conclusion.

If this approach is correct, the issue of voice comparison based on repeated listening to a recorded voice rather than familiarity with the speaker first hand must focus on the circumstances of the recorded voice compared to live speech, the degree of familiarity, any distinctive features present in the voice or language / words used, the presence or absence of other compelling circumstances pointing towards or contrary to the conclusion the voices belong to the same identified speaker, etc. On this approach the issues of expert voice comparison become confined to matters relating to comparison of voice pitch, modulation, tone, accent, perhaps unique pronunciation of particular words, etc using scientific instruments to make relevant comparisons. As with body mapping, evidence of an opinion on the ultimate question, in the case of expert voice comparison that the speaker is “X” (the accused), requires a body of recognised specialist knowledge and a sufficient relevant data base to enable the opinion to be expressed/quantified with a meaningful degree of confidence.²³¹ See discussion of body mapping evidence at [\[ID.2500\]](#) “The opinion rule – specialised knowledge and expert evidence of identification”.

The issues relating to “ad hoc experts” and whether such expertise can satisfy the requirements of opinion based on specialised knowledge by [s 79 of the Evidence Act 2008](#) has not been finally resolved by the cases of [Honeysett \(2014\) 311 ALR 320](#); [\(2014\) 88 ALJR 786](#); [\[2014\] HCA 29](#) and [Kheir \[2014\] VSCA 200](#). In Victoria at least it would appear such opinion will be admissible under [s 78](#) provided the opinion is necessary for the jury to obtain an adequate understanding of the witness’s perception of the voices’ similarity.

Of course, as noted in relation to [Kheir's case \[2014\] VSCA 200](#), the prosecution may rely on a number of other factors to support an inference that the voice is that of the accused. Matters such as observations of the presence of the accused in a car or premises at the time a listening device recorded the conversation, details of possession or ownership of the mobile telephone at the relevant time, and other matters of this nature might provide the basis for the inference contended for by the prosecution.²³²

Where the exercise is one of voice comparison rather than identification from memory then clearly the quality and quantity of the material to be compared is significant. The similarity in the circumstances under which the recordings were made and the number of similar words used on each recording is also of significance. The circumstances and the instruments used to playback the recordings may also be significant. The non-exhaustive list of matters set out in “Voice identification from memory”, above would also have relevance. Whether some or all of the recordings were illegally obtained is relevant – see [s 138 of the Evidence Act 2008](#).

[ID.2420] Other forms of sensory identification

Although it occurs rarely, it is also possible that one person may identify another relying on senses other than, or in addition to, sight or sound – such as touch, smell or taste. In *AK v Western Australia*,²³³ Heydon J considered whether on the facts in the case before the High Court it could be said the complainant identified the appellant, her younger male cousin, by touch. In reaching the conclusion she did not identify the appellant in that way, he noted she had not given evidence of any peculiar feature of the sensation of being touched that enabled her to say it was the appellant who touched her. He concluded:²³⁴

While it may be hard (although it is not impossible) to isolate some of those aspects of touching which enable identification by touch, the fact remains that the complainant never sought to say that her identification was based on touching. And if the complainant's confidence that it was the appellant who touched her was a form of perception based on a combination of sensory experiences and intuition, she did not identify what the sensory experiences were, or, even assuming that “intuition” can be admissible, what the basis for the intuition was.

Heydon J noted that although the complainant had been described as never wavering, entirely unshaken and steadfast in maintaining it was the appellant who touched her, it was necessary to assess her evidence rationally.²³⁵ His Honour observed she gave no reason why the evidence was of probative value other than by reference to the position of the children (the complainant, her sister and two male cousins) when they went to sleep. He concluded the complainant's evidence on this matter could not be rendered admissible or of probative value by reference to the difficulty of explaining intuition, embarrassment, shame or lack of sophistication.²³⁶ In contrast Gleeson CJ and Kiefel J in their joint judgment described the identification evidence of the complainant as being of a kind that is not a process of logical reasoning but rather based on a combination of sensory experiences and perhaps intuition.²³⁷ It should be noted that at trial the appellant conceded there had been sexual relations between the complainant and himself on other occasions.

Although not specifically addressed in *AK v Western Australia* a warning to the tribunal of fact, appropriate to the circumstances of the instant case, would be required.

[ID.2440] Identification issues – in-court demonstrations by accused

On occasions an accused person giving evidence is asked in cross-examination to put on items found at the alleged crime scene, or seized during a search of premises related to the accused, to say words alleged to have been said by the offender during the commission of the offence or to walk in front of the jury. Such evidence is not identification evidence as defined in the Dictionary to the *Evidence Act 2008*, rather it is evidence which enables the jury to compare the accused before them with other evidence relating to the description of the offender. In *Evans v The Queen*²³⁸ the

High Court was split on whether such evidence was relevant. All members of the court held that a balaclava and pair of overalls found at the accused's home and said by witnesses to be similar, to varying degrees, to those worn by the offender were relevant and properly tendered.²³⁹ All members of the court, except Kirby J, held that it was relevant and permissible to ask the accused to walk in front of the jury and say words alleged to have been said by the offender, including the word "serious" said by one witness to be mispronounced by the offender.²⁴⁰ The court split on whether the accused could be asked in front of the jury to put on the balaclava and overalls found at his home, and the prosecutor's sunglasses (which were not tendered in evidence). In a joint judgment two of the five justices concluded such evidence was irrelevant and inadmissible because no witness asserted they could identify the offender wearing balaclava, overalls and sunglasses by looking at him during the commission of the offence or on security photographs of the incident at a later stage. The observations made of the accused wearing those items in front of the jury enabled a comparison of no more than the items the accused put on with the items as depicted in the security photographs. The jury was already able to undertake that exercise as the security photographs, balaclava and overalls, but not the sunglasses, were tendered in evidence and had been shown to at least seven prosecution witnesses who had observed the offender at the time and gave evidence as noted above.²⁴¹ Heydon J, with whom Crennan J agreed, held that the wearing of the balaclava, the speaking of the word "serious" and the walking in overalls were all relevant and admissible and were just as capable of assisting an accused as they were of assisting the prosecution case.²⁴² Heydon J held that save in one way those events, performed in front of the jury, in no respect created any danger of unfair prejudice to the accused. He further held they were no more than techniques for highlighting the features of resemblance the accused may or may not have had with the offender, were not acts requiring to him to demonstrate what happened but simply involved him revealing whether features of his appearance were similar to those attributed to the offender.²⁴³ In a strongly worded dissent with the joint judgment on the question of relevance Kirby J, while agreeing with Heydon J on the relevance of the evidence, held the process was a demonstration in the common law sense of an "in-court" demonstration and requiring the accused to "dress in court in the presence of the jury as a villain, should not be allowed".²⁴⁴ He said the Court should insist on a return to basic standards of fairness in the way the prosecution conducted trials and the process of requiring an accused to dress up like the offender should be disallowed in the clearest terms.

Kirby J held that the matters set out in [s 53 of the Evidence Act 1995 \(NSW\)](#) to direct the court when considering demonstrations out-of-court reflected the common law principles to be applied in the case. Thus the court must consider whether an in-court demonstration:

- will assist the court resolve issues of fact or gain an understanding of the evidence;
- might be unfairly prejudicial, misleading or confusing;
- might unduly waste time; and
- would properly reproduce the conduct or event to be demonstrated.²⁴⁵

While it might be argued that the High Court has not provided much assistance to trial courts by the various reasons for decision in *Evans v The Queen* it is nevertheless clear that asking an accused to wear the guise or disguise of the offender in the presence of the jury is fraught. The majority in *Evans v The Queen* allowed the appeal and ordered a new trial, albeit for different reasons.²⁴⁶

[ID.2460] Identification of objects

As noted the *Evidence Act 2008* definition of “identification evidence”²⁴⁷ does not include evidence of the identification of objects.²⁴⁸ Nevertheless, in the context of a particular case evidence of the identification of an object may be relevant and therefore admissible. *R v Theos*²⁴⁹ is one of a number of cases dealing with weapons and other objects linked to the accused as “tools of trade”. It is circumstantial evidence based on the accused having access to weapons etc of the same kind used in the alleged offending. It may be admissible on the particular facts if it goes beyond being merely evidence of propensity. The principles governing admissibility are well established:

First, evidence of items that could have been used in the commission of the crime charged, and which are found in circumstances connected to the offender, will ordinarily be admissible. Such evidence may be a description of the item by a witness to the crime, or it may be evidence that otherwise connects the item to the crime ...

Second, where the evidence is clear that the items were not used in the crime, the evidence is inadmissible. If there is an absence of evidence of similarity or resemblance of the items found to those used in the crime charged, the items will throw no light on the probability that an offender committed the crime charged, and hence the evidence has no probative value. The evidence is no more than evidence of a particular criminal propensity and the means to indulge that propensity, and is inadmissible ...

Third, where there is tenuous evidence that the items may be connected to the crime, the evidence, though admissible, may be excluded under s 137 of the *Evidence Act 2008* where its prejudicial effect outweighs its probative value.²⁵⁰

Some significance may attach to whether the prosecution have provided an opportunity for a witness to identify the items from a selection of similar items as part of the investigation and whether the witness is given the opportunity to identify the item whilst in the witness box. Failure by the investigator or the prosecutor to do so will not necessarily mean the evidence is inadmissible. It is not unusual for a witness to be shown an item for the first time when giving evidence. It would only be excluded if the probative value of the evidence was outweighed by the danger of unfair

prejudice to the accused. The position may be very different where the prosecution intend to lead evidence of positive identification of an item.²⁵¹

Evidence of objects linked to the accused as “tools of trade” is not the same as evidence admitted under the “principle of completeness” where evidence not otherwise admissible may be led if necessary to enable a jury to understand what has occurred.²⁵² Nevertheless, the two concepts are closely related with the “principle of completeness” likely to have broader application than evidence of “tools of trade”.

Evidence of object identification may require a jury warning. However, the *Jury Directions Act 2015* governs the situation in Victoria. The definition of “identification evidence” includes an assertion regarding the identity of a relevant object.²⁵³ The common law rules were abolished by the Jury Directions Act; however, earlier common law cases may provide some assistance by way of analysis.²⁵⁴

[ID.2480] Identification by tracker dogs

Identification by tracker dog is not “identification evidence” as defined²⁵⁵ in the *Evidence Act 2008* as it does not involve an assertion by a person the defendant was or resembles a person present at or near the place of the offence or related event.²⁵⁶ The Chief Commissioner's Instructions contain specific instructions for the deployment of the Police Dog Squad, although most of the instructions are directed to narcotic and explosive detector dogs.²⁵⁷

[ID.2500] The opinion rule – specialised knowledge and expert evidence of identification

See discussion at [\[ID.3180\]](#) and at [\[EA.PT3.3.20\]](#)–[\[EA.80.20\]](#) regarding opinion evidence. It has been observed in the context of visual identification evidence that if a distinction must be made between fact and opinion:²⁵⁸

it can only be one of degree, calling for a decision as to whether, on a continuum which is unmarked and for which there is no exact measure, particular testimony has passed the point where it has become evidence of an opinion.

Critics assert that at times the consideration of expert evidence is so perfunctory, and its preparation and analysis so constrained, it is impossible to know whether the evidence is relevant. It has been observed:²⁵⁹

The state has obligations to evaluate techniques, particularly techniques in regular use, and certify the analysts it relies upon. Superimposed over such expectations is the criminal

justice system's peculiar concern with truth and fairness, the presumption of innocence, and the need to prove guilt beyond reasonable doubt.

The opinion rule, set out in [s 76 of the Evidence Act 2008](#), is a rule of general exclusion of evidence of opinion. Exceptions to this exclusionary rule are set out in [ss 77–79](#) and [s 80](#) abolishes the ultimate issue and common knowledge rules. Opinions based on specialised knowledge arising from a person's training, study or experience are admissible, despite the opinion rule, to the extent the opinion is based wholly or partly on that knowledge.²⁶⁰

Assessing the evidence of an expert witness necessarily begins with the report of the evidence to be adduced. The required content of an expert report is set out at paras 4.1 and 4.2 of the *Victorian Supreme Court Practice Direction No 2 of 2014 – Expert Evidence in Criminal Trials*. Notably, para 2.1 sets out the expert's duties to the Court and stipulates an expert witness has an overriding duty to assist the Court impartially on matters relevant to the witness's specialised knowledge and an expert witness is not an advocate for a party. The requirements for a report provide a sound basis for beginning an evaluation of whether the evidence will meet the requirements for admission as opinion based on specialist knowledge.

Expert evidence as to the possible unreliability of eye witness identification evidence is not likely to be admissible:²⁶¹

It is doubtful in the extreme that expert evidence concerned with eyewitness identification generally will assist a jury in determining whether or not it would be safe to act upon the evidence of any particular eyewitness to any substantially greater extent than that which could be achieved by a full and accurate instruction by a trial judge.

[Ali v The Queen \[2022\] VSCA 31](#)²⁶² the prosecution called evidence from an expert witness in rebuttal on the issue of 'unconscious transference'. 'Unconscious transference' was said to arise when a person sees somebody and mistakenly attributes that sighting to a different person they had seen earlier. In [Ali \[2022\] VSCA 31](#) the complainant had given a description of her assailant that did not match the accused, but had significant similarity to a witness and neighbour of the complainant who gave evidence he came out of his house and called out to the complainant as she fled from her assailant. The complainant did not stop in response to her neighbour's call. She later told police she did not know who the person she saw in the street was, and was not sure it was her assailant. Significantly, it appears from the Court of Appeal decision the complainant never identified the accused as the person she described and, on strict analysis, her description was not evidence of identification. The accused argued the complainant was an entirely reliable and credible witness and her description of her attacker ought to be accepted. The Court of Appeal accepted the expert witness' evidence ought not to have been admitted as it created an unfairness for the accused

because the complainant was not recalled to enable her evidence to be tested by the accused in light of the rebuttal evidence. The expert witness' evidence was of a general nature in the sense it did not involve any assessment of the complainant. The Court concluded the prosecution had not established any evidentiary foundation for the application of the expert evidence. Whilst the Court did not determine whether the expert evidence was inadmissible because of its general nature, it stated it was inclined to the view it was not rendered inadmissible on this basis. Nevertheless, the Court was not satisfied this irregularity in the trial resulted in a substantial miscarriage of justice and dismissed the appeal.²⁶³

In *Winmar v Western Australia*²⁶⁴ the five justices of appeal, on the issue of appropriate identification warnings for juries, considered material from books and journals concerned with scientific research into the process of identification produced to the court by the parties. In doing so, the justices applied a specific Western Australian legislative provision and observed there were significant dangers in an appellate court referring to untested and selective scientific material.²⁶⁵ Nevertheless, the justices considered issues raised by the scientific material when considering:²⁶⁶

- the desirability of “fillers” closely resembling the suspect;²⁶⁷
- whether identification parade evidence might be adversely impacted by the demeanour of the suspect compared to the more relaxed “fillers”;
- memory deterioration over time;
- relative judgment arising from viewing all participants in a parade or all photos simultaneously compared to judgment based on sequential viewing of participants or photos;
- the advantages relative identification may have in the case of child witnesses;
- the strength or weakness of the relationship between the description provided by a witness and the accuracy of the witness's subsequent identification; and
- whether there is a relationship between the speed of a witness's identification and the accuracy of that identification.

Whilst the appellate court was not dealing with evidence in the sense in which a trial court and jury would if considering expert evidence on the reliability of eyewitness identification evidence, the discussion demonstrates the importance of understanding human behavioural issues when assessing how to present, test and evaluate identification evidence. It is not an issue of expert evidence in the trial context rather the issue is setting appropriate protocols for conducting these investigative procedures and how to present or test the evidence so as to highlight potential strengths or weaknesses in the eyewitness identification evidence.

There is evidence post-identification feedback given to an eyewitness that their identification decision was correct can distort their reports of confidence and the circumstances surrounding the witnessed event and the identification process (hindsight bias). The distortion from positive feedback appears greatest for subjective variables such as the eyewitnesses' assessments of their confidence and ability to identify strangers. On the other hand, objective measures associated

with identification such as time to make the observation and distance from the subject of the observation are not significantly affected by positive feedback to the identifying eyewitness.²⁶⁸ Other research indicates that for positive identification parade decision, but not for identification parade rejections (ie where witness does not select a person), highly confident, rapid decisions accompanied by relevant recollections are more likely to be accurate than decisions made with low confidence, slowly or absent relevant recollections. Confidence-accuracy measured immediately after identification has been found to be a meaningful guide to accuracy for adult witnesses, but not children.²⁶⁹ Some psychologists argue research indicates sequential viewing, as opposed to viewing all subjects in a single viewing, of identification parade participants and photo-board images combined with time limits for viewing each subject and asking the witness to rate their confidence of similarity or match with the offender produces more accurate identification results.²⁷⁰ The Innocence Project in the United States argues that sequential presentation of identification parade subjects significantly increases overall accuracy of eyewitness identifications and that “sequential double blind” procedures ought be adopted as standard protocol by investigative authorities.²⁷¹ Psychological analysis and evidence of unjust outcomes have significant implications for protocols governing the conduct of investigations, presenting and testing eyewitness identification evidence and judicial instructions and warnings to the tribunal of fact. Strong arguments can be made for an overhaul of identification investigation procedures for the conduct of both identification parades and photo-boards.

The concerns regarding expert evidence regarding human behaviour and identification is to be contrasted with a growing area of expert evidence based on facial and body mapping in the field of forensic anatomy. This area of expertise involves morphological analysis (facial and body mapping or feature by feature analysis of faces, heads and bodies), photographic superimposition (overlying two comparable enlarged images) and photo-anthropometry (comparing the proportional relationship of one photo to another using facial or body mapping features). Needless to say this type of expert evidence remains controversial, but has been recognised as an area of expertise and on occasions has been admitted into evidence. In the Northern Territory evidence based on both morphological analysis and photographic superimposition was admitted in the Falconio murder trial. The defence did not challenge the expertise of the witness nor the scientific basis of her work in cross-examination, but submitted her evidence was not admissible on the ground that such a field of scientific expertise should not be recognised in Australia, the jury were in just as good a position to make the comparison of features for themselves and, alternatively, her evidence should be limited to the comparison of features but she should not be allowed to give evidence of her opinion that the accused was the person in the video.²⁷² In that case Martin CJ referred to four English authorities where the Court of Appeal had upheld the admission of expert evidence of facial mapping and in each case concluded the jury were not in a position to make the comparison for themselves.²⁷³ The evidence, including her opinion based on the comparison of features, was admitted in the Falconio murder trial as expert evidence of facial mapping meeting

the criteria of a body of knowledge sufficiently recognised to be accepted as a reliable body of knowledge or experience. This finding was extended to include body mapping or face and body mapping as an extension of the well-recognised and accepted principles of facial mapping.²⁷⁴ On appeal to the Northern Territory Court of Criminal Appeal held: the evidence of facial mapping, falling short of positive identification and not including the conclusions based on opinion, was a recognised and accepted field of specialised knowledge and admissible.²⁷⁵ However, the trial judge erred when he accepted that body mapping or face and body mapping had a sufficient scientific basis to qualify as a proper subject of expert evidence and also in finding the witness was able to give opinion evidence that the person in the truck stop video was the accused Murdoch. Despite finding the body mapping evidence and the opinion of the expert witness on the ultimate question of identification was wrongly admitted, the Northern Territory Court of Criminal Appeal held it did not amount to a substantial miscarriage of justice – it accepted the Crown submission that the case against Murdoch remained compelling, largely because of a DNA match between Murdoch and a blood stain sample taken from the clothing of Falconio’s girlfriend, Ms Lees, and evidence of other witnesses of the similarity between the man in the truck stop video and the accused.²⁷⁶

The New South Wales Supreme Court conducted a detailed examination of this type of evidence and the area of expertise referred to as facial mapping and body mapping.²⁷⁷ Significantly the expert witness was the same expert “Forensic Anatomist specialising in Facial Identification” used in the Falconio murder trial. The New South Wales Supreme Court held that the witnesses’ evidence of similarities between the two sets of photos, based on identification and magnification of still photos from a crime scene video, involved a process that could not be undertaken by the jury itself and was properly based upon the witnesses’ skill and training. Indeed the court considered that she was properly considered an “ad hoc expert” based upon her repeated examination of the video and the detailed and magnified images in the instant case. The evidence of similarities was admissible and indeed its admissibility was not challenged by the accused on his appeal.²⁷⁸ However the three types of opinion evidence she had given, based on her evidence of similarities, was challenged on appeal. The witness did not identify the terms of the “strict protocols” she said she applied, did not set out the basis on which the protocol was developed and insisted the information was confidential due to her patent application. The New South Wales Supreme Court concluded the three types of opinion evidence given by the witness were not admissible as they were merely assertions based on her own authority as an individual (*ipse dixit*).²⁷⁹ In doing so it cited English authority from the Court of Appeal, Criminal Division, which, after referring to the national databases and mathematical formulae used in fingerprint identification evidence, concluded:²⁸⁰

This court is not aware of the existence of any such database or agreed formula. In their absence any estimate of probabilities and any expression of the degree of support provided by particular facial characteristics or combinations of facial characteristics must be only

the subjective opinion of the facial imaging or mapping witness. There is no means of determining objectively whether or not such an opinion is justified. Consequently, unless and until a national database or agreed formula or some other such objective measure is established, this court doubts whether such opinions should ever be expressed by facial imaging or mapping witnesses. The evidence of such witnesses, including opinion evidence, is of course both admissible and frequently of value to demonstrate to a jury with, if necessary, enhancement techniques afforded by specialist equipment, particular facial characteristics or combinations of such characteristics so as to permit the jury to reach its own conclusion – see *Re Attorney-General's Reference (UK) (No 2 of 2002)* [2003] 1 Cr App R 321; [2002] EWCA Crim 2373; but on the state of the evidence in this case, and if this court's understanding of the current position is correct in other cases too, such evidence should stop there.

Comparison of the anatomical characteristics of the offender recorded on CCTV from a crime scene involving two offenders with those of the accused recorded on film taken whilst he was in custody was the subject of appeal to the High Court in *Honeysett v The Queen* (2014) 311 ALR 320; (2014) 88 ALJR 786; [2014] HCA 29.²⁸¹ It was alleged the accused was offender one. The prosecution called an expert witness, Professor Henneberg, whose area of specialised knowledge was biological anthropology and anatomy. Offender one's body was covered with clothing, head wrap and gloves with an area of naked skin visible between the sleeve and glove. The accused was also clothed in the custody film but apparently was not wearing gloves or a head wrap. It appeared from the films offender one and the accused were right-handed. The accused was aboriginal. A witness to the offence said the offender one had dark skin and Professor Henneberg gave evidence, based on the custody film, the accused skin was darker than Europeans but not black. Significantly, Professor Henneberg gave evidence relating to the body shape (ectomorphic), head shape (dolichocephalic), posture, hair length and gender of offender one and the accused. He opined there was a high degree of anatomical similarity between the two individuals and stated his opinion was strengthened by the fact he was unable to discern any anatomical dissimilarity between the two. The High Court observed his methodology was not based on anthropometric measurement or statistical analysis but involved looking at an image of person and forming an opinion the person's physical characteristics.²⁸² His opinion was not based on his undoubted knowledge of anatomy but:²⁸³

... was based on Professor Henneberg's subjective impression of what he saw when he looked at the images. This observation applies to the evidence of each of the characteristics of which Professor Henneberg gave evidence.

The High Court's reasons in *Honeysett v The Queen* (2014) 311 ALR 320; (2014) 88 ALJR 786; [2014] HCA 29 reinforce the rigour required when assessing:

- what fact in issue the opinion evidence is said to prove, or assist proof of;
- whether the person's training, study or experience has resulted in the acquisition of relevant knowledge; and
- whether the opinion expressed is substantially based on the witness's specialised knowledge based on the person's training, study or experience rather than observations and knowledge of everyday affairs and events.

In *Honeysett* (2014) 311 ALR 320; (2014) 88 ALJR 786; [2014] HCA 29 the High Court concluded the evidence was not based on specialist knowledge, rather it involved a process of comparing images and forming an opinion anyone comparing the images might form. The High Court did not address the need for courts to assess evidentiary reliability as part of the determination of whether proposed scientific evidence is based on knowledge. It found the case was not an appropriate vehicle for examining the larger issue whether there was a requirement for an independent means of validation before an opinion can be said to be based on specialised knowledge.²⁸⁴

The need for rigour when dealing with expert evidence was the subject of comment by the Victorian Court of Appeal in *Ward v The Queen* (2018) 55 VR 307; [2018] VSCA 80.²⁸⁵ In *Ward* (2018) 55 VR 307; [2018] VSCA 80 the prosecution relied on circumstantial evidence to identify the accused as one of the alleged armed robbers. This included evidence from a technical expert employed by a telephone service provider. His evidence concerned the likelihood, reduced to percentages, of a mobile telephone belonging to the girlfriend of the accused being in areas relevant to two armed robberies at relevant times based on the phone communicating with cell towers. Neither the prosecution nor the defence treated admissibility of the technician's evidence as opinion evidence. The Court of Appeal observed:²⁸⁶

the Crown's ... and the defence's approach to ... that evidence, were unusual and are not to be encouraged. They are approaches riddled with unexplored assumptions. They have given rise to unnecessary difficulties in applying the statutory tests for the exclusion and admissibility of opinion evidence. Whether a witness has specialised knowledge based on his or her training, study or experience, the matters to which that knowledge relates and the nexus between evidence of a particular opinion and the witness's specialised knowledge are matters which must be addressed at trial by reference to the language of the Act. They are not matters to be ascertained for the first time by an appellate court by reference to the record of the trial.

The breadth of expert evidence of identification is continually expanding with the development of digital technology. In the English case of *R v Gardner*²⁸⁷ the expert evidence involved computer processes of "image addition", "image subtraction" and then "blink comparison" applied to frames from a CCTV surveillance film. These processes involved superimposing images on other images to see whether there were differences, converting computerised images into negative form and

then imposing a positive form of another image on it so only the difference between the images remains and finally switching from one image to another (blink comparison). All three processes involved a person viewing the images on a computer to observe differences between images and forming an opinion. However, the final process of blink comparison would appear to be a very subjective albeit it would be possible to point to or highlight the perceived difference. Even though the studies (comparison of images on a computer) done by the expert witness images were not available to the jury because they could not be reproduced in court the opinion of the expert was admissible.²⁸⁸ In the context of the *Evidence Act 2008*, even if evidence adduced in *R v Gardner* satisfies ss 79, 135 and 137 may result in the evidence being excluded given the computer-based comparison of images was not available to the accused or the jury.

In summary the current position in Australia appears to be that evidence of the comparison of features by forensic anatomists using morphological analysis, photographic superimposition and probably photo-anthropometry is admissible, where it involves a process that could not be undertaken by the jury itself. However, the opinions of such expert witnesses as to whether the person in the crime scene or related photos is the accused person is not admissible unless and until an objective means of assessing whether the opinion is justified, such as a national database, is developed.²⁸⁹

It might therefore be argued that if the opinion evidence of expert witnesses as to whether the person depicted is the accused, based on facial mapping and body mapping, does become an accepted form of expert evidence then ultimately expert evidence on the unreliability, or otherwise, of identification evidence by other witnesses based on crime scene photos could potentially be the subject of challenge by expert testimony.²⁹⁰ This is not the same as calling expert evidence to challenge or support eyewitness identification evidence on issues such as considered on appeal in *Winmar v Western Australia*,²⁹¹ but it is conceivable that eyewitness identification could be challenged by expert evidence based on crime scene security film of the same event witnessed by the eyewitness. At the very least psychological research points strongly to the need for a review of the investigative procedures for conducting identification parades and photo-board examinations. A change in the protocols for the conduct of these investigative procedures based on psychological science would not require a change in the law governing admissibility and jury directions. However, developments in psychological science increase the prospect of a party seeking to challenge eyewitness testimony in the manner Vincent J strongly disapproved of in the passage cited at the outset of this discussion on opinion evidence.²⁹²

[ID.2520] Applying the exclusionary rule – probative value outweighed by unfairly prejudicial effect

Part 3.11 of the *Evidence Act 2008* deals with discretionary and mandatory exclusion of evidence and ss 135, 136 and 137 of the Act deal specifically with prejudicial evidence.

The application of the exclusionary rules to identification evidence must be determined by applying the broad principles to the circumstances of the particular case. Some insight into the application of the rules, either on the basis that the probative value is outweighed by its unfairly prejudicial effect or on the basis of public policy, can be gleaned from the cases.

The test for the admission of evidence is whether it would operate unfairly against the accused.

But the weakness of relevant evidence is not a ground for its exclusion. It is only when the probative value of evidence is outweighed by its prejudicial effect that the Crown can be deprived of the use of relevant but weak evidence. And evidence is not prejudicial merely because it strengthens the prosecution case. It is prejudicial only when the jury are likely to give the evidence more weight than it deserves or when the nature or content of the evidence may inflame the jury or divert the jurors from their task.²⁹³

It is the use of the evidence rather than the manner in which it was obtained that is the decisive factor and unfairness to the accused is only one of the relevant considerations.²⁹⁴ It has been said that one test, but not the only test, of whether identification evidence generally should be excluded is:²⁹⁵

[W]hether the quality of that evidence falls short of the point where its frailty or frailties cannot be cured by an appropriate direction or caution to the jury.

The matters to be considered by the trial judge when exercising discretionary and mandatory exclusion rules are numerous and cannot be listed exhaustively. A particular factor may carry significant weight on the facts in one case but be of little importance on the facts in another. The credibility and reliability of the witness is not to be taken into account when assessing the probative value of the evidence.²⁹⁶ The quality of identification evidence must be considered when assessing the probative value of such evidence and doing so “*does not breach the injunction in IMM that reliability and credibility must be put to one side.*”²⁹⁷ The weight to be given to the evidence if accepted is to be assessed by the jury in the light of other evidence relevant to the fact in issue.²⁹⁸ Where concoction is a real issue it is open for the judge to determine the evidence could not rationally affect the assessment of the existence of the fact in issue and thus is not relevant.²⁹⁹ However, questions of the weight of the evidence can be taken into account when assessing whether the evidence has unfair prejudice to the accused.³⁰⁰

Factors, such as any prior familiarity of the witness with the defendant, the circumstances in which the witness observed the offender, such as lighting, duration of observation, stress of the situation, and the distance from the offender are likely to be significant to the exercise of the exclusionary

rules. Relevant characteristics of the witness, including eyesight may also have a bearing on the quality to be attributed to the evidence.

Likewise, the characteristics of the offender may bear upon the exercise of the rules. Some characteristics may suggest that the probative value of the evidence is enhanced, whilst other characteristics may increase the likely prejudicial effect of the evidence.

The description, if any, of the offender provided by the witness, the lapse of time between the observation of the offender and the subsequent identification, and the circumstances and method of the subsequent identification will all have a bearing on the exercise of the rules. On the particular facts the interaction of some or all these factors may strongly suggest the evidence should be excluded but in other circumstances the same combination of factors may give rise to no prejudice to the accused.³⁰¹ The existence of other direct or circumstantial evidence implicating the accused may significantly reduce the likely prejudicial effect of a less than perfect identification process.

The way an accused will test the identification evidence before the jury is relevant to whether the unfair prejudice to the accused outweighs its probative value. This can apply to exclude evidence even where its probative value is high. Where testing of the identification evidence would necessarily mean otherwise inadmissible evidence, such as the accused's criminal associates, prior history or involvement with police and corrections, the unfair prejudice may outweigh evidence of significant probative value.³⁰²

The composition of a photoboard used for the purposes of identification may give rise to issues of unfair prejudice. The High Court observed:³⁰³

Unfair prejudice may be occasioned because evidence has some quality which is thought to give it more weight in the jury's assessment than it warrants or because it is apt to invite the jury to draw an inference about some matter which would ordinarily be excluded from evidence. The 'rogues' gallery' effect of picture identification evidence creates a risk of the latter kind because the appearance of some photographs kept by the police may invite the jury to infer that the accused has a criminal record.

It is difficult to envisage how [s 136](#) could be applied to limit the use of identification evidence as defined in the [Evidence Act 2008](#). It may be the very articulation of a plausible basis for limiting the use of the evidence would indicate its probative value is outweighed by its unfair prejudice to the accused.

[ID.2540] Directions to the jury or tribunal of fact

[Section 37 of the Jury Directions Act 2015](#) provides a judge is not required to direct a jury on the unreliability of identification evidence, except as provided for in the Act, and abolishes any

common law rule to the contrary.³⁰⁴ For the purposes of the *Jury Directions Act*, “identification evidence” is defined by s 35 of the Act. The definition is significantly broader than the definition of “identification evidence” contained in the Dictionary to the *Evidence Act 2008*. The *Jury Directions Act* definition is not limited to assertions the accused was a person, or resembled a person, at a relevant place but applies to assertions about any person or object on a relevant occasion. The *Jury Directions Act* definition includes the definitions of “visual identification evidence” and “picture identification evidence” contained in the *Evidence Act 2008*.

Under the *Jury Directions Act*, either prosecution or defence counsel may request the trial judge to direct the jury on identification evidence.³⁰⁵ When making such request, counsel must identify the significant matters that make the evidence unreliable.³⁰⁶ When giving the requested direction the trial judge must, as a minimum, address the matters set out in s 36(3)(a)–(e) of the *Jury Directions Act*. The matters in (a)–(e) cover many of the issues reflected in cases dealing with jury directions on identification issues under the common law. For this reason, some discussion of the earlier common law cases on jury direction in identification evidence has been retained in the commentary. Nevertheless, the common law has been abrogated and directions must be sought, and given, in accordance with the *Jury Directions Act*. The adequacy of the directions given by the trial judge must be assessed against the matters prescribed by the *Jury Directions Act* and not by reference to the abolished common law.

In addition to the directions given pursuant to the *Jury Directions Act*, the defendant may request a direction be given in relation to picture identification evidence adduced by the prosecution in circumstances where the picture of the accused was taken after the accused was taken into custody.³⁰⁷

Where a jury direction is to be given in relation to identification evidence, the judge must inform the jury there is a need for caution before accepting identification evidence and the weight to be given to it if accepted, and the significant matters that make the evidence unreliable in the circumstances of the case.³⁰⁸ This requirement is mandatory and applies to identification evidence as defined in the *Jury Directions Act* even where a direction is not requested by the parties but is given by the judge pursuant to s 16 of the *Jury Directions Act*. If relevant, the judge must inform the jury that mistaken identification evidence has resulted in innocent people being convicted.³⁰⁹ The importance of this direction is underlined by the experience of the Innocence Project in the United States. Mistaken eyewitness identifications contributed to approximately 75% of the 350 wrongful convictions in the United States overturned by post-conviction DNA evidence during the first 25 years of the Innocence Project from 1992 to 2017.³¹⁰

Prior to the *Jury Directions Act* the obligation to give the warning only arose where the reliability of the identification evidence was disputed.³¹¹ This represented a stricter approach than at common

law where only when identification evidence was a significant part of the proof of an offence, and its reliability was disputed, was the trial judge required to warn the jury on the dangers of convicting on identification evidence.³¹² Pursuant to the Jury Directions Act the judge must give a requested direction unless there are “good reasons” for not doing so.³¹³ Further, in the absence of a request, the judge must give the jury a direction if there are “substantial and compelling reasons” for doing so.³¹⁴ Consequently, the requirement for a jury direction under the Jury Directions Act no longer depends on whether the reliability of the evidence was disputed or was a significant part of the evidence, although both factors could play a role in a judge’s consideration of “good reasons” or “substantial and compelling reasons”.

The judge must instruct the jury as to why there is a need for such a warning.³¹⁵ The jury should be told that honest mistakes as to identification of offenders have occurred in the past. Under the Jury Directions Act the judge is not required to advise the jury knowledge of such mistakes arise from judicial experience which is probably not shared by the jury.³¹⁶

The Jury Directions Act stipulates a judge is not required to use any particular form of words when giving a direction.³¹⁷ The combined effect of ss 6, 36 and 37 of the *Jury Directions Act* is that limited guidance can be found in the old common law cases when a judge gives a direction on identification under the Jury Directions Act.

Under the common law, a warning in general terms was not sufficient and the judge was required to draw the attention of the jury to any weakness in the evidence (this was commonly referred to as a Dominican warning).³¹⁸ The judge's duty was not absolved by the existence of other evidence sufficient to convict the accused. The judge was required to assume that the jury may decide to convict the accused solely on the basis of the identification evidence.³¹⁹ However, the trial judge was not required to discuss every aspect of the problems of identification evidence in every case. There was no fixed and immutable principle requiring a specific warning about the dangers of cross-racial identification.³²⁰ What was required was the directions cover those matters necessary for the particular case and no set formula was to be followed.³²¹ The Jury Directions Act abolished the common law rules and the judge must direct in accordance with s 36(3) of the *Jury Directions Act*.³²² Nevertheless the common law reasoning of courts on evidence issues in relation to the identification are potentially matters a trial judge may consider in relation to the issue of “good reasons” or “substantial and compelling reasons” and they might inform the wording of the direction the judge determines to give.³²³

Parts 4, 5, 6 and 7 of the Jury Directions Act applies to hearings in the Magistrates’ Court.³²⁴ Whilst Part 3, “Request for directions”, of the Jury Directions Act does not apply, it would be open for the prosecutor and defence counsel to raise matters related to identification evidence in

submissions and the requirements of s 36 of the Jury Directions Act. However, s 4A(2)(b)(ii) of the Jury Directions Act makes clear this is not a vehicle for resurrecting the abolished common law rules. Where the magistrate fails expressly to identify the weakness in the identification evidence and to expressly warn him or herself of the danger of convicting the accused in the light of those weaknesses then the conviction should not stand on appeal.³²⁵

At common law it was necessary, in appropriate cases, for the trial judge to distinguish between evidence that could be considered direct evidence of identification and evidence that could be circumstantial evidence leading to identification, and to tell the jury the use that could be made of the different forms of evidence.³²⁶ In such cases the trial judge was required to tell the jury the concepts of direct evidence and circumstantial evidence could not be interchanged and the concepts could not sit together in the case on the same evidence.³²⁷

At common law reference to the argument of counsel, or mere repetition of it, was insufficient and the jury was required to “have the benefit of a direction which has the authority of the judge's office behind it”.³²⁸ Where the matters referred to by counsel could reasonably be regarded as undermining the reliability of the identification evidence then the trial judge was required to instruct the jury that they were bound to consider those matters when determining whether they would rely on that evidence.³²⁹ The warning had to be cogent, effective and appropriate to the circumstances of the case. The jury was required to be instructed as to the facts which could affect consideration of the identification evidence in the circumstances of the case. Therefore the common law required:³³⁰

[The] trial judge should isolate and identify for the benefit of the jury any matter of significance which may reasonably be regarded as undermining the reliability of the identification evidence.

Under the Jury Directions Act the trial judge must inform the jury a witness may be honest and convincing but mistaken.³³¹ This reflects the abolished common law rule which held it might be necessary in the circumstances of a particular case for the trial judge to stress to the jury that the honesty of the identification witness “is no guarantee that an impression is so indelibly imprinted on the mind as to allow the witness to be accepted as reliable”.³³²

At common law the strength of the warning required depended in large measure on the extent to which the Crown rested its case on the identification evidence.³³³ While the significance of the identification evidence to the prosecution case may be relevant when considering the issue of “good reasons” or “substantial and compelling reasons” under ss 14 or 16 of the Jury Directions Act, it is not a matter relevant to its reliability or lack of reliability. It may be a matter for the judge to consider when considering the wording of the direction in accord with s 36(3)(a) of the Jury

Directions Act. Nevertheless, reliability remains at the forefront of a direction on identification evidence pursuant to s 36(3)(b) of the Jury Directions Act.

An appeal court will consider the judge's charge as a whole.³³⁴ The Jury Directions Act does not change this fundamental requirement. However, the adequacy of the warning must be assessed against the matters prescribed by s 36(3) of the Jury Directions Act, not the old common law rules. Nevertheless, issues of the reliability of the identification evidence remain central to any assessment of the adequacy of the direction given. Under the common law the adequacy of the warning to the jury in an identification case:³³⁵

[M]ust be evaluated in the context of the evidence in the case. But its adequacy is evaluated by reference to the identification evidence and not the other evidence in the case. The adequacy of the warning has to be evaluated by reference to the nature of the relationship between the witness and the person identified, the opportunity to observe the person subsequently identified, the length of time between the incident and the identification, and the nature and circumstances of the first identification – not by reference to other evidence which implicates the accused.

The warning to be given to the jury, if any, must be tailored to the situation. It has been said a warning may not be required where the witness recognises the person at the crime scene as a person with whom they have prior familiarity (referred to in the cases as “recognition evidence”).³³⁶ Nevertheless, the circumstances of a case (poor light, fleeting observation, large crowd, limited prior familiarity etc) may be such that the conditions in which the recognition took place requires the judge to inform the jury these are significant matters on the issue of reliability.³³⁷ Whether a direction in a recognition case is adequate to cover the matters prescribed will depend on all the relevant circumstances of the case. These could include how familiar the suspect was to the witness, the circumstances in which the witness had previously seen the suspect, and the circumstances in which the witness was alleged to have seen the suspect at or in proximity to the alleged crime.³³⁸

The adequacy of the warning given to the jury by the trial judge must be judged by reference to the identification evidence and not by reference to other evidence, including circumstantial evidence, the prosecution rely upon. That is not to say the jury cannot use other evidence, including circumstantial evidence, to confirm in the sense of supporting the identification evidence. The jury can use the evidence in that way but they may not, and should not be invited to, put aside the need to scrutinise the identification evidence in accordance with the judges direction because they find other evidence tending to confirm the identification evidence.³³⁹

Where evidence is adduced at trial that the accused refused to participate in an identification parade the judge should advise the jury at the time, and if necessary as part of his direction, that the accused had a right not to participate and that the exercise of the right must not lead to any conclusion as to guilt. The failure to give such directions to the jury does not necessarily mean that a miscarriage of justice will result.³⁴⁰

Footnotes

- 1 For discussion of fingerprint identification see [ID.3020] ff and for DNA identification see [ID.3120] ff.
- 2 See *The Laws of Australia*, “Criminal Procedure”, “Particulars for Identification” at [11.1.1580]–[11.1.1590].
- 3 *R v Clune* [1982] VR 1; (1981) 5 A Crim R 246 at 9–10, 19 (VR); at 255, 267 (A Crim R).
- 4 *R v Haidley* [1984] VR 229; (1983) 10 A Crim R 1. A video identification parade was used in *R v Davies* (2005) 11 VR 314; 153 A Crim R 217; [2005] VSCA 90 and *R v Debs (No 3)* [2005] VSCA 66 at [145], [257]–[259], [282]–[288]. See *Victoria Police Manual*, section 5.2 VPM 111–1.
- 5 *R v Haidley* [1984] VR 229; (1983) 10 A Crim R 1 at 232, 244, 253–255 (VR); at 5, 17, 26–27 (A Crim R).
- 6 *Victorian Police Manual – Guidelines – Identifying offenders*. See critique of the current methods of conducting an identification and proposals for a radically different approach in Brewer N, Weber N, Wootton D and Lindsay DS, “Identifying the bad guy in a lineup using confidence judgments under deadline pressure” in *Psychological Science*, published online 28 August 2012 at <http://pss.sagepub.com/content/early/2012/08/27/0956797612441217>.
- 7 *Slaveski v Victoria* [2010] VSC 441 at [206]–[208], per Kyrou J, noting a breach of VPM instructions by an officer does not, of itself, invalidate any action taken by the officer or make them liable to pay damages.
- 8 *Victorian Police Manual – Guidelines – Identifying offenders*, 2.4 Conduct of parade, updated to 18/11/13.
- 9 *Victorian Police Manual – Guidelines – Identifying offenders*, 2.5 Conclusion of parade, updated to 18/11/13.
- 10 *Victorian Police Manual – Guidelines – Identifying offenders*, 2.6 Special cases, updated to 18/11/13.
- 11 *Pitkin v The Queen* (1995) 69 ALJR 612; 80 A Crim R 302; 130 ALR 35 at 305 (A Crim R). See *Evidence Act 2008*, ss 135, 137, 165.

- 12 *R v Clune* [1982] VR 1; (1981) 5 A Crim R 246 at 25 (VR); 271 (A Crim R).
See *Evidence Act 2008*, s 138.
- 13 *R v Ireland* (1970) 126 CLR 321; 44 ALJR 263.
- 14 *R v Ireland* (1970) 126 CLR 321; 44 ALJR 263 at 333–334 (CLR). The statute referred to by Barwick CJ was *Police Offences Act 1953* (SA), s 81(4) which gave police a power to photograph a person in lawful custody on a charge of committing an offence. This is to be contrasted with the position in the Northern Territory where taking the photograph, including a moving film or video, of a suspect or person in custody charged with an offence is defined as a non-intimate procedure under *Police Administration Act 1974* (NT), s 4 and s 145A provides power for police to take a non-intimate sample without consent, see *R v Murdoch (No 3)* (2005) 195 FLR 400; [2005] NTSC 77.
- 15 *Crimes Act 1958*, s 464ZA(4), (5) and (7). See [ID.3460].
- 16 *R v Clune* [1982] VR 1; (1981) 5 A Crim R 246 at 24–25 (VR); at 269–271 (A Crim R).
- 17 *R v Banner* [1970] VR 240.
- 18 *R v McPhail* (1988) 36 A Crim R 390.
- 19 *Corrections Act 1986*, s 99.
- 20 *Sentencing Regulations 2011*, reg 17(2).
- 21 *Corrections Act 1986*, ss 104A and 104AF.
- 22 See [ID.2100] “Common law powers to photograph suspects”.
- 23 *Corrections Act 1986*, ss 104ZX and 104ZY. The terms are defined in s 104ZX.
- 24 *Slaveski v Victoria* [2010] VSC 441 at [206]–[208], per Kyrou J, noting a breach of VPM instructions by an officer does not, of itself, invalidate any action taken by the officer or make them liable to pay damages.
- 25 *Victorian Police Manual – Guidelines – Identifying offenders*, 3.1 Picture identification, updated to 18/11/13
- 26 *Victorian Police Manual - Guidelines – Identifying offenders*, updated to 18/11/13
- 27 *Victorian Police Manual - Guidelines – Identifying offenders*, 1.1 Photo Books, updated to 18/11/13
- 28 *Victorian Police Manual - Guidelines – Identifying offenders*, 3.1 Picture identification, updated to 18/11/13
- 29 A video film must be a picture within the inclusive definition contained in *Evidence Act 2008*, s 115(10). It is not clear whether videos created for a video identification parade are “pictures kept for the use of police officers” as required by s 115(1). In *R v Hennessy* [2001] NSWCCA 36 at [24], O’Keefe J, with whom Spigelman CJ and Barr J agreed, suggested the reference to “kept for use of police officers” in s 115(1) was concerned largely with what are colloquially known as “mug shots” and held it was not directed to security camera photographs. See

also *Pace (A Pseudonym) v R* (2014) 247 A Crim R 1; [2014] VSCA 317 at [21]. Whether a video identification parade film falls within the meaning of s 115(1) is open to debate and may depend on the particular circumstances of a case.

30 *Victorian Police Manual - Guidelines – Identifying offenders*, 3.2 Video identification, updated to 18/11/13

31 *Victorian Police Manual - Guidelines – Identifying offenders*, 3.4 Other methods, updated to 18/11/13.

32 *Victorian Police Manual - Guidelines – Identifying offenders*, 1.2 Construction of likenesses, updated to 18/11/13

33 For an example of a case where this information was available see *Aouad v The Queen* (2011) 207 A Crim R 411; [2011] NSWCCA 61 at [257]–[263]. See discussion of the same evidence in *R v Darwiche* (2006) 166 A Crim R 28; [2006] NSWSC 924.

34 See *Re Attorney-General's Reference (UK) (No 2 of 2002)* [2003] 1 Cr App R 321; [2002] EWCA Crim 2373 for a discussion of some English cases involving security film or CCTV images.

35 As of June 2012 these digital cameras were in use at 10 of the busiest Melbourne suburban police stations with a further 10 cameras about to be commissioned at other police stations.

36 *Wade (a pseudonym) v R* (2014) 41 VR 434; 239 A Crim R 29; [2014] VSCA 13 at [22]–[30] and cases discussed there. See also *Haidari v R* (2015) 251 A Crim R 422; [2015] NSWCCA 126, where an immigration officer made direct observations and identification of detainees on the roof during a riot and subsequently identified the accused, from a DVD of TV footage of the events, as one of the detainees he observed. Held at [76] the officer's evidence of what he observed on the TV footage fell on the factual side of the blurred boundary between fact and opinion.

37 *Evidence Act 2008*, ss 76, 79. See *R v Gardner* [2004] EWCA Crim 1639 at [32]–[38] for a description of the technique used by a witness to develop evidence of this sort and for a discussion on how it was used in the factual context before the jury. See also *R v Murdoch (No 3)* (2005) 195 FLR 400; [2005] NTSC 77; *R v Murdoch (No 4)* (2005) 195 FLR 421; [2005] NTSC 78; *R v Tang* (2006) 65 NSWLR 681; 161 A Crim R 377; [2006] NSWCCA 167.

38 The author acknowledges the assistance of Leading Senior Constable Mark Dawson, Criminal Identification Squad, Victoria Police, who advised on digital technology taken up by Victoria Police and related matters.

39 *Evidence Act 1995 (Cth)*. At the time of writing the Australian Capital Territory (*Evidence Act 2011 (ACT)*), New South Wales (*Evidence Act 1995 (NSW)*), Northern Territory (*Evidence (National Uniform Legislation) Act 2011 (NT)*),

Tasmania (*Evidence Act 2001* (Tas)) and Norfolk Island (*Evidence Act 2004* (NI)) have enacted the Uniform Evidence Act.

40 *Alexander v The Queen* (1981) 145 CLR 395; 55 ALJR 355; 34 ALR 289 at 427 (CLR) per Mason J. See also *R v Clark* (1996) 91 A Crim R 46 at 51; *R v Carusi* (1997) 92 A Crim R 52 at 55.

41 In particular *Smith v The Queen* (2001) 206 CLR 650; 75 ALJR 1398; 125 A Crim R 10; 181 ALR 354; [2001] HCA 50; *Festa v The Queen* (2001) 208 CLR 593; 76 ALJR 291; 185 ALR 394; [2001] HCA 72; *Dhanhoa v The Queen* (2003) 217 CLR 1; 77 ALJR 1433; 139 A Crim R 41; 199 ALR 547; [2003] HCA 40; *Evans v The Queen* (2007) 235 CLR 521; 82 ALJR 250; 179 A Crim R 232; 241 ALR 400; [2007] HCA 59.

42 *Evidence Act 2008*, ss 55–58. See *Smith v The Queen* (2001) 206 CLR 650; 75 ALJR 1398; 125 A Crim R 10; 181 ALR 354; [2001] HCA 50. In *Smith v The Queen* (2001) 206 CLR 650; 75 ALJR 1398; 125 A Crim R 10; 181 ALR 354; [2001] HCA 50 the police witnesses, although familiar with the accused from earlier encounters, did not point to any identifying feature that would not have been obvious to the jury. The jury spent considerably more time in the presence of the accused during the trial than the police officers had spent with the accused during their previous encounters. The High Court considered *Evidence Act 1995* (NSW), ss 55 and 76, the equivalents of *Evidence Act 2008*, ss 55 and 76 dealing with relevance and opinion evidence. See also *R v Tadic* [2003] VSCA 28 at [22]–[23]. See *R v Murdoch (No 4)* (2005) 195 FLR 421; [2005] NTSC 78 where *Smith v The Queen* (2001) 206 CLR 650; 75 ALJR 1398; 125 A Crim R 10; 181 ALR 354; [2001] HCA 50 was distinguished because the witnesses were able to give evidence about features that would not, and could not, be made apparent to the jury. See *R v Hassan* [2004] VSC 84 at [5]–[7] where *Smith v The Queen* (2001) 206 CLR 650; 75 ALJR 1398; 125 A Crim R 10; 181 ALR 354; [2001] HCA 50 was distinguished because the appearance of the accused was significantly different at the time of the trial compared to at the time of the alleged offence. See *R v Stamp* [2012] NTSC 18 where, applying *Smith v The Queen* (2001) 206 CLR 650; 75 ALJR 1398; 125 A Crim R 10; 181 ALR 354; [2001] HCA 50, a police officer's evidence he recognised the person in CCTV as the accused was admitted because the officer over an eight-year period became familiar with his gait, body shape, size, head, general build and the way he squatted down. In *Anandan v The Queen* [2011] VSCA 413, where the issue was self-defence rather than identification, a police officer gave evidence of what he said took place on the CCTV footage available to the jury, including his opinion that the accused act was a deliberate act of pulling the alleged victim back and cutting his back with a knife. Held: the police officer's opinion as to what he could see on the

CCTV was not relevant, as it could not rationally affect the jury's assessment, and not admissible.

- 43 *Evidence Act 2008*, s 137, requires the court to refuse to admit evidence if its probative value is outweighed by the danger of unfair prejudice to the accused. See also *R v Christie* [1914] AC 545; *Alexander v The Queen* (1981) 145 CLR 395; 55 ALJR 355; 34 ALR 289; *R v Penny* (1997) 91 A Crim R 288; *R v Carusi* (1997) 92 A Crim R 52.
- 44 *Evidence Act 2008*, s 135, allows the court to refuse to admit evidence if it might be unfairly prejudicial to a party, misleading or confusing or cause or result in undue waste of time. Pursuant to s 136, the court may limit the use to be made of evidence if it might be unfairly prejudicial to a party, misleading or confusing. See also *McDermott v The King* (1948) 76 CLR 501; 49 SR (NSW) 26; 66 WN (NSW) 4; *Cleland v The Queen* (1982) 151 CLR 1; 57 ALJR 15; 43 ALR 619; *R v Carusi* (1997) 92 A Crim R 52.
- 45 *Evidence Act 2008*, s 138. See also *R v Ireland* (1970) 126 CLR 321; 44 ALJR 263; *Bunning v Cross* (1978) 141 CLR 54; 52 ALJR 561; 19 ALR 641.
- 46 See *Director of Public Prosecutions (Vic) v Bass* [2016] VSCA 110 at [33]–[37] and [43]–[50] per curiam for general discussion of the definition of identification evidence, some of the terms and phrases used in the definition, and relevant cases. See [55]–[61] for analysis of the relevant evidence in *Bass* [2016] VSCA 110 and whether it came within the definitions of identification evidence and visual identification evidence.
- 47 See *Peterson v The Queen* [2014] VSCA 111 at [29] and [55]. Compare *Bayley v The Queen* (2016) 260 A Crim R 1; [2016] VSCA 160 at [48]–[100] where identification evidence from Facebook and internet media coverage was held inadmissible on the basis the danger of unfair prejudice was substantial. Compare *Strauss v Police* (2013) 115 SASR 90 at [35]–[37]. See *Moreno v The King* [2023] VSCA 98 at [50] – [106] per curiam, where the witness' subsequent recognition evidence from a Facebook photo held inadmissible because its probative value was low and outweighed by the danger of unfair prejudice to the accused pursuant to s 137 of the *Evidence Act 2008*.
- 48 *R v Christie* [1914] AC 545 at 558 per Lord Moulton. See discussion on this issue in *Alexander v The Queen* (1981) 145 CLR 395; 55 ALJR 355; 34 ALR 289 at 403–407 (CLR) per Gibbs CJ, at 434 per Murphy J, and at 432–433 per Mason J. Gibbs CJ considered that if such evidence was not admissible as an exception to the hearsay rule, the rationale for its admission must be to show consistency with the previous act of the identifier. Mason J held that such evidence did not violate the rule against hearsay or the best evidence rule and such evidence was direct evidence of an identification. See also *R v Turner* (2000) 76 SASR 163; 113 A Crim R 160; [2000] SASC 27 at 173 (A Crim R) for a brief discussion of

the conflicting authorities by Mullighan J. In *R v Turner* (2000) 76 SASR 163; 113 A Crim R 160; [2000] SASC 27, the majority (Doyle CJ and Perry J) held that evidence of the observer of the out-of-court identification was admissible. Mullighan J held that it was not, but specifically stated that he was not addressing the situation where the identifier is unable to give evidence. However, see *R v Barbaro* (2000) 112 A Crim R 551; [2000] NSWCCA 192 as to the effect of the *Evidence Act 1995* (NSW), and therefore the *Evidence Act 2008*.

49 *R v Barbaro* (2000) 112 A Crim R 551; [2000] NSWCCA 192 at [26]–[29] and [35] per Gove J; Spigelman CJ and Wood CJ at CL agreeing.

50 See *Evidence Act 2008*, s 65 as to the exception to the hearsay rule in criminal proceedings if the maker is not available. If the maker is available, s 66 applies and see discussion, in context of identification evidence, of s 66(2) in *R v Barbaro* (2000) 112 A Crim R 551; [2000] NSWCCA 192 at [30]–[36]; *Aouad v The Queen* (2011) 207 A Crim R 411; [2011] NSWCCA 61 at [258]–[262].

51 *R v Barbaro* (2000) 112 A Crim R 551; [2000] NSWCCA 192 at [43] per Gove J; Spigelman CJ and Wood CJ at CL agreeing. See also *Aouad v The Queen* (2011) 207 A Crim R 411; [2011] NSWCCA 61 at [253]–[255] per James J; McClellan CJ at CL and Johnson J agreeing.

52 See *Evidence Act 2008*, s 114(1). See *Director of Public Prosecutions (Vic) v Bass* [2016] VSCA 110 at [38]–[41] per curiam for general discussion of the definition of visual identification evidence.

53 See *Evidence Act 2008*, s 115(1).

54 *R v Hennessy* [2001] NSWCCA 36, Spigelman CJ and Barr J agreeing. See also *Pace (A Pseudonym)* (2014) 247 A Crim R 1; [2014] VSCA 317 at [21] per curiam, where O’Keefe J’s observations regarding “mug shots” were acknowledged with apparent approval.

55 *Wilson v The King* [2022] VSCA 261 at [72] – [75] per curiam. Other forms of custody suggested by the pictures, such custody in a prison, is not police custody and does not, of itself, give rise to inadmissibility pursuant to s 115(2).

56 *Pitkin v The Queen* (1995) 69 ALJR 612; 80 A Crim R 302; 130 ALR 35 at 306 (A Crim R); at 39 (ALR), per Deane, Toohey and McHugh JJ.

57 *Pitkin v The Queen* (1995) 69 ALJR 612; 80 A Crim R 302; 130 ALR 35.

58 In *R v Gibson* (1999) 110 A Crim R 180; [1999] NSWCCA 370 evidence that the accused person’s voice “sounded like” the offender was admitted without objection. On appeal it was held that in cross-examination it was established that this was not capable of being evidence of identification. No suggestion was made at trial that it was capable of being used as evidence of identification and *Pitkin v The Queen* (1995) 69 ALJR 612; 80 A Crim R 302; 130 ALR 35 was distinguished on this basis. See also discussion in *R v Secombe* [2010] VSCA 58. See *Director of Public Prosecutions v Brownlie (Vic)* (2015) 254 A Crim R

360; [2015] VSCA 267 at [57] in relation to identification of objects but note the phrase “looks like” was not used by witnesses in that case.

59 *R v Rich (No 2)* (2002) 4 VR 155; [2002] VSCA 17 at [74]–[76], per Brooking JA. In *R v Rich* (2002) 4 VR 155; [2002] VSCA 17 the trial judge in his charge to the jury treated the words of the witness, who said the person in the video line up looked similar to the man he saw during the bank robbery, as circumstantial evidence and as mere evidence of similarity, not identification. No objection was taken at trial to this aspect of the charge and on appeal the court took the view this may well have been a forensic decision because to seek a *Domican* warning risked raising the evidence to the level of identification evidence in the mind of the jury. See also *R v Southon* (2003) 85 SASR 436; 139 A Crim R 250; [2003] SASC 205; *R v Tran* [2010] VSC 560 at [11]–[24]; *R v Secombe* [2010] VSCA 58 at [34]–[53], [64]–[67] and [77]; *R v Brown* [2011] QCA 16 at [32]–[36]; *R v Namie* [2011] QCA 304 at [26]–[32]. See [ID.2240] “Circumstantial identification evidence”.

60 *R v Theos* (1996) 89 A Crim R 486.

61 See [ID.2460] – Identification of objects.

62 *R v Theos* (1996) 89 A Crim R 486, per Tadgell JA and Southwell AJA.

63 See *R v Morgan* [2009] VSCA 225.

64 See *Cope v R* [2018] VSCA 261, a cold-case involving DNA evidence and identification from a photo-board 30 years after the rape. The complainant, on examining the photo-board, said “It is him. It is his eyes” but at committal conceded that she couldn’t say whether she was nominating her attacker with a moustache or the other male who attacked her. The photo she nominated was of the accused, with a moustache, taken approximately a year after the rape. Held her photo-board identification was identification under the Evidence Act and its probative value not outweighed by any unfair prejudice.

65 *Kelly v The Queen* (2002) 129 A Crim R 363; [2002] WASCA 134 at [33]–[50], per McKechnie J, dissenting on the outcome of the appeal to the WACCA; approved in *Neville v The Queen* (2004) 145 A Crim R 108; [2004] WASCA 62 and *R v Spero* (2006) 13 VR 225; 161 A Crim R 13; [2006] VSCA 58 at [27]. See also *MA v The Queen* (2011) 31 VR 203; [2011] VSCA 13.

66 *R v Gee* (2000) 113 A Crim R 376; [2000] NSWCCA 198 at [38]–[39], per Hidden J and on the issue of opinion evidence see *Smith v The Queen* (2001) 206 CLR 650; 75 ALJR 1398; 125 A Crim R 10; 181 ALR 354; [2001] HCA 50. See also *Haidari v R* (2015) 251 A Crim R 422; [2015] NSWCCA 126, where an immigration officer made direct observations and identification of detainees on the roof during a riot and subsequently identified the accused, from a DVD of TV footage of the events, as one of the detainees he observed. Held at [76] the

officer's evidence of what he observed on the TV footage fell on the factual side of the blurred boundary between fact and opinion.

67 See discussion in *R v Gee* (2000) 113 A Crim R 376; [2000] NSWCCA 198.

68 *R v Theos* (1996) 89 A Crim R 486.

69 See *R v Spero* (2006) 13 VR 225; 161 A Crim R 13; [2006] VSCA 58 at [24]–[40] for Redlich AJA's discussion of some of these matters and for references to relevant cases on point. See *Sindoni v The Queen* (2011) 211 A Crim R 187; [2011] VSCA 195 at [63]–[64], per curiam where the limited utility of the distinction between identification and recognition cases is discussed briefly. See [ID.2540] for identification directions under the *Jury Directions Act 2015*.

70 See *Williams v R* [2019] NSWCCA 53 where on appeal Schmidt and Button JJ found recognition evidence accepted by the jury too unreliable to enable the jury to be satisfied beyond reasonable doubt. Gleeson JA held it was open for the jury to convict on the recognition evidence.

71 *Davies v The King* (1937) 57 CLR 170; [1937] HCA 27 at 181; *R v Turnbull* [1977] QB 224; [1976] 3 WLR 445; [1976] 3 All ER 549 at 228 (QB); *Domican v The Queen* (1992) 173 CLR 555; 66 ALJR 285; 60 A Crim R 169; 106 ALR 203 at 565 (CLR); *Trudgett v The Queen* (2008) 70 NSWLR 696; 182 A Crim R 253; [2008] NSWCCA 62 at [25]–[27]; *R v Defrutos* [2008] VSCA 55 at [41]–[43]; *Moreno v The King* [2023] VSCA 98 at [50] – [59] per curiam.

72 *Festa v The Queen* (2001) 208 CLR 593; 76 ALJR 291; 185 ALR 394; [2001] HCA 72 at [56], per McHugh J.

73 *Festa v The Queen* (2001) 208 CLR 593; 76 ALJR 291; 185 ALR 394; [2001] HCA 72.

74 *Festa v The Queen* (2001) 208 CLR 593; 76 ALJR 291; 185 ALR 394; [2001] HCA 72 at [57]; *R v Debs (No 3)* [2005] VSCA 66 at [282]–[284], [287].

75 *Jury Directions Act 2015*, s 3.

76 *Jury Directions Act 2015*, s 65(a).

77 *Festa v The Queen* (2001) 208 CLR 593; 76 ALJR 291; 185 ALR 394; [2001] HCA 72 at [167]. See discussion of Kirby J's dissent in I Coyle, D Field and G Miller, "The blindness of the eye-witness" (2008) 82 ALJ 471.

78 *R v Hassan* [2004] VSC 84. In his ruling on the admissibility of the evidence Redlich J reserved the right to the accused to renew his application after the defence was provided with further particulars on how the accused's mannerisms were said to be similar to those of the person depicted in the video. *Jury Directions Act 2015*, s 36(3)(b). As to the now abolished *Domican* directions see *Domican v The Queen* (1992) 173 CLR 555; 66 ALJR 285; 60 A Crim R 169; 106 ALR 203 and "Directions to the jury or tribunal of fact" at [1A.5.350].

79 *Dhanhoa v The Queen* (2003) 217 CLR 1; 77 ALJR 1433; 139 A Crim R 41; 199 ALR 547; [2003] HCA 40. The case deals with *Evidence Act 1995* (NSW),

s 116 but the principles considered in the three judgments would have general application. Note *Evidence Act 2008*, s 116 is the equivalent of *Evidence Act 1995* (NSW), s 116.

80 *Domican v The Queen* (1992) 173 CLR 555; 66 ALJR 285; 60 A Crim R 169; 106 ALR 203.

81 *Dhanhoa v The Queen* (2003) 217 CLR 1; 77 ALJR 1433; 139 A Crim R 41; 199 ALR 547; [2003] HCA 40 at [19], [23], per Gleeson CJ and Hayne J. Held by Gleeson CJ and Hayne J: it was not the reliability of the identification that was in issue but the reliability of the witness's account the accused engaged in particular conduct and remained with his three co-accused at all material times.

82 *Dhanhoa v The Queen* (2003) 217 CLR 1; 77 ALJR 1433; 139 A Crim R 41; 199 ALR 547; [2003] HCA 40 at [51]–[52], per McHugh and Gummow JJ.

83 *Dhanhoa v The Queen* (2003) 217 CLR 1; 77 ALJR 1433; 139 A Crim R 41; 199 ALR 547; [2003] HCA 40 at [94]–[95], per Callinan J, dissenting. Callinan J pointed to the evidence of two neighbours of the victim who gave evidence that only three people were involved in attacking the victim on the street while the victim said there were four.

84 English Oxford Living Dictionaries at <https://en.oxforddictionaries.com/definition/perceive>.

85 *Trudgett v The Queen* (2008) 70 NSWLR 696; 182 A Crim R 253; [2008] NSWCCA 62 at [34]–[51], per Spigelman CJ, Hulme and Latham JJ agreeing. As with *Dhanhoa v The Queen* (2003) 217 CLR 1; 77 ALJR 1433; 139 A Crim R 41; 199 ALR 547; [2003] HCA 40, *Evidence Act 1995* (NSW), s 116 was central to the analysis by the court and the discussion of the evidence and its proper characterisation is useful. It should be noted that *Evidence Act 2008*, s 116 was repealed by the *Jury Directions Act 2015*. In *Trudgett v The Queen*, there was no evidence of identification from a parade, photograph or even dock identification. There was evidence of a statement of the accused, presumably disputed, immediately after the sexual assault that a jury could accept as a relevant admission. See also *Mouroufas v The Queen* [2007] NSWCCA 58.

86 For example, see *R v Lam (No 5)* [2005] VSC 279 per Redlich J applying *Dhanhoa v The Queen* (2003) 217 CLR 1; 77 ALJR 1433; 139 A Crim R 41; 199 ALR 547; [2003] HCA 40 and note the two lines of authorities his Honour refers to at footnotes 18 and 19.

87 *Evidence Act 2008*, s 114(1).

88 *Evidence Act 2008*, s 114(2)(a).

89 *Evidence Act 2008*, s 114(2)(b). For a case considering whether it was reasonable to conduct an identification parade see *Harika v R*; *Hamann v R* [2023] VSCA 317 at [16]–[19] per Priest JA, [93]–[99] per Macaulay JA, Taylor JA agreeing.

90 *Evidence Act 2008*, s 114(2)(c).

- 91 *Fowkes v The King* [2023] VSCA 160 at [24], [36] and [50] per curiam. This requirement applies where a witness' identification has been influenced by a third party. It does not apply to a person influencing themselves such as police officer informing themselves about a suspect, *Wilson v The King* [2022] VSCA 261 at [85] - [87] per curiam.
- 92 *Fowkes v The King* [2023] VSCA 160.
- 93 *Fowkes v The King* [2023] VSCA 160 at [52] per curiam.
- 94 *Fowkes v The King* [2023] VSCA 160 at [53] per curiam.
- 95 *Evidence Act 2008*, s 142(1)(a).
- 96 *Fowkes v The King* [2023] VSCA 160 at [58] per curiam.
- 97 *Fowkes v The King* [2023] VSCA 160 at [49] per curiam.
- 98 *Iliovski v The Queen* [2006] NSWCCA 164 at [118]–[125], per Hunt AJA, Adams and Latham JJ agreeing. In *Iliovski v The Queen* the critical identifying witness pointed the accused out to police as the person responsible for the stabbing, after giving the police a description of the offender and shortly after the stabbing, whilst police spoke to the accused in a car park at the rear of the premise where it took place. Held: not reasonable to hold an identification parade.
- 99 *R v Pearsall* (1990) 49 A Crim R 439 at 442. *R v Pearsall* pre-dates the Uniform Evidence Act and so this quotation must be considered in light of *Evidence Act 2008*, s 114(1). See also *THD v The Queen* (2010) 200 A Crim R 106; [2010] VSCA 115 at [34], per Nettle JA and *Director of Public Prosecutions v DJC* (2012) 36 VR 33; [2012] VSCA 132 at [47]–[51] and [55]–[57], per curiam. Both these cases deal with s 137 but notably s 114 was not applicable to either case under the transitional provision of the Act.
- 100 *R v Carusi* (1997) 92 A Crim R 52. However, see *Director of Public Prosecutions v DJC* (2012) 36 VR 33; [2012] VSCA 132 at [55]–[57], per curiam.
- 101 See *Winmar v Western Australia* (2007) 35 WAR 159; 177 A Crim R 418; [2007] WASCA 244 at [38]–[56] for a discussion of some of the potential advantages and disadvantages of photo-boards, called digiboard in Western Australia, over identification parades.
- 102 *Alexander v The Queen* (1981) 145 CLR 395; 55 ALJR 355; 34 ALR 289 at 433 (CLR).
- 103 See *Evidence Act 2008*, s 137. See also *R v Pearsall* (1990) 49 A Crim R 439 at 444.
- 104 *Alexander v The Queen* (1981) 145 CLR 395; 55 ALJR 355; 34 ALR 289 at 400 (CLR).
- 105 *Iliovski v The Queen* [2006] NSWCCA 164 at [118]–[125], per Hunt AJA, Adams and Latham JJ agreeing. See also *Alexander v The Queen* (1981) 145 CLR 395; 55 ALJR 355; 34 ALR 289 at 401 (CLR).

- 106 Compare *Crimes Act 1914* (Cth), s 3ZM(6) where rules for the conduct of an
 107 identification parade are prescribed.
R v Hamood (1987) 46 SASR 340; 27 A Crim R 184 at 341 (SASR); at 185 (A
 108 Crim R).
R v Penny (1997) 91 A Crim R 288.
 109 *Evidence Act 2008*, s 138. See also *R v Clune* [1982] VR 1; (1981) 5 A Crim R
 246 at 9, 11, 26–27 (VR); at 254, 257, 272–273 (A Crim R).
 110 *R v Clune* [1982] VR 1; (1981) 5 A Crim R 246 at 22–23 (VR); at 269 (A Crim R).
 111 *R v Clune* [1982] VR 1; (1981) 5 A Crim R 246 at 23 (VR); at 269 (A Crim
 R); *Bales v Parmeter* (1935) 35 SR (NSW) 182; 52 WN (NSW) 41 at 189 (SR
 (NSW)); *R v Miller* (1980) 25 SASR 170; 1 A Crim R 188 at 194 (A Crim R).
 112 *R v Clune* [1982] VR 1; (1981) 5 A Crim R 246.
 113 *R v Banner* [1970] VR 240; *R v Clune* [1982] VR 1; (1981) 5 A Crim R 246 at
 10 (VR); at 256 (A Crim R).
 114 *R v Clune* [1982] VR 1; (1981) 5 A Crim R 246 at 11, 27 (VR); at 257, 273 (A
 Crim R); *R v McCarthy* (1993) 71 A Crim R 395; *R v Davies* (2005) 11 VR 314;
 153 A Crim R 217; [2005] VSCA 90.
 115 *R v Clune* [1982] VR 1; (1981) 5 A Crim R 246 at 9–11 (VR); at 255–256 (A
 Crim R).
 116 *R v Shannon* (1987) 47 SASR 347; 29 A Crim R 434.
 117 *R v Shannon* (1987) 47 SASR 347; 29 A Crim R 434 at 438 (A Crim R), a similar
 issue arose and was discussed by Crockett J in *R v Clune* [1982] VR 1; (1981) 5
 A Crim R 246 at 9–11 (VR); at 255–256 (A Crim R).
 118 *R v Wright* (1991) 60 A Crim R 215 at 218, per Slicer J citing from *Alexander*
v The Queen (1981) 145 CLR 395; 55 ALJR 355; 34 ALR 289 at 402 (CLR),
 per Gibbs CJ.
 119 *R v Wright* (1991) 60 A Crim R 215.
 120 *R v Burchielli* [1981] VR 611; (1980) 2 A Crim R 352 at 622 (VR).
 121 It might be argued the phrase “kept for the use of police officers” in *Evidence Act*
2008, s 115(1) should be given broad meaning and that it covers CCTV footage,
 and stills taken from CCTV footage, related to a particular investigation and not
 just the collection of images kept for the purpose of compiling photo-boards etc.
 However, in *R v Hennessy* [2001] NSWCCA 36 at [24] O’Keefe J, with whom
 Spigelman CJ and Barr J agreed, suggested the reference to “kept for use of police
 officers” in s 115(1) was concerned largely with what are colloquially know as
 “mug shots” and held it was not directed to security camera photographs. See
 also *Pace (A Pseudonym) v R* (2014) 247 A Crim R 1; [2014] VSCA 317 at [21].
 122 *R v Davies* (2005) 11 VR 314; 153 A Crim R 217; [2005] VSCA 90.
 123 *R v Davies* (2005) 11 VR 314; 153 A Crim R 217; [2005] VSCA 90.

- 124 *Alexander v The Queen* (1981) 145 CLR 395; 55 ALJR 355; 34 ALR 289 at 399
(CLR), per Gibbs CJ.
- 125 *Alexander v The Queen* (1981) 145 CLR 395; 55 ALJR 355; 34 ALR 289 at 400
(CLR), per Gibbs CJ.
- 126 *R v Clune* [1982] VR 1; (1981) 5 A Crim R 246 at 13 (VR); at 258 (A Crim R).
- 127 *Alexander v The Queen* (1981) 145 CLR 395; 55 ALJR 355; 34 ALR 289 at 400
(CLR). *R v D* (2008) 2 ACTLR 225; 220 FLR 169; 187 A Crim R 521; [2008]
ACTSC 82.
- 128 See *Iliovski v The Queen* [2006] NSWCCA 164. See also *R v Carusi* (1997) 92
A Crim R 52 at 64, but note it was decided prior to the Uniform Evidence Act
came into effect.
- 129 *Alexander v The Queen* (1981) 145 CLR 395; 55 ALJR 355; 34 ALR 289 at 427
(CLR), per Mason J.
- 130 *Alexander v The Queen* (1981) 145 CLR 395; 55 ALJR 355; 34 ALR 289 at 399
(CLR), per Gibbs CJ cited by Crockett J in *R v Clune* [1982] VR 1; (1981) 5 A
Crim R 246 at 12 (VR); at 258 (A Crim R).
- 131 *Alexander v The Queen* (1981) 145 CLR 395; 55 ALJR 355; 34 ALR 289 at
433 (CLR), per Mason J. See discussion of *Evidence Act 2008*, s 59 and cases at
[ID.2180] and [ID.2340] and in footnotes thereto.
- 132 *R v Britten* (1988) 51 SASR 567 at 572; *R v Clark* (1996) 91 A Crim R 46 at
52; see also *R v Tapatu* [2005] VSCA 256 at [50]–[56]; *Murdoch v The Queen*
(2007) 167 A Crim R 329; [2007] NTCCA 1 at [110].
- 133 *R v Clark* (1996) 91 A Crim R 46 at 52.
- 134 *Festa v The Queen* (2001) 208 CLR 593; 76 ALJR 291; 185 ALR 394; [2001]
HCA 72 at [18], per Gleeson CJ, at [52], per McHugh J; see also *R v Tapatu*
[2005] VSCA 256 at [50]–[56] and *Fadel v R* (2017) 94 NSWLR 670; [2017]
NSWCCA 134 at [71]–[90] per Simpson JA, Button and Adams JJ agreeing.
- 135 *R v Saxon* [1998] 1 VR 503; (1997) 92 A Crim R 188 at 198–199 (A Crim R).
- 136 *Festa v The Queen* (2001) 208 CLR 593; 76 ALJR 291; 185 ALR 394; [2001]
HCA 72 at [77]–[82], per McHugh J. See also *R v Akgul* (2002) 5 VR 537; [2002]
VSCA 222 as an example of difficulties that can arise from the manner in which
the prosecution elicits evidence of identification in court or within the precincts
of the court.
- 137 However, in *R v Hennessy* [2001] NSWCCA 36 at [24] O’Keefe J, with whom
Spigelman CJ and Barr J agreed, suggested the reference to “kept for use of police
officers” in s 115(1) was concerned largely with what are colloquially know as
“mug shots” and held it was not directed to security camera photographs.
- 138 *Evidence Act 2008*, s 115(2).
- 139 *Evidence Act 2008*, s 115(3).
- 140 *Evidence Act 2008*, s 115(4).

- 141 *Evidence Act 2008*, s 115(5). For example see *Harika v R*; *Hamann v R* [2023] VSCA 317 at [16] – [19] per Priest JA, [93] – [99] per Macaulay JA, Taylor JA agreeing.
- 142 *Winmar v Western Australia* (2007) 35 WAR 159; 177 A Crim R 418; [2007] WASCA 244 at [38]–[56]. The Court of Appeal in *Winmar v Western Australia* comprised five justices who delivered a single judgment. It follows the court intended the reasons would provide significant guidance for Western Australian courts on the issue. In Western Australia a photo-board is called a digiboard. In *R v Campbell* (2007) 175 A Crim R 79; [2007] VSCA 189 at [23], Ashley JA and Kaye AJA, with whom Nettle JA agreed, noted it would have been inappropriate for the trial judge to have instructed the jury on the comparison between the two processes of identification. In *Director of Public Prosecutions v DJC* (2012) 36 VR 33; [2012] VSCA 132 at [47]–[49], per curiam, observed the fact it was photo-board evidence did not deprive the evidence of probative value but went to its weight.
- 143 *Evidence Act 2008*, s 115(2). Other forms of custody suggested by the pictures, such custody in a prison, is not police custody and does not, of itself, give rise to inadmissibility pursuant to s 115(2), see *Wilson v The King* [2022] VSCA 261 at [72] – [75] per curiam.
- 144 *Wilson v The King* [2022] VSCA 261 at [63] – [64] per curiam.
- 145 *R v Batty* (unreported, NSWCCA, 6 August 1997), pp 10–13, per McInerney J, Abadee and Bruce JJ agreeing. In *R v Batty* some of the four volumes of photographs, each containing hundreds of images, had “Offenders Photographs” captioned on the front and the photographs were partially covered so as to conceal a sign carrying the subject's name, date of birth and other details. Held: nothing in the photos themselves, as examined, suggested the persons were in police custody. See also *Pace (A Pseudonym) v R* (2014) 247 A Crim R 1; [2014] VSCA 317 at [23] per Priest and Beach JJA and *Wilson v The King* [2022] VSCA 261 at [72] – [73] per curiam.
- 146 *Wilson v The King* [2022] VSCA 261 at [66] per curiam.
- 147 *Wilson v The King* [2022] VSCA 261 at [81] per curiam.
- 148 *R v McKellar* [2000] NSWCCA 523 at [32]–[44].
- 149 *R v Darwiche* (2006) 166 A Crim R 28; [2006] NSWSC 924. In *R v Darwiche* Bell J at [28]–[33] held the accused Aouad was in the custody of the prison governor, not the custody of a police officer investigating the offence, even though he had been transferred from prison to the police station for the purpose of recorded interview during which the issue of an identification parade was raised. Bell J’s approach is not consistent with the definition of “in custody” in *Crimes Act 1958*, s 464(1) and it must be doubted whether her approach would be adopted in Victoria. Bell J at [34] also held Aouad had refused to participate

in an identification parade albeit he remained silent and his lawyer indicated he may agree if provided with further information by police regarding why he was considered a suspect.

- 150 *Director of Public Prosecutions (Vic) v Byrne (No 2)* [2016] VSC 345 at [20]–
[27] per John Dixon J provides a helpful analysis of the relevant legislation and
the basis for determining whether a person is in police custody or prison under
Victorian law at the time of his ruling. See also *Pham v The Queen* [2015] VSCA
263.
- 151 In *R v McKellar* [2000] NSWCCA 523 at [33]–[35], the issue is discussed in the
context of the factual matrix before the appeal court but not decided.
- 152 *Evidence Act 2008*, s 114.
- 153 See *Evidence Act 2008*, ss 55–58.
- 154 See *Evidence Act 2008*, s 164(1). See *R v Clark* (1996) 91 A Crim R 46 at 51.
- 155 *R v Vincec* (1990) 50 A Crim R 203.
- 156 *Pitkin v The Queen* (1995) 69 ALJR 612; 80 A Crim R 302; 130 ALR 35; and
cf with *R v Theos* (1996) 89 A Crim R 486.
- 157 *Alexander v The Queen* (1981) 145 CLR 395; 55 ALJR 355; 34 ALR 289 at 400–
401 (CLR); *R v Carusi* (1997) 92 A Crim R 52 at 55.
- 158 *Alexander v The Queen* (1981) 145 CLR 395; 55 ALJR 355; 34 ALR 289 at
431 (CLR), per Mason J. See also *THD v The Queen* (2010) 200 A Crim R 106;
[2010] VSCA 115 at [34], per Nettle JA, cited with approval in *Director of Public
Prosecutions v DJC* (2012) 36 VR 33; [2012] VSCA 132 at [51] per curiam. In
both *THD v The Queen* and *Director of Public Prosecutions v DJC*, *Evidence Act
2008*, ss 114 and 115 were not applicable pursuant to Sch 2 cl 9 of the Act as the
identification predated the Act. However s 137 was applicable in both cases.
- 159 See *Evidence Act 2008*, s 137. See *R v Clark* (1996) 91 A Crim R 46 at 51.
- 160 *R v Carusi* (1997) 92 A Crim R 52 at 65 and note this is not intended to be an
exhaustive list. *R v Carusi* dealt was an appeal from a New South Wales trial
which took place prior to the *Evidence Act 1995 (NSW)* and thus is a decision
under the common law. This passage from *R v Carusi* was quoted with approval
by Williams J in *R v Nguyen Ho (No 3)* [2007] VSC 295 at [4].
- 161 See *Crimes Act 1958*, s 464(1) and discussion of “in custody of a police officer
investigating the related offence” in *R v McKellar* [2000] NSWCCA 523 at [32]–
[44]; *R v Darwiche* (2006) 166 A Crim R 28; [2006] NSWSC 924 at [28]–[33].
- 162 *Evidence Act 2008*, s 115(4)(b).
- 163 *Evidence Act 2008*, s 115(5)(c).
- 164 *Evidence Act 2008*, s 115(5)(a).
- 165 *Evidence Act 2008*, s 115(4)(a), (5)(b).
- 166 *Evidence Act 2008*, s 115(2).

- 167 *Davies v The King* (1937) 57 CLR 170; [1937] HCA 27 at 180–181; *Alexander v The Queen* (1981) 145 CLR 395; 55 ALJR 355; 34 ALR 289 at 410 (CLR), per Gibbs CJ and at 430–431, per Mason J. In the context of *Evidence Act 2008*, s 137 see discussion in *Director of Public Prosecutions v DJC* (2012) 36 VR 33; [2012] VSCA 132 at [44]–[58], per curiam.
- 168 *Evidence Act 2008*, s 115(2).
- 169 *R v Clune* [1982] VR 1; (1981) 5 A Crim R 246 at 12 (VR); at 258 (A Crim R), where the accused was the only person in the photographs with a moustache and the other photographs were clearly of men in police custody. Compare *R v Blick* (2000) 111 A Crim R 326; [2000] NSWCCA 61 where similar evidence was held to be of low probative value but the prejudice to the accused substantial; *THD v The Queen* (2010) 200 A Crim R 106; [2010] VSCA 115 where it was said the accused was significantly older and the only person in the photos with long hair; *Director of Public Prosecutions v DJC* (2012) 36 VR 33; [2012] VSCA 132 where it was said the accused was the only person depicted wearing a hoodie. It should be noted that in *THD v The Queen* and *Director of Public Prosecutions v DJC*, *Evidence Act 2008*, ss 114 and 115 were not applicable pursuant to Sch 2, cl 9 but, as in *R v Blick*, *Evidence Act 2008*, s 137 or its equivalent applied and once the prejudicial effect of the evidence outweighs its probative value the trial judge has no discretion and must reject the evidence. See also cases discussed in *THD v The Queen* at [8] by Maxwell P. Given *Evidence Act 2008*, ss 114(2), 115(2) and (9), *R v Clune* (at 12 (VR)) would not be decided the same way now on the admissibility of the photograph identification because the photos were clearly of persons in police custody.
- 170 As noted earlier in this discussion identification from security photographs, CCTV and the like will not necessarily be picture identification evidence as defined. See discussion of identification and recognition at [ID.2180].
- 171 *R v Goodall* [1982] VR 33 at 39–40 and 44; *R v Theos* (1996) 89 A Crim R 486 at 497–498.
- 172 *R v Theos* (1996) 89 A Crim R 486 at 498.
- 173 *R v Hentschel* [1988] VR 362 at 375–377; *R v Sparkes* (1996) 88 A Crim R 194.
- 174 *R v Cook* [1987] QB 417 at 425; part of a longer passage cited in *R v Sparkes* (1996) 88 A Crim R 194 at 206.
- 175 *Cross on Evidence* (5th ed, LexisNexis, 1996) at [31195]. This cautionary note was acknowledged in *R v Sparkes* (1996) 88 A Crim R 194 at 206, but notwithstanding it the photofit was held admissible on the basis of the English authority of *R v Cook* [1987] QB 417 at 425.
- 176 *R v Barbaro* (2000) 112 A Crim R 551; [2000] NSWCCA 192 at [43], per Grove J, Spigelman CJ and Wood CJ at CL agreeing (in relation picture identification); *R v Darwiche* (2006) 166 A Crim R 28; [2006] NSWSC 924 at [45]–[46], per

- Bell J; *Aouad v The Queen* (2011) 207 A Crim R 411; [2011] NSWCCA 61 at [251]–[255], per James J, McClellan CJ at CL and Johnson J agreeing (in relation to photofit evidence). Note *Aouad v The Queen* is the appeal from the trial conducted by Bell J in *R v Darwiche*. Note the New South Wales cases refer to a “comfit image”, the New South Wales equivalent of a photofit image.
- 177 *Aouad v The Queen* (2011) 207 A Crim R 411; [2011] NSWCCA 61 at [263], per James J, McClellan CJ at CL and Johnson J agreeing.
- 178 *R v Darwiche* (2006) 166 A Crim R 28; [2006] NSWSC 924 at [48], per Bell J.
- 179 *Evidence Act 2008*, ss 59, 62.
- 180 See discussion of *Evidence Act 2008*, ss 66 and 66A in *R v Barbaro* (2000) 112 A Crim R 551; [2000] NSWCCA 192 at [30]–[36], [40]–[42], per Grove J, Spigelman CJ and Wood CJ at CL agreeing (note *Evidence Act 1995* (NSW), s 72 referred to is the equivalent of *Evidence Act 2008*, s 66A); *R v Darwiche* (2006) 166 A Crim R 28; [2006] NSWSC 924 at [45], per Bell J; *Aouad v The Queen* (2011) 207 A Crim R 411; [2011] NSWCCA 61 at [259]–[262], per James J, McClellan CJ at CL and Johnson J agreeing (hearing the appeal from the trial conducted by Bell J).
- 181 *Graham v The Queen* (1998) 195 CLR 606; 72 ALJR 1491; 102 A Crim R 438; 157 ALR 404 at [4], per Gaudron, Gummow and Hayne JJ. See also discussion of “fresh in the memory” in *R v Barbaro* (2000) 112 A Crim R 551; [2000] NSWCCA 192; *R v Darwiche* (2006) 166 A Crim R 28; [2006] NSWSC 924; *Aouad v The Queen* (2011) 207 A Crim R 411; [2011] NSWCCA 61.
- 182 *R v Sparkes* (1996) 88 A Crim R 194 at 207.
- 183 *R v Sparkes* (1996) 88 A Crim R 194 at 199–200, 207.
- 184 See for example *R v Tapatu* [2005] VSCA 256 where the witness constructed a photofit several days after the relevant event and then picked the accused from a photo-board of 12 photos five months later. At trial the witness was not invited to make a dock identification but was asked by the accused, representing himself, to describe the accused as he appeared before the jury for the purpose of contrasting that description with an earlier description.
- 185 For example see *Reid v R* [2014] VSCA 295. Reid’s case involving a verbal description, not a photofit description, highlights that inconsistencies between a description and the accused, selected in an identification parade, depicted in the photo chosen from the photo-board or as they appear in court is generally a matter for appropriate directions to the jury, not a question of admissibility.
- 186 See *Evidence Act 2008*, ss 135, 137, 138. See *R v Clark* (1996) 91 A Crim R 46 at 51; *R v Carusi* (1997) 92 A Crim R 52.
- 187 See generally [ES.20] ff.
- 188 *Victoria Police Manual*, section 5.3 VPM 111–1.

- 189 *Neville v The Queen* (2004) 145 A Crim R 108; [2004] WASCA 62 is an example of voice recognition where a combination of voice and visual factors are relied upon by the witnesses to found the recognition of the suspect on a video as the accused woman, who was known to the police witnesses. It also involves a police witness giving evidence of identification as an ad hoc expert on the accused woman's voice based on repeatedly listening to her voice whilst transcribing telephone intercepts.
- 190 *R v Smith* [1984] 1 NSWLR 462; *R v Smith* (1986) 7 NSWLR 444; *R v Brownlowe* (1986) 7 NSWLR 461.
- 191 *R v Harris (No 3)* [1990] VR 310 (Ormiston J); *R v Hentschel* [1988] VR 362 (FC). The decision of Ormiston J, a ruling on a voir dire, was handed down before the decision of the Full Court in *R v Hentschel* although not reported until several years later. In *R v Callaghan* (2001) 4 VR 79; 124 A Crim R 126; [2001] VSCA 209 at 141–142 (A Crim R) the Court of Appeal firmly stated that the principles established in *R v Harris (No 3)* and *R v Hentschel* should continue to be applied in Victoria.
- 192 *R v Adler* (2000) 52 NSWLR 451; 116 A Crim R 38; [2000] NSWCCA 357.
- 193 *IMM v The Queen* (2016) 257 CLR 300; 90 ALJR 529; 330 ALR 382; [2016] HCA 14 at [35]–[54] per French CJ, Kiefel, Bell and Keane JJ. See commentary at [EA.PT3.6.220] “Reliability or credibility of evidence not relevant to admissibility”. See *Director of Public Prosecutions (Vic) v Wearn* [2018] VSCA 39. See also *MA v The Queen* (2011) 31 VR 203; [2011] VSCA 13 at [17] where Redlich JA (Weinberg and Bongiorno JJA agreeing) when discussing *R v Mundine* (2008) 182 A Crim R 302; [2008] NSWCCA 55 left open the question whether probative value must always be approached in such a confined way where reliability is a real issue. See discussion in *R v Shamouil* (2006) 66 NSWLR 228; [2006] NSWCCA 112 at [51]–[64], per Spigelman CJ, Simpson and Adams JJ agreeing; *BSJ v The Queen* (2012) 35 VR 475; [2012] VSCA 93 at [15]–[21], per curiam discussing “probative value” in the context of *Evidence Act 2008*, ss 97, 98 rather than s 137; *Director of Public Prosecutions v DJC* (2012) 36 VR 33; [2012] VSCA 132 at [45]–[46], per curiam. See also *Moreno v The King* [2023] VSCA 98 at [50] – [81] where the Court of Appeal discusses the application of the principles established in *IMM's case* (2016) 257 CLR 300; 90 ALJR 529; 330 ALR 382; [2016] HCA 14 and looks at a number of cases to draw out how those principles are to be applied in the context of visual identification evidence. The Court observed, at [56], the quality of the identification evidence must be considered when assessing the probative value of such evidence and doing so “does not breach the injunction in *IMM* that reliability and credibility must be put to one side.”
- 194 *R v Harris (No 3)* [1990] VR 310 at 314 (Ormiston J).

- 195 See *Jury Directions Act 2015*, ss 35–37, *Evidence Act 2008*, ss 135–138. See also *R v Harris (No 3)* [1990] VR 310 at 316 (Ormiston J) and see discussion at [ID.2540] – Directions to the jury or tribunal of fact. For an example of a failure to give adequate direction to the jury on voice identification see discussion in *R v Camilleri* (2001) 127 A Crim R 290; [2001] NSWCCA 527 at 296–299.
- 196 *R v Harris (No 3)* [1990] VR 310 at 319 (Ormiston J).
- 197 *R v Murphy* (1995) 85 A Crim R 286 at 292, per Thomas J.
- 198 *R v Callaghan* (2001) 4 VR 79; 124 A Crim R 126; [2001] VSCA 209 at 131, 139–143 (A Crim R), per Winneke P, Brooking JA and O'Bryan AJA concurring. However in *Li v The Queen* (2003) 139 A Crim R 281; [2003] NSWCCA 290 at [60], Ipp JA, whilst accepting the analogy with a lineup, or photograph book, was appropriate in some situations did not consider it appropriate to the position of an interpreter and translator who, as an ad hoc expert, identifies a voice by voice comparison.
- 199 *R v Harris (No 3)* [1990] VR 310 at 315 (Ormiston J).
- 200 *R v Harris (No 3)* [1990] VR 310 at 314–315, 318 (Ormiston J).
- 201 *R v Harris (No 3)* [1990] VR 310 at 317–318 (Ormiston J).
- 202 *Pitkin v The Queen* (1995) 69 ALJR 612; 80 A Crim R 302; 130 ALR 35.
- 203 *R v Theos* (1996) 89 A Crim R 486; *R v Gibson* (1999) 110 A Crim R 180; [1999] NSWCCA 370 at 187. In *R v Gibson* no objection was taken to the evidence at the trial.
- 204 *Festa v The Queen* (2001) 208 CLR 593; 76 ALJR 291; 185 ALR 394; [2001] HCA 72 at [11], per Gleeson CJ.
- 205 *Jury Directions Act 2015*, s 3, definition of “general directions” at (h). *Festa v The Queen* (2001) 208 CLR 593; 76 ALJR 291; 185 ALR 394; [2001] HCA 72; *R v Camilleri* (2001) 127 A Crim R 290; [2001] NSWCCA 527 and see discussion at [ID.2540] – Directions to the jury or tribunal of fact.
- 206 *Allstate Life Insurance Co v Australia & New Zealand Banking Group Ltd (No 5)* (1996) 64 FCR 73; 136 ALR 627, per Lindgren J.
- 207 See *Evidence Act 2008*, s 78 regarding lay opinions and ss 135–138 regarding the exclusionary rules.
- 208 *Smith v The Queen* (2001) 206 CLR 650; 75 ALJR 1398; 125 A Crim R 10; 181 ALR 354; [2001] HCA 50; see also *R v Solomon* (2005) 92 SASR 331; 192 FLR 421; [2005] SASC 265 at [76]–[80] where Doyle CJ distinguished *Smith v The Queen*, and relied upon *Butera v Director of Public Prosecutions* (1987) 164 CLR 180; 62 ALJR 7; 30 A Crim R 417; 76 ALR 45 to admit the police officer's evidence of voice comparison on the basis that the transcript of the conversation prepared by the police officer was admitted to save the jury the hours of time required to prepare a transcript from the recording.

- 209 See *Korgbara v R* (2007) 71 NSWLR 187; 210 FLR 36; 170 A Crim R 568;
[2007] NSWCCA 84.
- 210 *Bulejcik v The Queen* (1996) 185 CLR 375; 70 ALJR 462; 86 A Crim R 467;
135 ALR 517.
- 211 *Bulejcik v The Queen* (1996) 185 CLR 375; 70 ALJR 462; 86 A Crim R 467;
135 ALR 517 at 399–400 (CLR).
- 212 *Bulejcik v The Queen* (1996) 185 CLR 375; 70 ALJR 462; 86 A Crim R 467;
135 ALR 517 at 398 (CLR).
- 213 *Bulejcik v The Queen* (1996) 185 CLR 375; 70 ALJR 462; 86 A Crim R 467;
135 ALR 517 at 408 (CLR).
- 214 *R v Smith* (1990) 50 A Crim R 434 at 453–454.
- 215 *Nguyen v The Queen* (2002) 26 WAR 59; 131 A Crim R 341; [2002] WASCA
181 particularly at [56]–[81], per Malcolm CJ; *R v Bueti* (1997) 70 SASR 370;
R v Ong (2007) 176 A Crim R 366; [2007] VSCA 206. Compare *Korgbara v R*
(2007) 71 NSWLR 187; 210 FLR 36; 170 A Crim R 568; [2007] NSWCCA 84.
- 216 *Butera v Director of Public Prosecutions* (1987) 164 CLR 180; 62 ALJR 7; 30 A
Crim R 417; 76 ALR 45. See discussion of relevant cases in *Irani v The Queen*
(2008) 188 A Crim R 125; [2008] NSWCCA 217 at [17]–[24], per Hoeben J,
McClellan CJ at CL and Harrison J agreeing.
- 217 *R v Leung* (1999) 47 NSWLR 405; [1999] NSWCCA 287 at [42]–[48]; *Li v The*
Queen (2003) 139 A Crim R 281; [2003] NSWCCA 290.
- 218 Edmond G “The admissibility of forensic science and medicine evidence under
the Uniform Evidence Law” (2014) 38 Crim LJ 136, at p 148. The reference is
to *Evidence Act 2008*, s 79(1).
- 219 *Dasreef Pty Ltd v Hawchar* (2011) 243 CLR 588; (2011) 277 ALR 611; (2011)
85 ALJR 694; [2011] HCA 21 at [37] per French CJ, Gummow, Hayne, Crennan,
Kiefel and Bell JJ. The reference is to *Makita (Aust) Pty Ltd v Sprowles* (2001)
52 NSWLR 705 at [85]; See also *HG v The Queen* (1999) 197 CLR 414; 160
ALR 554; [1999] HCA 2 at [39].
- 220 *Honeysett v The Queen* (2014) 311 ALR 320; (2014) 88 ALJR 786; [2014] HCA
29 at [48].
- 221 *Kheir v R* [2014] VSCA 200. See also *Tran v The Queen* [2016] VSCA 79 at [83]–
[114], where the court discussed Kheir at some length and adopted its reasoning.
- 222 See *Butera v Director of Public Prosecutions* (1987) 164 CLR 180.
- 223 See *Leung* (1999) 47 NSWLR 405; [1999] NSWCCA287; (2003) 139 A Crim
R 281; [2003] NSWCCA 290.
- 224 *R v Harris (No 3)* [1990] VR 310. See discussion of Harris at [ID.2380].
- 225 *Kheir v R* [2014] VSCA 200 at [62]–[64].
- 226 *Kheir v R* [2014] VSCA 200 at [53]–[54], [62] and [68]. The reference is to *R*
v Leung (1999) 47 NSWLR 405; [1999] NSWCCA 287. Compare *Nguyen v R*

(2017) 264 A Crim R 405; [2017] NSWCCA 4 at [33]–[40] and [41]–[49] per Basten JA, with Hulme and Schimdt JJ agreeing in the result but not agreeing leave to appeal should be granted.

227 *Lithgow City Council v Jackson* (2011) 244 CLR 352 for analysis of s 78 of the *Evidence Act 2008*. See also *Patrick v R* [2014] VSCA 89.

228 *Kheir v R* [2014] VSCA 200 at [66] and [68] per curiam.

229 With regard to admissibility of recorded police interview for purposes of voice comparison compare *Haddara v R* [2014] VSCA 100. In *Haddara* [2014] VSCA 100 the recorded police interview also contained no admissions but was admitted into evidence for the sole purpose of voice comparison. On appeal held the recorded police interview was admissible as relevant evidence for the purpose of voice comparison and, under the *Evidence Act 2008*, the s 90 discretion to exclude admissions did not arise because the interview did not contain any admissions, there was no basis for excluding the interview on bases of s 137 as its probative value for voice comparison was high and s 138 did not apply because there was nothing improper or illegal about the interview even though the accused had a significant intellectual disability.

230 The appellant was visually identified as the person who was the directing force or mastermind present at the house where the armed robbery took place and the occasion the person subject to the imprisonment and extortion demands discussed on the intercept recordings was abducted. Two witnesses visually identified the appellant as a person known to them by his given name “Ali” and as the person who directed the other offenders “That’s them.Go for it boys” before immediately leaving the scene. The mobile telephone with the IMEI number related to the intercepted calls was found in the handbag of a female in the house where the appellant was arrested at the time of the appellant's arrest yet the intercepted calls from that mobile phone involved a male voice. In one intercepted call tendered in evidence the male identified himself as “Ali”.

231 See *Haddara v R* [2014] VSCA 100 at [101]–[103] for a description of acoustic analysis of this kind including the difficulties of finding a suitable database for the purpose of statistical analysis.

232 *R v Lao* (2002) 5 VR 129; 137 A Crim R 20; [2002] VSCA 157 at [25]–[29]. It appears that at the trial the prosecution recognised that the identity of the speakers was the issue and relied upon evidence of the possession of mobile phones, the movements of the accused, and the telephone numbers contacted by those using the phones to establish the identity of the persons speaking. On appeal a retrial was granted on the grounds that the trial judge in his charge to the jury had aligned himself with the prosecution, however the use made of the evidence to establish the identification of the speakers was accepted as legitimate in that case.

- 233 *AK v Western Australia* (2008) 232 CLR 438; 82 ALJR 534; 182 A Crim R 262; 243 ALR 409; [2008] HCA 8. Heydon J lists a number of cases where smell was used in identification evidence at footnote 38 at [66]. In this case the majority, Gummow and Hayne JJ in a joint judgment and Heydon J in a separate judgment allowed the appeal, quashed the conviction and ordered a new trial on the ground the trial judge, who sat without a jury, failed to provide adequate reasons for finding the appellant guilty. Gleeson CJ and Kiefel J dissented in a joint judgment. Only Heydon J dealt with the question of the identification evidence in any detail although Gleeson CJ and Kiefel J dealt with it briefly at [21].
- 234 *AK v Western Australia* (2008) 232 CLR 438; 82 ALJR 534; 182 A Crim R 262; 243 ALR 409; [2008] HCA 8 at [74], per Heydon J.
- 235 *AK v Western Australia* (2008) 232 CLR 438; 82 ALJR 534; 182 A Crim R 262; 243 ALR 409; [2008] HCA 8 at [71].
- 236 *AK v Western Australia* (2008) 232 CLR 438; 82 ALJR 534; 182 A Crim R 262; 243 ALR 409; [2008] HCA 8 at [75].
- 237 *AK v Western Australia* (2008) 232 CLR 438; 82 ALJR 534; 182 A Crim R 262; 243 ALR 409; [2008] HCA 8 at [21].
- 238 *Evans v The Queen* (2007) 235 CLR 521; 82 ALJR 250; 179 A Crim R 232; 241 ALR 400; [2007] HCA 59. It should be noted the High Court held that *Evidence Act 1995* (NSW), s 53 dealing with “Views” did not apply and so the common law rules were applicable. It should be noted that *Evidence Act 2008*, s 53 is identical to *Evidence Act 1995* (NSW), s 53. Heydon J set out the common law distinction between views, demonstrations and reconstructions and concluded that *Evidence Act 1995* (NSW), s 53 did not apply to what happened in court at trial – see [193]–[206]. It should also be noted there was evidence of strong match between the DNA of the accused and the DNA extracted from a cap located at the crime scene and able to be seen in some still photographs taken from the security CCTV but not in others of the same area. Compare *R v Klein (No 1)* [2008] NSWSC 333.
- 239 *Evans v The Queen* (2007) 235 CLR 521; 82 ALJR 250; 179 A Crim R 232; 241 ALR 400; [2007] HCA 59 at [14]–[16], per Gummow and Hayne JJ, at [61]–[62], per Kirby J, at [154]–[161], [167], per Heydon J, Crennan J agreeing with Heydon J. See [ID.2460] “Identification of objects” and *Murrell v The Queen* [2014] VSCA 334.
- 240 *Evans v The Queen* (2007) 235 CLR 521; 82 ALJR 250; 179 A Crim R 232; 241 ALR 400; [2007] HCA 59 at [27], per Gummow and Hayne JJ, at [222]–[226], per Heydon J, Crennan J agreeing with Heydon J. Kirby J held that the evidence was relevant but not permissible as it was unfair and seriously prejudicial.
- 241 *Evans v The Queen* (2007) 235 CLR 521; 82 ALJR 250; 179 A Crim R 232; 241 ALR 400; [2007] HCA 59 at [25]–[26], per Gummow and Hayne JJ.

- 242 *Evans v The Queen* (2007) 235 CLR 521; 82 ALJR 250; 179 A Crim R 232; 241 ALR 400; [2007] HCA 59 at [176]–[184], per Heydon J.
- 243 *Evans v The Queen* (2007) 235 CLR 521; 82 ALJR 250; 179 A Crim R 232; 241 ALR 400; [2007] HCA 59 at [185], [223]. Heydon J applied the test set out in *Evidence Act 1995* (NSW), s 137, which in general terms equates to the common law test of unfair prejudicial effect over probative value. The one aspect he held created a danger of unfair prejudice to the accused was that he was left sitting in front of the jury for some minutes wearing the balaclava whilst his counsel took objection to the evidence. His Honour considered it should not have been allowed to happen but did not consider it a serious miscarriage of justice, if it was a miscarriage at all. Note that *Evidence Act 2008*, s 137 is identical to *Evidence Act 1995* (NSW), s 137.
- 244 *Evans v The Queen* (2007) 235 CLR 521; 82 ALJR 250; 179 A Crim R 232; 241 ALR 400; [2007] HCA 59 at [107] and [111], per Kirby J.
- 245 *Evans v The Queen* (2007) 235 CLR 521; 82 ALJR 250; 179 A Crim R 232; 241 ALR 400; [2007] HCA 59 at [106]. Note *Evidence Act 1995* (NSW), s 53 is identical to *Evidence Act 2008*, s 53.
- 246 The majority being Gummow and Hayne JJ for the reasons set out in their joint judgment and Kirby J (*Evans v The Queen* (2007) 235 CLR 521; 82 ALJR 250; 179 A Crim R 232; 241 ALR 400; [2007] HCA 59 at [80]–[104]) for the reasons set out in his judgment with its very strong criticism of the reasons contained in the joint judgment.
- 247 *Evidence Act 2008*, Dictionary.
- 248 *Evidence Act 2008*, Pt 3.11, dealing with discretionary and mandatory exclusion, will apply to evidence of the identification of objects.
- 249 *R v Theos* (1996) 89 A Crim R 486. See also *Thompson v The Queen* (1989) 169 CLR 1; 63 ALJR 447; 41 A Crim R 134; 86 ALR 1; *Festa v The Queen* (2001) 208 CLR 593; 76 ALJR 291; 185 ALR 394; [2001] HCA 72; *R v Debs* [2008] VSCA 240; *R v Serrano* [2009] VSCA 140.
- 250 *Murrell v The Queen* [2014] VSCA 334 at [62], [64], [66] per Redlich JA (Maxwell P agreeing). In *Murrell*, Priest JA came to a different conclusion on the outcome based on his analysis of the evidence but applied the same legal principles. Priest JA sets out a very useful analysis of the relevant cases at [132]–[150].
- 251 *Murrell v The Queen* [2014] VSCA 334 at [83]–[86] per Redlich JA. Compare Priest JA at [124]–[125], [128] and [152]. See *Director of Public Prosecutions v Brownlie (Vic)* (2015) 254 A Crim R 360; [2015] VSCA 267, where witnesses were sent photos by police of the watches and jewellery items before subsequently coming to the police station to view the items and make statements

identifying them. Held at [41]: this at best went to the weight to be attributed to the evidence.

- 252 For discussion of the “principle of completeness”, see *Driscoll v The Queen* (1977) 137 CLR 517; 15 ALR 47; 51 ALJR 731; *Festa v The Queen* (2001) 208 CLR 593; 185 ALR 394; 76 ALJR 291; [2001] HCA 72; *Murrell v The Queen* [2014] VSCA 334.
- 253 *Jury Directions Act 2015*, s 35. See [ID.2540] for identification directions under the *Jury Directions Act 2015*.
- 254 See *R v Brown* [2011] QCA 16 at [26] and cases mentioned there; *Domican v The Queen* (1992) 173 CLR 555; 66 ALJR 285; 60 A Crim R 169; 106 ALR 203.
- 255 *Evidence Act 2008*, Dictionary.
- 256 See I Freckelton, “Tracker dog evidence” Ch 16A in I Freckelton and H Selby, *Expert Evidence* (subscription service, Thomson Reuters, 1993–).
- 257 See *Victoria Police Manual*, VPM 106–3 Canine Teams.
- 258 *R v Smith* (2009) 47 NSWLR 419; [1999] NSWCCA 317 at [19] per Sheller JA, quoted with approval by Johnson J in *Haidari v R* (2015) 251 A Crim R 422; [2015] NSWCCA 126 at [50]. On appeal to the High Court, in *Smith v The Queen* (2001) 206 CLR 650; 75 ALJR 1398; 125 A Crim R 10; 181 ALR 354; [2001] HCA 50 at [54], Kirby J noted wide latitude should be given to a trial judge “given the blurred boundary between fact and opinion”.
- 259 Edmond G “The admissibility of forensic science and medicine evidence under the Uniform Evidence Law” (2014) 38 Crim LJ 136, at pp 136 – 137.
- 260 *Evidence Act 2008*, s 79.
- 261 *R v Smith* [1987] VR 907; (1987) 25 A Crim R 1 at 911 (VR); at 6 (A Crim R), per Vincent J. See also *R v Griffith* [1997] 2 Qd R 524; (1995) 79 A Crim R 125 where evidence of police witnesses that the person wearing the stocking mask was the accused was ruled inadmissible on appeal as the witness was not an expert on the distortions caused by such a mask and was in no better position than the jury to make such an assessment. The police officers' knowledge of the past appearance of the appellant was relied on to qualify them to give the evidence. Thus the evidence had the additional problem of introducing into evidence the past association of the police officers with the accused. For a discussion of psychological expert testimony on various aspects of visual identification see I Coyle, D Field and G Miller, “The blindness of the eye-witness” (2008) 82 ALJ 471.
- 262 *Ali v The Queen* [2022] VSCA 31. *Ali* [2022] VSCA 31 involved allegations of aggravated burglary and sexual assault of the complainant at her home. In *Ali* [2022] VSCA 31 the DNA evidence indicated it was significantly more likely the accused was the source of DNA located on the windowsill of a neighbour's house, where the windowsill sample contained a sperm fraction and a non-sperm

fraction, and on a pillowcase recovered from the complainant's home. For a discussion of the DNA evidence in *Ali's case* [2022] VSCA 31 see commentary and footnote at [ID.3260] “Presenting the significance of the results”.

263 *Ali v The Queen* [2022] VSCA 31 at [61] – [71] per curiam. The Court reached this conclusion in part because of the approach the accused took to the expert witness' evidence at trial and partly because of the strength of the DNA evidence. The qualification and experience of the expert witness, Professor Thompson, is not identified in the reasons of the Court of Appeal.

264 *Winmar v Western Australia* (2007) 35 WAR 159; 177 A Crim R 418; [2007] WASCA 244.

265 In *Aytugrul v The Queen* (2012) 247 CLR 170; 86 ALJR 474; 215 A Crim R 501; 286 ALR 441; [2012] HCA 15, dealing with the admissibility of evidence as to the frequency a DNA profile would be found in the community, the plurality at [17], [20]–[23] acknowledged, without approving or accepting, that McClellan CJ at CL in the decision appealed from had referred to a number of articles on whether certain ways of expressing DNA statistics were more persuasive than others. The plurality observed that *Evidence Act 1995 (NSW)*, s 144 must be satisfied before judicial notice can be taken of such general propositions. See also Heydon J's discussion in *Aytugrul v The Queen* of the use of works on psychology to assist formulating rules about identification evidence and the importance of related expert evidence at [68]–[74].

266 *Winmar v Western Australia* (2007) 35 WAR 159; 177 A Crim R 418; [2007] WASCA 244 at [47]–[70].

267 Fillers are persons other than the suspect who participate in an identification parade or whose images appear in photo or video identification material.

268 Bradfield-Douglass A, Brewer N and Semmler CA, “Moderators of post-identification feedback effects on eyewitnesses' memory reports” in (2010) 15 Legal and Criminological Psychology 279 at 279–292. In context of a witness viewing more than one identification parade in regard to the same culprit see Palmer MA, Brewer N and Weber N, “Postidentification feedback affects subsequent eyewitness identification performance” in (2010) 16(4) Journal of Experimental Psychology: Applied 387 at 387–398.

269 Brewer N and Wells GL, “Eyewitness identification” in (2011) 20 Current Directions in Psychological Science 24 at 24–27.

270 Brewer N, Weber N, Wootton D and Lindsay D, “Identifying the bad guy in a lineup using confidence judgments under deadline pressure” in Psychological Science published online on 28 August 2012 at <http://pss.sagepub.com/content/early/2012/08/27/0956797612441217>.

- 271 *Eyewitness Identification Reform factsheet*, Innocence Project website available at http://www.innocenceproject.org/Content/Eyewitness_Identification_Reform.php.
- 272 *R v Murdoch (No 4)* (2005) 195 FLR 421; [2005] NTSC 78 at [91]–[93]. In *R v Tang* (2006) 65 NSWLR 681; 161 A Crim R 377; [2006] NSWCCA 167 the New South Wales Court of Criminal Appeal, again dealing with the evidence of Dr Sutisno, accepted that there was a relevant body of expertise based on facial identifications (at [135]) but concluded there was no evidence in the trial to show facial mapping, let alone body mapping, constituted a “specialised knowledge” of a character which could support opinion of identity (at [146]). See discussion of *R v Murdoch (No 4)*, including the appeal to the Northern Territory Court of Criminal Appeal, in Coyle I, Field D and Miller G, “The blindness of the eyewitness” (2008) 82 ALJ 471.
- 273 *R v Murdoch (No 4)* (2005) 195 FLR 421; [2005] NTSC 78 at [97]–[106]. The English authorities relied upon were *R v Stockwell* (1993) 97 Cr App R 260, *R v Clarke* [1995] 2 Cr App R 425, *R v Hookway* [1999] Crim LR 750 and *Re Attorney-General's Reference (UK) (No 2 of 2002)* [2003] 1 Cr App R 321; [2002] EWCA Crim 2373.
- 274 *R v Murdoch (No 4)* (2005) 195 FLR 421; [2005] NTSC 78 at [108]–[111]. In reaching his finding Martin CJ considered (at [117]) the New South Wales case of *Re Appeal of BLM* (unreported, NSWDC, Blanch CJ, 14 September 2005), where Blanch CJ rejected evidence of this sort by the same witness, Dr Sutisno. Martin CJ distinguished *Re Appeal of BLM* because in that case she sought to give evidence based on a new development in her field of expertise, for which she was seeking a patent, and was not prepared to disclose the protocols she relied upon.
- 275 *Murdoch v The Queen* (2007) 167 A Crim R 329; [2007] NTCCA 1 at [273]–[289]. In reaching this conclusion the Court, comprised of Angel CJ, Riley J and Olsen AJ, examined the decision in *R v Tang* (2006) 65 NSWLR 681; 161 A Crim R 377; [2006] NSWCCA 167 which was decided after the ruling in *R v Murdoch (No 4)* (2005) 195 FLR 421; [2005] NTSC 78 as well as other United Kingdom authorities not considered by the trial judge.
- 276 *Murdoch v The Queen* (2007) 167 A Crim R 329; [2007] NTCCA 1 at [300]–[309].
- 277 *R v Tang* (2006) 65 NSWLR 681; 161 A Crim R 377; [2006] NSWCCA 167. Note the New South Wales Supreme Court dealt with the evidence in the context of *Evidence Act 1995* (NSW), ss 79 and 177, the equivalents of *Evidence Act 2008*, ss 79 and 177. The New South Wales Supreme Court considered and followed the reasoning of Blanch CJ in *Re Appeal of BLM* (unreported, NSWDC, Blanch CJ, 14 September 2005), distinguished by Martin CJ in *R v Murdoch (No 4)* (2005) 195 FLR 421; [2005] NTSC 78.

- 278 *R v Tang* (2006) 65 NSWLR 681; 161 A Crim R 377; [2006] NSWCCA 167
at [120].
- 279 *R v Tang* (2006) 65 NSWLR 681; 161 A Crim R 377; [2006] NSWCCA 167 at
[154]. The court was even more critical of the idea that, based on the then state of
scientific evidence before the court, body mapping could constitute specialised
knowledge of a character capable of supporting an opinion of identity, see [146].
- 280 *R v Gray* [2003] EWCA Crim 1001 quoted with approval by Spigelman CJ, with
whom Simpson and Adams JJ agreed, in *R v Tang* (2006) 65 NSWLR 681; 161
A Crim R 377; [2006] NSWCCA 167 at [155].
- 281 *Honeysett v The Queen* (2014) 311 ALR 320; (2014) 88 ALJR 786; [2014] HCA
29.
- 282 *Honeysett v The Queen* (2014) 311 ALR 320; (2014) 88 ALJR 786; [2014] HCA
29 at [18].
- 283 *Honeysett v The Queen* (2014) 311 ALR 320; (2014) 88 ALJR 786; [2014] HCA
29 at [43] per curiam.
- 284 *Honeysett v The Queen* (2014) 311 ALR 320; (2014) 88 ALJR 786; [2014] HCA
29 at [42]. For a critical discussion of the question of reliability and independent
validation see Edmond G, “The admissibility of forensic science and medicine
evidence under the Uniform Evidence Law” (2014) 38 Crim LJ 136, at pp 136 –
137. Professor Edmond appears to have written his article before the High Court
handed down its reasons in *Honeysett* (2014) 311 ALR 320; (2014) 88 ALJR
786; [2014] HCA 29, but the reasons do not address the basis of his criticism.
- 285 *Ward v The Queen* (2018) 55 VR 307; [2018] VSCA 80. The percentages were
calculated by computer and the witness was not able to give evidence about the
program. The witness said there was no mathematical formula for the calculation
and it was merely “representation of highly likely”.
- 286 *Ward v The Queen* (2018) 55 VR 307; [2018] VSCA 80 at [93] per curiam.
Despite concluding the trial judge erred in admitting the evidence of probability,
the Court of Appeal dismissed the appeal because on the admissible evidence
the convictions were inevitable. The evidence of the phone communicating with
the cell towers, stripped of the assessment of likelihood as a percentage, was
admissible as factual evidence.
- 287 *R v Gardner* [2004] EWCA Crim 1639 at [31]–[45].
- 288 *R v Gardner* [2004] EWCA Crim 1639 at [45].
- 289 Based on *R v Tang* (2006) 65 NSWLR 681; 161 A Crim R 377; [2006] NSWCCA
167; *Murdoch v The Queen* (2007) 167 A Crim R 329; [2007] NTCCA 1 and the
authorities discussed therein.
- 290 Indeed in *Murdoch v The Queen* (2007) 167 A Crim R 329; [2007] NTCCA 1 at
[56]–[81] evidence of three civilian witnesses, who had had some contact with
the accused, that he looked like or was the person in the same photos used by the

forensic anatomist was admitted in accordance with the principles in *Smith v The Queen* (2001) 206 CLR 650; 75 ALJR 1398; 125 A Crim R 10; 181 ALR 354; [2001] HCA 50. Logically that evidence would have gained support from the evidence of the forensic anatomist and probably the reverse was also true. For a discussion of the flaws of visual identification evidence and an argument for the use of psychological expert testimony on various aspects of visual identification see I Coyle, D Field and G Miller, “The blindness of the eye-witness” (2008) 82 ALJ 471.

- 291 *Winmar v Western Australia* (2007) 35 WAR 159; 177 A Crim R 418; [2007] WASCA 244.
- 292 See *R v Smith* [1987] VR 907; (1987) 25 A Crim R 1 at 911 (VR); at 6 (A Crim R) and footnote 1 above.
- 293 *Festa v The Queen* (2001) 208 CLR 593; 76 ALJR 291; 185 ALR 394; [2001] HCA 72 at [51], per McHugh J. See also *R v Dickman* (2017) 261 CLR 601; 264 A Crim R 577; 91 ALJR 686; 344 ALR 474; [2017] HCA 24 at [41]–[57] per curiam.
- 294 *R v Burchielli* [1981] VR 611; (1980) 2 A Crim R 352 at 622 (VR).
- 295 *R v Carusi* (1997) 92 A Crim R 52 at 56; see also *R v Tugaga* (1994) 74 A Crim R 190 at 194; *Doney v The Queen* (1990) 171 CLR 207; 65 ALJR 45; 50 A Crim R 157; 96 ALR 539.
- 296 *IMM v The Queen* (2016) 257 CLR 300; 90 ALJR 529; 330 ALR 382; [2016] HCA 14.
- 297 *Moreno v The King* [2023] VSCA 98 at [56], where at [50] – [81] the Court of Appeal discusses the application of the principles established in *IMM's case* (2016) 257 CLR 300; 90 ALJR 529; 330 ALR 382; [2016] HCA 14 and looks at a number of cases to draw out how those principles are to be applied in the context of visual identification evidence.
- 298 *R v Mundine* (2008) 182 A Crim R 302; [2008] NSWCCA 55 at [32]–[39], per Simpson J, McClellan CJ at CL and Grove J agreeing; *R v Shamouil* (2006) 66 NSWLR 228; [2006] NSWCCA 112. Compare *MA v The Queen* (2011) 31 VR 203; [2011] VSCA 13 at [17] where Redlich JA, with whom Weinberg and Bongiorno JJA agreed, when discussing *R v Mundine* left open the question whether probative value must always be approached in such a confined way where reliability is a real issue. See discussion in *Moreno v The King* [2023] VSCA 98 at [50] – [81].
- 299 See *MA v The Queen* (2011) 31 VR 203; [2011] VSCA 13 at [17] where Redlich JA (Weinberg and Bongiorno JJA agreeing) when discussing *R v Mundine* (2008) 182 A Crim R 302; [2008] NSWCCA 55 left open the question whether probative value must always be approached in such a confined way where reliability is a real issue. See discussion in *R v Shamouil* (2006) 66 NSWLR 228; [2006]

NSWCCA 112 at [51]–[64], per Spigelman CJ, Simpson and Adams JJ agreeing; *BSJ v The Queen* (2012) 35 VR 475; [2012] VSCA 93 at [15]–[21], per curiam discussing “probative value” in the context of *Evidence Act 2008*, ss 97, 98 rather than s 137; *Director of Public Prosecutions v DJC* (2012) 36 VR 33; [2012] VSCA 132 at [45]–[46], per curiam. Note these cases were decided before *IMM v The Queen* (2016) 257 CLR 300; 90 ALJR 529; 330 ALR 382; [2016] HCA 14. See *Moreno v The King* [2023] VSCA 98 at [50] – [81] for discussion of application of principles set out in *IMM* (2016) 257 CLR 300; 90 ALJR 529; 330 ALR 382; [2016] HCA 14 in the context of identification evidence.

300 *R v Mundine* (2008) 182 A Crim R 302; [2008] NSWCCA 55 at [44]–[47], per Simpson J, McClellan CJ at CL and Grove J agreeing.

301 *R v Lambert* (2000) 111 A Crim R 564; [2000] QCA 141 is an example of a case where identification from photographs was admitted even though most of the photographs did not match the description of witnesses and were made four years after the event. Those matters were for the jury to consider in assessing the evidence.

302 *Wilson v The King* [2022] VSCA 261 at [103] – [146] per curiam provides an example of such a case and see other cases discussed in the reasons.

303 *R v Dickman* (2017) 261 CLR 601; 264 A Crim R 577; 91 ALJR 686; 344 ALR 474; [2017] HCA 24 at [48] per curiam. See also *Smith v The King* [2022] VSCA 268 at [31] – [39] per Taylor JA, Priest and McLeish JJA agreeing.

304 The *Jury Directions Act 2015* repealed s 116 of the *Evidence Act 2008* and amended s 165(1)(b) of the *Evidence Act 2008* to limit its application to civil proceedings.

305 *Jury Directions Act 2015*, ss 12 and 36(1).

306 *Jury Directions Act 2015*, s 36(2).

307 *Evidence Act 2008*, s 115(7).

308 *Evidence Act 2008*, s 116(1).

309 *Jury Directions Act 2015*, s 36(3)(e).

310 Eyewitness Identification Reform factsheet, Innocence Project website available at http://www.innocenceproject.org/Content/Eyewitness_Identification_Reform.php.

311 *Dhanhoa v The Queen* (2003) 217 CLR 1; 77 ALJR 1433; 139 A Crim R 41; 199 ALR 547; [2003] HCA 40 at [19]–[22], per Gleeson CJ and Hayne J, at [53], per McHugh and Gummow JJ and at [90]–[94], per Callinan J.

312 *Davies v The King* (1937) 57 CLR 170; [1937] HCA 27 at 182; *R v Burchielli* [1981] VR 611; (1980) 2 A Crim R 352 at 617–621 (VR); *Domican v The Queen* (1992) 173 CLR 555; 66 ALJR 285; 60 A Crim R 169; 106 ALR 203 at 560–564 (CLR).

313 *Jury Directions Act 2015*, s 14.

- 314 *Jury Directions Act 2015*, s 16.
- 315 See *Evidence Act 2008*, s 116(1)(b) and also *R v Turnbull* [1977] QB 224; [1976] 3 WLR 445; [1976] 3 All ER 549 at 228 (QB), cited in *R v Burchielli* [1981] VR 611; (1980) 2 A Crim R 352 at 618 (VR). See discussion of *Turnbull's case* [1977] QB 224; [1976] 3 WLR 445; [1976] 3 All ER 549 in *Moreno v The King* [2023] VSCA 98 at [58] per curiam.
- 316 *R v Clune* [1982] VR 1; (1981) 5 A Crim R 246 at 9 (VR); at 254 (A Crim R).
- 317 See *Evidence Act 2008*, s 116(2).
- 318 *Domican v The Queen* (1992) 173 CLR 555; 66 ALJR 285; 60 A Crim R 169; 106 ALR 203 at 562 (CLR).
- 319 *Domican v The Queen* (1992) 173 CLR 555; 66 ALJR 285; 60 A Crim R 169; 106 ALR 203 at 565 (CLR).
- 320 *R v Dodd* (2002) 135 A Crim R 32; [2002] NSWCCA 418.
- 321 *R v Burchielli* [1981] VR 611; (1980) 2 A Crim R 352 at 362 (A Crim R); *R v Clune* [1982] VR 1; (1981) 5 A Crim R 246 at 7 (VR); at 252 (A Crim R); *R v Haidley* [1984] VR 229; (1983) 10 A Crim R 1 at 230 (VR); at 3 (A Crim R).
- 322 *Jury Directions Act 2015*, s 37.
- 323 *Jury Directions Act 2015*, ss 14(1) and 16(1).
- 324 *Jury Directions Act 2015*, s 4A. See also *Grbic v Pitkethly* (1992) 38 FCR 95; 65 A Crim R 12; 110 ALR 577 at 24 (A Crim R); at 588 (ALR) per Sheppard J.
- 325 *Grbic v Pitkethly* (1992) 38 FCR 95; 65 A Crim R 12; 110 ALR 577; *Sharrett v Gill* (1993) 65 A Crim R 44; *Parker v Espinoza* (1996) 85 A Crim R 336 at 340.
- 326 The distinction between direct and circumstantial evidence is a matter for general directions, *Jury Directions Act 2015*, s 3 para (h) in the definition of “general directions”.
- 327 *Festa v The Queen* (2001) 208 CLR 593; 76 ALJR 291; 185 ALR 394; [2001] HCA 72 at [71]–[74], per McHugh J; see also *R v Rich (No 2)* (2002) 4 VR 155; [2002] VSCA 17 at [77]–[78]; *R v Morgan* [2009] VSCA 225.
- 328 *Domican v The Queen* (1992) 173 CLR 555; 66 ALJR 285; 60 A Crim R 169; 106 ALR 203 at 562 (CLR).
- 329 *Domican v The Queen* (1992) 173 CLR 555; 66 ALJR 285; 60 A Crim R 169; 106 ALR 203 at 564 (CLR).
- 330 *Domican v The Queen* (1992) 173 CLR 555; 66 ALJR 285; 60 A Crim R 169; 106 ALR 203 at 562 (CLR).
- 331 *Jury Directions Act 2015*, s 36(3)(c).
- 332 *R v Dickson* [1983] 1 VR 227 at 232; *R v Clune* [1982] VR 1; (1981) 5 A Crim R 246 at 7 (VR); at 253 (A Crim R).
- 333 *R v Clune* [1982] VR 1; (1981) 5 A Crim R 246 at 7 (VR); at 252 (A Crim R).
- 334 *R v Burchielli* [1981] VR 611; (1980) 2 A Crim R 352 at 621 (VR).

- 335 *Domican v The Queen* (1992) 173 CLR 555; 66 ALJR 285; 60 A Crim R 169;
106 ALR 203 at 565 (CLR).
- 336 *Neville v The Queen* (2004) 145 A Crim R 108; [2004] WASCA 62 but this
observation should be treated with caution given the Uniform Evidence Act has
not been taken up in Western Australia.
- 337 *Jury Directions Act 2015*, s 36(3)(b).
- 338 *Carr v The Queen* (2000) 117 A Crim R 272; [2000] TASSC 183 at [61], per
Blow J; cited with approval in *R v Spero* (2006) 13 VR 225; 161 A Crim R 13;
[2006] VSCA 58 at [28].
- 339 See discussion in *R v Spero* (2006) 13 VR 225; 161 A Crim R 13; [2006] VSCA
58 at [35]–[36]; *R v Rich (No 2)* (2002) 4 VR 155; [2002] VSCA 17 at [77], per
Brooking JA.
- 340 *R v McCarthy* (1993) 71 A Crim R 395 at 404.